CHUBB

The ForeFront Portfolio® for Healthcare Organizations Binder

Contact Information

To:
Alexis Zamor

Phone:
(404) 264-3048

Producer:
AON RISK SERVICES SOUTH INC

Email Address:
alexis.zamor@aon.com

Licensed Producer Contact:
Haleigh Belmont

Date:
November 20, 2025

Account Information

Applicant Name: ATLANTA WOMEN'S HEALTH GROUP, PC

Applicant Address: 5780 PEACHTREE DUNWOODY ROAD SUITE 300
ATTN: JOHN A TAYLOR, III - CAO
ATLANTA, GA 30342

Policy Information

Type of Submission: Renewal

Product: The ForeFront Portfolio® for Healthcare Organizations

Policy Form: PF-55501 (07/21)

Issuing Company: Federal Insurance Company

Paper Type: Admitted

Policy Period: December 9, 2025 to December 9, 2026

Policy Number: J06814347

Cover Letter

Dear Alexis Zamor,

Please review this binder for accuracy and contact CHUBB prior to the effective date of policy coverage in the event of any inaccuracies to this binder. If CHUBB does not hear from you prior to the effective date, it will be assumed that this binder has been accepted as an accurate description of our agreed upon terms of coverage.

Sincerely,
Paulette Wallace
(678) 795-4345
Paulette.Wallace@Chubb.com

Payment Plan Option

☒ Agency

☒ Pre-Paid* (100% in 1 payment)

Subjectivities

CHUBB hereby indicates the coverage described below. However, any obligations the Insurer may have under this quotation are conditioned upon each of the following conditions having first been met.

- There are no subjectivities for the US policy.

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Premium Summary

Premium	
D&O Liability Premium	$20,926.00
Employment Practices Liability Premium	$27,103.00
Fiduciary Liability Premium	$4,120.00
Crime Premium	$8,926.00
Policy Premium	**$61,075.00**
Taxes, Assessment and Surcharges	
Total Taxes/Assessments/Surcharges	**$0.00**
Total Quoted Premium	**$61,075.00**
Commission	20.00%

General Terms and Conditions

Extended Reporting Period

Limits	
Additional Period	1 Year(s)
Additional Premium	150% of the annualized premium

The following Basic Contract(s) are applicable

Title	Form Number
GENERAL TERMS AND CONDITIONS POLICY FORM	PF-55501 (07/21)
DIRECTORS AND OFFICERS AND ENTITY LIABILITY FOR HEALTHCARE COMPANIES COVERAGE PART POLICY FORM	PF-55504 (11/21)
EMPLOYMENT PRACTICES LIABILITY COVERAGE PART POLICY FORM	PF-55505 (07/21)
FIDUCIARY LIABILITY COVERAGE PART POLICY FORM	PF-55506 (07/21)
CRIME COVERAGE PART POLICY FORM	PF-55507 (07/21)

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The following Notice(s) will be added to the basic contract(s)	
Title	**Form Number**
Terrorism Policyholder Disclosure Notice	10-02-1281 (03/15)
Notice of Loss Control Services	14-02-23030 (05/18)
Important Notice - Georgia Policyholder Notice	99-10-0654B (08/19)
Chubb Producer Compensation Practices and Policies	ALL-20887a (09/19)
Trade or Economic Sanctions Notice	ALL-21101 (09/19)
Social Engineering Tips	ALL-317454 (03/21)
U.S. Treasury Departments Office of Foreign Assets Control - OFAC - Advisory Notice to Policyholders	PF-17914a (04/16)
Notice to Policyholders - Questions About Your Insurance	PF-17993a (04/20)

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The following General Terms and Conditions Endorsement(s) will be added to the basic contract(s)

The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

Title	Form Number
GEORGIA AMENDATORY ENDORSEMENT	PF-55956 (07/21)
Cap On Losses From Certified Acts Of Terrorism	ALL-52004 (05/20)
PREDETERMINED RUN-OFF ENDORSEMENT	PF-55082 (07/21)
ADDITIONAL INSURED ENDORSEMENT Entity Name: Medical Business Management, LLC Applicable Liability Coverage Part(s): D&O/EPL/Fiduciary Pending or Prior Proceedings Date: N/A Known Wrongful Acts Date: N/A Entity Name: North Crescent Surgery Center, LLC Applicable Liability Coverage Part(s): D&O/EPL/Fiduciary Pending or Prior Proceedings Date: December 9, 2024 Known Wrongful Acts Date: December 9, 2024	PF-55399 (07/21)
GTC Enhancement Endorsement	PF-57418 (02/23)

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Directors & Officers and Entity Liability Coverage Part for Healthcare Organizations

Insuring Clauses

Limits	
D&O Aggregate Limit of Liability	$2,000,000
Additional Limit of Liability Dedicated for Executives	$1,000,000
Antitrust Matters Limit of Liability	$1,000,000
Sublimit for Regulatory Fraud Coverage	$1,000,000
Sublimit for Clinical Trials Coverage	$250,000
Sublimit for EMTALA Matters	$250,000
Sublimit for Tax Claims	$100,000
Sublimit for Securityholder or Member Inquiry Coverage	$500,000
Retentions	
Insuring Clause (A)	None
Insuring Clauses (B) & (C), except as provided below	$35,000
Antitrust Matters	$100,000
Provider Selection Matters	$100,000
Regulatory Fraud Matters	$1,000,000
Clinical Trials Matters	$100,000
Coinsurance	
Insured's Antitrust Matters Coinsurance (%)	20%
Insured's Regulatory Fraud Matters Coinsurance (%)	50%
Continuity Provision(s)	
Pending or Prior Proceedings Date	December 1, 2005
Coverage Part Defense Provision(s)	
Reimbursement	

The following Directors & Officers and Liability Endorsement(s) will be added to the basic contract(s)

The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

Title	Form Number
Manuscript - to be drafted by Chubb Legal	Manuscript Placeholder
Draft Title: Controlled Substance Opioid Exclusion	
Description: Controlled Substance Opioid Exclusion	
RATE CAP REIMBURSEMENT ENDORSEMENT	PF-55053 (07/21)
Rate of Pay per hour for all work performed by partners: $400	
Rate of Pay per hour for all work performed by associates: $300	
Rate of Pay per hour for all work performed by paralegals: $125	
CRISIS MANAGEMENT EXPENSE COVERAGE ENDORSEMENT	PF-55231 (07/21)

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The following Directors & Officers and Liability Endorsement(s) will be added to the basic contract(s)

The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

Title	Form Number
Sublimit: $25,000	
REGULATORY FRAUD DEFENSE COST ONLY COVERAGE ENDORSEMENT	PF-55272 (07/21)
Sublimit: $1,000,000	
D-O ENHANCEMENT ENDORSEMENT	PF-57868GA (09/23)

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Employment Practices Liability Coverage Part

Insuring Clauses

Limits	
Aggregate Limit of Liability	$2,000,000
• Employment Practices Liability	Included
• Third Party Liability	Included
Retentions	
Employment Practices Liability (other than Mass or Class Action)	$75,000
Third Party Liability (other than Mass or Class Action)	$75,000
High Wage Earners Retention • Compensation Threshold: $150,000	$150,000
Mass or Class Retention	$75,000
Continuity Provision(s)	
Employment Practices Liability Pending Or Prior Proceedings Date	December 1, 2005
Third Party Liability Pending Or Prior Proceedings Date	December 1, 2005
Coverage Part Defense Provision(s)	
Duty to Defend by Chubb	

The following Employment Practices Liability Endorsement(s) will be added to the basic contract(s)

The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

Title	Form Number
CONTROLLED SUBSTANCE OPIOID EXCLUSION ENDORSEMENT	MS-397036 (01/25)
SEXUAL BEHAVIOR EXCLUSION FOR THIRD PARTY MATTERS ENDORSEMENT	PF-55123 (07/21)
SPECIFIC MATTER EXCLUSION ENDORSEMENT	PF-55126 (07/21)
Specific Matter Description: Leslie Feinberg, As submitted via EEOC Charge of Discrimination form received by the commission on August 28, 2017	
SEPARATE RETENTION - HIGH WAGE EARNERS ENDORSEMENT	PF-55128 (07/21)
Retention: $150,000	
Compensation Threshold: $150,000	
WORKPLACE VIOLENCE EXPENSES (WITH SUBLIMIT) ENDORSEMENT	PF-55130 (07/21)
Workplace Violence Expense Sublimit: $250,000	
CRISIS MANAGEMENT EXPENSE COVERAGE ENDORSEMENT	PF-55132 (07/21)
Sublimit: $25,000	
IMMIGRATION CLAIM COVERAGE ENDORSEMENT (WITH SUBLIMIT FOR DEFENSE COSTS)	PF-55291 (07/21)
Sublimit: $50,000	

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The following Employment Practices Liability Endorsement(s) will be added to the basic contract(s)

The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

Title	Form Number
Prior Knowledge Date: December 9, 2024	
HEALTHCARE AMENDATORY ENDORSEMENT (EPL)	PF-57095 (02/23)
BIOMETRIC INFORMATION PRIVACY MATTER EXCLUSION ENDORSEMENT	PF-57879 (07/23)

Fiduciary Liability Coverage Part

Insuring Clauses

Coverage	
Limits	
Aggregate Limit of Liability	$3,000,000
Sublimit for HIPAA/HITECH Penalties	$1,500,000
Sublimit for PPACA Penalties	$250,000
Sublimit for Section 4975 IRC Excise Tax	$250,000
Sublimit for Section 502(c) Penalties	$250,000
Sublimit for Canadian Penalties	$250,000
Sublimit for Voluntary Program Notice Coverage	$250,000
Penalty Suite Additional Sublimit of Liability	$100,000
Sublimit for Failure to Enroll Loss and Defense Costs	$50,000
Retentions	
Each Claim (other than Mass or Class Action)	$10,000
Voluntary Program Notice Coverage	$0
Mass or Class Action	$10,000
Continuity Provision(s)	
Pending or Prior Proceedings Date:	April 19, 2004

The following Fiduciary Endorsement(s) will be added to the basic contract(s)

The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

Title	Form Number
Manuscript - to be drafted by Chubb Legal	Manuscript Placeholder
Draft Title: Controlled Substance Opioid Exclusion	
Description: Controlled Substance Opioid Exclusion	
PENDING OR PRIOR PROCEEDING EXCLUSION FOR INCREASED LIMITS	PF-54862 (07/21)
Pending or Prior Litigation Date: December 9, 2024	
Additional Limit of Liability: $1,000,000	
Original Limit of Liability: $2,000,000	
MULTI-EMPLOYER PLAN ENDORSEMENT	PF-54875 (07/21)
PENSION CRISIS MANAGEMENT COVERAGE ENDORSEMENT	PF-54878 (01/24)
Pension Crisis Management Sublimit: $5,000	
EXCESS LIMIT PRIOR KNOWLEDGE ENDORSEMENT	PF-54896 (07/21)
Title(s) of Insured Person(s): Control Group	
Prior Knowledge Date: December 9, 2024	
Increased Amount of Limit: $1,000,000	
Original Limit : $2,000,000	

The following Fiduciary Endorsement(s) will be added to the basic contract(s)

The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

Title	Form Number
HEALTHCARE ORGANIZATION AMEND EXECUTIVE ENDORSEMENT	PF-54899 (07/21)
FIDUCIARY ENHANCEMENT ENDORSEMENT	PF-57424 (02/23)

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Crime Coverage Part

Insuring Clauses

Include if Checked	Insuring Clause	Limit	Retention
☒	A.1 Employee Theft	$1,000,000	$25,000
☒	A.2 Client Theft	$1,000,000	$25,000
☒	A.3 ERISA Fraud or Dishonesty	$1,000,000	None
☒	B. Premises	$1,000,000	$25,000
☒	C. In Transit	$1,000,000	$25,000
☒	D. Forgery	$1,000,000	$25,000
☒	E. Computer System Fraud	$1,000,000	$25,000
☒	F. Funds Transfer Fraud	$1,000,000	$25,000
☒	G. Social Engineering Fraud With Official Authorization	$250,000	$25,000
☒	G. Social Engineering Fraud Without Official Authorization	$100,000	$25,000
☒	H. Money Orders and Counterfeit Currency Fraud	$1,000,000	$25,000
☒	Claim and Computer Investigations Expense	$100,000	None

Corporate Credit Card Fraud

Limit	Retention
$1,000,000	$25,000

Telephone Toll Fraud

Limit	Retention
$1,000,000	$25,000

The following Crime Endorsement(s) will be added to the basic contract(s)

The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

Title	Form Number
GEORGIA AMENDATORY ENDORSEMENT	PF-54770 (07/21)
AMEND DEFINITION OF EXECUTIVE FOR HEALTHCARE ORGANIZATIONS ENDORSEMENT	PF-54709 (07/21)
TELEPHONE TOLL FRAUD ENDORSEMENT Limit : $1,000,000 Retention : $25,000	PF-54720 (07/21)

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The following Crime Endorsement(s) will be added to the basic contract(s)

The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

Title	Form Number
CORPORATE CARD COVERAGE ENDORSEMENT	PF-54737 (07/21)
SOCIAL ENGINEERING FRAUD – WITH AND WITHOUT OFFICIAL AUTHORIZATION ENDORSEMENT	PF-54738 (07/21)
CRIME ENHANCEMENT ENDORSEMENT	PF-57420 (02/23)

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Conditions of this Binder

This Binder is valid for 30 days from the Policy Period inception date.

Please read this Binder carefully, as the limits, coverage and other terms and conditions may vary significantly from those requested in your submission and/or from the expiring policy. Terms and conditions that are not specifically mentioned in this Binder are not included. The terms and conditions of this Binder supersede the submitted insurance specifications and all prior quotes and binders. Actual coverage will be provided by and in accordance with the policy as issued.

The insurer is not bound by any statements made in the submission purporting to bind the insurer unless such statement is reflected in the policy or in an agreement signed by someone authorized to bind the insurer.

When signed by the Insurer, the coverage described above is in effect from 12:01 AM (local time at the address shown above) of the Policy Period inception date listed above to 12:01 AM (local time at the address shown above) of the Policy Period expiration date listed above pursuant to the terms, conditions and exclusions of the policy form listed above and any policy endorsements described above. Unless otherwise indicated, this Binder may be cancelled by the Insured, or by the Producer on behalf of the Insured, by written notice to the Insurer or by the surrender of this Binder stating when such cancellation shall be effective. Unless otherwise indicated, this Binder may be cancelled by the Insurer prior to the Policy Period inception date by sending written notice to the Insured at the address shown above stating when such cancellation shall be effective. Unless otherwise indicated, this Binder may be cancelled by the Insurer on or after the Policy Period inception date in the same manner and upon the same terms and conditions applicable to cancellation of the policy form listed above. If cancellation of the Binder, by or on behalf of either the Insured or the Insurer, is effective after the Policy Period inception date, then the Insurer shall be entitled to the earned premium, on a pro-rata basis, for the covered period. Issuance by the Insurer and acceptance by or on behalf of the Insured of the policy shall render this Binder void except as indicated below.

Conditions precedent to coverage afforded by this Binder are: (1) receipt, review and acceptance of the information required herein within the stated timeframe; and (2) that no material change in the risk occurs and no submission is made to the Insurer of a claim or circumstances that might give rise to a claim between the date of this Binder indicated above and the Policy Period inception date. If such required information is not received, reviewed and accepted within the stated timeframe, or such material change in the risk is discovered or submission of a claim or circumstance is made, then the proposed insurance coverage will be void ab initio ("from the beginning"). The underwriter, at its sole discretion, may also modify the terms and conditions of the policy, and/or cancel coverage, pursuant to the terms of the policy.

Note: If the Insuring Company noted above is Chubb Custom Insurance Company, Westchester Surplus Lines Insurance Company, Executive Risk Indemnity Inc. (in Connecticut only) or Illinois Union Insurance Company, then this insurance is issued pursuant to the state Surplus Lines laws that the Insured is domiciled. Persons insured by Surplus Lines carriers do not have the protection of the above captioned state's Guaranty Act to the extent of any right of recovery for the obligation of an insolvent unlicensed insurer.

Any applicable taxes, surcharges or countersignature fees, etc., are in addition to the above bound figures. Your office is responsible for making State Surplus Lines Filings and complying with all applicable laws. Premium Surcharge Notice is attached, if applicable.

Sincerely,

Paulette Wallace
(678) 795-4345
Paulette.Wallace@Chubb.com

PREMIUM BILL

Date: November 20, 2025

Insured: ATLANTA WOMEN'S HEALTH GROUP, PC

Producer: AON RISK SERVICES SOUTH INC
3550 LENOX ROAD NORTHEAST
SUIT 1700
ATLANTA, GA 30326

Company: Federal Insurance Company

THIS BILLING IS TO BE ATTACHED TO AND FORM A PART OF THE POLICY REFERENCED BELOW.

Policy Number: J06814347

Policy Period: 12-09-2025 to 12-09-2026

NOTE: PLEASE RETURN THIS BILL WITH REMITTANCE AND NOTE HEREON ANY CHANGES. BILL WILL BE RECEIPTED AND RETURNED TO YOU PROMPTLY UPON REQUEST.

PLEASE REMIT TO PRODUCER INDICATED ABOVE. PLEASE REFER TO J06814347

Product	Effective Date	Premium
The ForeFront Portfolio	12-09-2025	$61,075.00

TOTAL POLICY PREMIUM	$61,075.00

WHEN REMITTING PLEASE INDICATE POLICY OR CERTIFICATE NUMBER

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SCHEDULE OF FORMS

To be attached to and form part of Policy Number: J06814347

Company: Federal Insurance Company

Policy Period : 12-09-2025 to 12-09-2026

Issued to: ATLANTA WOMEN'S HEALTH GROUP, PC

Form Number	Edition Date	Form Title
10-02-1281	(03/15)	Terrorism Policyholder Disclosure Notice
14-02-23030	(05/18)	Notice of Loss Control Services
99-10-0654B	(08/19)	Important Notice - Georgia Policyholder Notice
ALL-20887a	(09/19)	Chubb Producer Compensation Practices and Policies
ALL-21101	(09/19)	Trade or Economic Sanctions Notice
ALL-317454	(03/21)	Social Engineering Tips
PF-17914a	(04/16)	U.S. Treasury Departments Office of Foreign Assets Control - OFAC - Advisory Notice to Policyholders
PF-17993a	(04/20)	Notice to Policyholders - Questions About Your Insurance

General Terms and Conditions

PF-55501	(07/21)	GENERAL TERMS AND CONDITIONS POLICY FORM
PF-55956	(07/21)	GEORGIA AMENDATORY ENDORSEMENT
ALL-52004	(05/20)	Cap On Losses From Certified Acts Of Terrorism
PF-55082	(07/21)	PREDETERMINED RUN-OFF ENDORSEMENT
PF-55399	(07/21)	ADDITIONAL INSURED ENDORSEMENT
PF-57418	(02/23)	GTC Enhancement Endorsement

Directors & Officers and Entity Liability Coverage Part

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PF-55504	(11/21)	DIRECTORS AND OFFICERS AND ENTITY LIABILITY FOR HEALTHCARE ORGANIZATIONS COVERAGE PART POLICY FORM
MANUSCRIPT PLACEHOLDER		Manuscript - to be drafted by Chubb Legal
PF-55053	(07/21)	RATE CAP REIMBURSEMENT ENDORSEMENT
PF-55231	(07/21)	CRISIS MANAGEMENT EXPENSE COVERAGE ENDORSEMENT
PF-55272	(07/21)	REGULATORY FRAUD DEFENSE COST ONLY COVERAGE ENDORSEMENT
PF-57868GA	(09/23)	D-O ENHANCEMENT ENDORSEMENT

Employment Practices Liability Coverage Part

PF-55505	(07/21)	EMPLOYMENT PRACTICES LIABILITY COVERAGE PART POLICY FORM
MS-397036	(01/25)	CONTROLLED SUBSTANCE OPIOID EXCLUSION ENDORSEMENT
PF-55123	(07/21)	SEXUAL BEHAVIOR EXCLUSION FOR THIRD PARTY MATTERS ENDORSEMENT
PF-55126	(07/21)	SPECIFIC MATTER EXCLUSION ENDORSEMENT
PF-55128	(07/21)	SEPARATE RETENTION - HIGH WAGE EARNERS ENDORSEMENT
PF-55130	(07/21)	WORKPLACE VIOLENCE EXPENSES (WITH SUBLIMIT) ENDORSEMENT
PF-55132	(07/21)	CRISIS MANAGEMENT EXPENSE COVERAGE ENDORSEMENT
PF-55291	(07/21)	IMMIGRATION CLAIM COVERAGE ENDORSEMENT (WITH SUBLIMIT FOR DEFENSE COSTS)
PF-57095	(02/23)	HEALTHCARE AMENDATORY ENDORSEMENT (EPL)
PF-57879	(07/23)	BIOMETRIC INFORMATION PRIVACY MATTER EXCLUSION ENDORSEMENT

Fiduciary Liability Coverage Part

PF-55506	(07/21)	FIDUCIARY LIABILITY COVERAGE PART POLICY FORM
MANUSCRIPT PLACEHOLDER		Manuscript - to be drafted by Chubb Legal
PF-54862	(07/21)	PENDING OR PRIOR PROCEEDING EXCLUSION FOR INCREASED LIMITS
PF-54875	(07/21)	MULTI-EMPLOYER PLAN ENDORSEMENT
PF-54878	(01/24)	PENSION CRISIS MANAGEMENT COVERAGE ENDORSEMENT

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PF-54896	(07/21)	EXCESS LIMIT PRIOR KNOWLEDGE ENDORSEMENT
PF-54899	(07/21)	HEALTHCARE ORGANIZATION AMEND EXECUTIVE ENDORSEMENT
PF-57424	(02/23)	FIDUCIARY ENHANCEMENT ENDORSEMENT

Commercial Crime Coverage Part

PF-55507	(07/21)	CRIME COVERAGE PART POLICY FORM
PF-54770	(07/21)	GEORGIA AMENDATORY ENDORSEMENT
PF-54709	(07/21)	AMEND DEFINITION OF EXECUTIVE FOR HEALTHCARE ORGANIZATIONS ENDORSEMENT
PF-54720	(07/21)	TELEPHONE TOLL FRAUD ENDORSEMENT
PF-54737	(07/21)	CORPORATE CARD COVERAGE ENDORSEMENT
PF-54738	(07/21)	SOCIAL ENGINEERING FRAUD – WITH AND WITHOUT OFFICIAL AUTHORIZATION ENDORSEMENT
PF-57420	(02/23)	CRIME ENHANCEMENT ENDORSEMENT

POLICYHOLDER DISCLOSURE

NOTICE OF TERRORISM INSURANCE COVERAGE (for policies with no terrorism exclusion or sublimit)

Insuring Company: Federal Insurance Company

You are hereby notified that, under the Terrorism Risk Insurance Act (the "Act"), this policy makes available to you insurance for losses arising out of certain acts of terrorism. Terrorism is defined as any act certified by the Secretary of the Treasury of the United States, to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of an air carrier or vessel or the premises of a United States Mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

You should know that the insurance provided by your policy for losses caused by acts of terrorism is partially reimbursed by the United States under the formula set forth in the Act. Under this formula, the United States pays 85% of covered terrorism losses that exceed the statutorily established deductible to be paid by the insurance company providing the coverage. Beginning in 2016, the Federal share will be reduced by 1% per year until it reaches 80%, where it will remain.

However, if aggregate insured losses attributable to terrorist acts certified under the Act exceed $100 billion in a calendar year, the Treasury shall not make any payment for any portion of the amount of such losses that exceeds $100 billion.

If aggregate insured losses attributable to terrorist acts certified under the Act exceed $100 billion in a calendar year and we have met our insurer deductible under the Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds $100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

The portion of your policy's annual premium that is attributable to insurance for such acts of terrorism is: $ **-0-.**

If you have any questions about this notice, please contact your agent or broker.

Notice of Loss Control Services

Insuring Company: Federal Insurance Company

As a Chubb policyholder, you have loss prevention information and/or services available to you, as listed in this Notice. You may order any brochure by email to formsordering@chubb.com and to view our full suite of loss prevention brochures/services go to www.chubb.com/us/fl-lossprevention

Directors and Officers (D&O) Liability Loss Prevention Services

- ***Directors and Officers Liability Loss Prevention*** **Manuals:**
  Directors and Officers Liability Loss Preventions – #14-01-0035
  Directors and Officers Securities Litigation Loss Preventions – #14-01-0448
  Director Liability Loss Prevention in Mergers and Acquisitions – #14-01-1099
  Directors and Officers Liability Loss Prevention for Not-for-Profit- -#14-01-0036
  Cyber Loss Mitigation for Directors -#14-01-1199

Employment Practices Liability (EPL) Loss Prevention Services

- **Toll-free Hot Line**

  Have a question on how to handle an employment situation? Simply call **1.888.249.8425** to access the nationally known employment law firm of Jackson Lewis P.C. We offer customers an unlimited number of calls to the hot line at no additional charge.

- **ChubbWorks.com**
  ChubbWorks.com is a web-based platform that offers multiple services including overviews of employment laws, sample employment policies and procedures, and on-line training. To gain immediate access to ChubbWorks go to **www.chubbworks.com** and register using your policy number.

- ***Employment Practices Loss Prevention Guidelines*** **Manual**

  Employment Practices Loss Prevention Guidelines - #14-01-0061

- **Loss Prevention Consultant Services**

  Chubb has developed a network of more than 120 law firms, human resources consulting firms, and labor economist/statistical firms that offer specialized services for employment issues.

- **Public Company EPL Customers**

  Employment Practices Loss Prevention Guidelines – Written by Seyfarth Shaw exclusively for Chubb this manual provides an overview of key employment issues faced by for-profit companies and offers proactive idea for avoiding employment lawsuits.

- **Private Company EPL Customers**
  Employment Practices Loss Prevention Guidelines – Written by Seyfarth Shaw exclusively for Chubb this manual provides an overview of key employment issues for –profit companies and offers proactive idea for avoiding employment lawsuits.

Fiduciary Liability Loss Prevention Services

- **Fiduciary Liability Loss Prevention Manual**
  Who May Sue You and Why: How to Reduce Your ERISA Risks and the Role of Fiduciary Liability Insurance #14-01-1019

Crime Loss Prevention Services

- **Crime/Kidnap, Ransom & Extortion Loss Prevention Manual**

  Preventing Fraud: How Anonymous Hotlines Can Help #14-01-1090

Cyber Security Loss Prevention Services

Visit: https://www2.chubb.com/us-en/business-insurance/cyber-security.aspx to learn more about Chubb's Cyber Services for our policyholders.

Health Care Directors and Officers (D&O) Liability Loss Prevention Services

- **Readings in Health Care Governance Manual**
  Readings in Health Care Governance -#14-01-0788
- **ChubbWorks.com**
  ChubbWorks.com for Health Care Organizations – The Health Care Zone is a free online resource containing health care specific loss prevention information for employment practices liability, directors and officers (D&O) liability, and fiduciary liability exposures. To gain immediate access to ChubbWorks go to **www.chubbworks.com** and register using your policy number.
- **Health Care D&O Loss Prevention Consultant Services**
  Health Care D& O Loss Prevention Consultant Services- #14-01-1164

The services provided are advisory in nature. While this program is offered as a resource in developing or maintaining a loss prevention program, you should consult competent legal counsel to design and implement your own program. No liability is assumed by reason of the services, access or information provided. All services are subject to change without notice.

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Important Notice

GEORGIA POLICYHOLDER NOTICE

THIS NOTICE IS NOT YOUR POLICY. READ YOUR POLICY CAREFULLY TO DETERMINE RIGHTS, DUTIES, AND WHAT IS AND IS NOT COVERED, ONLY THE PROVISIONS OF YOUR POLICY DETERMINE THE SCOPE OF YOUR INSURANCE PROTECTION.

The State of Georgia requires that we inform you of the following:

"Notice: The laws of the State of Georgia prohibit insurers from unfairly discriminating against any person based upon his or her status as a victim of family violence."

CHUBB®

Chubb Producer Compensation Practices & Policies

Chubb believes that policyholders should have access to information about Chubb's practices and policies related to the payment of compensation to brokers and independent agents. You can obtain that information by accessing our website at http://www.chubbproducercompensation.com or by calling the following toll-free telephone number:

1-866-512-2862.

TRADE OR ECONOMIC SANCTIONS NOTICE

This insurance does not apply to the extent that trade or economic sanctions or other laws or regulations prohibit us from providing insurance, including, but not limited to, the payment of claims. All other terms and conditions of the policy remain unchanged.

Social Engineering Tips Please read!

HAVE YOU BEEN TRICKED INTO WIRE FRAUD? TAKE IMMEDIATE ACTION!

If you believe you have transferred funds to a criminal posing as a legitimate business associate, you should act quickly:

1. Immediately contact the originating bank and **request a recall of the wire transfer** and confirm that recall in writing.
2. Immediately file a **complaint with the FBI** at www.ic3.gov. This reporting triggers the FBI's Recovery Asset Team and the FBI's assistance seeking return of the wire transfer.
3. Preserve **records of the incident**, including emails sent and received *in their original electronic state*. Correspondence and forensic information contained in these electronic files help investigators shed light on the perpetrator(s), and parties responsible for the incident.
4. Once the above steps are complete, **contact Chubb** per the instructions in your policy.

While neither recalling the wire transfer nor reporting to the FBI guarantees the return of your funds, these steps maximize the opportunity to mitigate your loss, assist the FBI in tracing the funds and help establish any insurance claim.

Simple Steps to Prevent Fraudulently Induced Wire Transfers

Email communication is efficient, but it is not a secure method of communication. Regardless of your familiarity with a contact, that contact's **email may be intercepted, altered and fabricated**. You may reduce the chances of fraud by following these best practices:

1. **Verify Email Requests by Telephone**: Require those responsible for paying invoices or changing bank routing information to verify payment details over the phone, rather than by email or documents sent electronically. Making a phone call to a known, pre-existing telephone number remains the single best protection against fraud.
2. **Segregate Wire Transfer Responsibilities**: Establish a standing policy that requires at least three people to review and approve wire transfer requests, pay an invoice or change a business partner's bank account information. Such requests should be entered by the initiator of the wire and verified by two independent signatories.
3. **Turn on MFA for Cloud Email**: Multifactor Authentication is available from all major email providers. It provides a layer of security to email accounts beyond a user's account name and password, making it harder for criminals to impersonate you, your executives and your employees.

This document is for information only. It is offered as a resource to be used together with your professional insurance advisers in maintaining a loss prevention program. No liability is assumed by reason of the information this document contains.

CHUBB®

U.S. Treasury Department's Office Of Foreign Assets Control ("OFAC") Advisory Notice to Policyholders

This Policyholder Notice shall not be construed as part of your policy and no coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – http//www.treas.gov/ofac.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

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CHUBB®

Notice to Policyholders

QUESTIONS ABOUT YOUR INSURANCE?

Answers to questions about your insurance, coverage information, or assistance in resolving complaints can be obtained by contacting:

CHUBB
Customer Support Service Department
436 Walnut Street
PO Box 1000
Philadelphia, PA 19106-3703
1-800-352-4462

In consideration of payment of the premium and subject to the Declarations and the limitations, conditions, provisions and other terms of this Policy, the Company and the Insureds agree as follows:

I. TERMS AND CONDITIONS

Except for these General Terms and Conditions or unless stated to the contrary in any Coverage Part, the terms and conditions of each Coverage Part apply only to that Coverage Part. If any provision in these General Terms and Conditions is inconsistent or in conflict with the terms and conditions of any Coverage Part, the terms and conditions of such Coverage Part shall control for purposes of that Coverage Part. All bolded terms in these General Terms and Conditions that are not defined under Section II, Definitions shall have the meaning set forth in the applicable Coverage Part.

II. DEFINITIONS

Application means any portion of an application given to the Company for this Policy, including any attachments, written information, representations or materials provided to the Company by, or on behalf of, an **Insured** during the negotiation of this Policy or for the purposes of the Company's underwriting of this Policy.

Foreign Jurisdiction means any jurisdiction, other than the United States of America.

Global Law means:

(A) United States federal, state, and local statutory law and any rule or regulation promulgated thereunder, all as amended;

(B) United States common law; and

(C) with respect to Subsections (A) and (B) above, any equivalent body of law in a **Foreign Jurisdiction**.

Liability Coverage Part means the Directors & Officers and Entity Liability ("D&O"), Employment Practices Liability ("EPL"), Fiduciary Liability ("FL") and Employed Lawyers Liability ("ELL") Coverage Parts, if purchased as set forth in Item 4, Coverage(s) Applicable to this Policy, of the Declarations.

Non-Liability Coverage Part means the Crime ("Crime"), Kidnap, Ransom & Extortion ("KRE") and Workplace Violence Expense ("WPV") Coverage Parts, if purchased as set forth in Item 4, Coverage(s) Applicable to this Policy, of the Declarations.

Organization means the **Parent Organization** and any **Subsidiary**. **Organization** shall also mean any such entity as a debtor in possession or the equivalent thereof in a **Foreign Jurisdiction**.

Parent Organization means the entity named in Item 1 of the Declarations.

Policy Period means the period of time set forth in Item 2 of the Declarations (subject to any termination in accordance with Section XIX, Termination of Policy) and the Extended Reporting Period, if applicable.

Related means based upon, arising from or in consequence of the same or related, or the same or related series of, facts, circumstances, transactions, situations, events or **Wrongful Acts**.

Subsidiary means:

(A) any entity while the **Parent Organization**, directly or indirectly through one or more **Subsidiaries**:

(1) owns or controls more than fifty percent (50%) of the outstanding securities or voting rights representing the present right; or

(2) has the right, pursuant to either written contract or the by-laws, charter, operating agreement or similar documents of an **Organization**,

to elect, appoint or exercise a majority control over such entity's directors, trustees, manager, member of the Board of Managers, or the functional or foreign equivalent positions of such entity;

(B) any entity while the **Parent Organization**, directly or indirectly through one or more **Subsidiaries**:

(1) owns or controls exactly fifty percent (50%) of the outstanding securities or voting rights representing the present right to elect, appoint or exercise a majority control over such entity's directors, trustees, manager, member of the Board of Managers, or the functional or foreign equivalent positions of such entity; and

(2) has the right, pursuant to either written contract or the by-laws, charter, operating agreement or similar documents of an **Organization** to solely control the management and operation of such entity; or

(C) any foundation or charitable trust while such entity is controlled by the **Parent Organization**;

However, with respect to the D&O for Not-for-Profit Organizations Coverage Part (if purchased), **Subsidiary** shall not include any for-profit entity or chapter of the **Parent Organization** unless added by Endorsement.

III. LIMIT OF LIABILITY

(A) With respect to the **Liability Coverage Parts**:

(1) The Company's maximum aggregate liability for each **Liability Coverage Part** shall be the applicable Aggregate Limit of Liability set forth in Item 4(A) of the Declarations: (a) subject to any Sublimits; and (b) excess of any applicable Retention.

(2) Subject to Paragraph (A)(1) above, if the Limit of Liability of any Coverage Part is designated as shared in Item 4(B) of the Declarations ("Shared Coverage Part"), then the Company's Limit of Liability for each Shared Coverage Part shall be part of, and not in addition to, all other Shared Coverage Parts and shall reduce and may exhaust the Limit of Liability for each Shared Limit of Liability.

(3) Subject to Paragraphs (A)(1) and (A)(2) above, all **Defense Costs** are part of, and not in addition to, the applicable Aggregate Limit of Liability for each **Liability Coverage Part** and payment by the Company of **Defense Costs** shall reduce and may exhaust such Limits of Liability.

(4) If different parts of a **Matter** are subject to different Sublimits under this Policy, then the amount of **Loss** applicable to such Sublimits shall not exceed the largest applicable Sublimit.

(B) With respect to the **Non-Liability Coverage Parts**, the Company's maximum liability shall be the applicable Limits of Liability set forth in the Crime, KRE and WPV portions of the Declarations and shall apply as provided in such **Non-Liability Coverage Part**.

IV. RETENTION

(A) With respect to the **Liability Coverage Parts**:

(1) The Retentions shall apply as set forth in the Declarations and shall only apply to covered **Loss**. Retentions shall be borne uninsured by the **Insureds** and at their own risk.

(2) If different parts of a **Matter** are subject to different Retentions in different Insuring Clauses, Coverage Extensions or Coverage Parts, the applicable Retentions shall be applied separately to each part of such **Matter**, but the sum of such Retentions shall not exceed the largest applicable Retention.

(3) No Retention shall apply to **Loss** incurred by an **Insured Person** if such **Loss** cannot be indemnified by an **Organization** because such **Organization** is not permitted to indemnify by any **Global Law**, or is permitted or required to indemnify, but is unable to do so by reason of **Financial Impairment**.

(4) Except as otherwise provided in this Policy, coverage for any **Matter** (other than a **Claim** or **Derivative Demand Investigation**) shall only apply in excess of the Retention applicable if such **Matter** was a **Claim**.

(B) With respect to the **Non-Liability Coverage Parts:**

(1) The Company's liability shall apply only to that part of each covered loss which is in excess of the applicable Retention set forth in the Crime, KRE and WPV portions of the Declarations, if applicable.

(2) If an **Insured** receives payment under another insurance policy or bond, after application of any deductible or retention thereunder, for loss also covered hereunder, then the applicable Retention set forth in the Crime, KRE and WPV portions of the Declarations, if applicable, shall be reduced by the amount of the deductible or retention applied to such loss under such other insurance policy or bond.

V. RELATED MATTERS

With respect to the **Liability Coverage Parts**, all **Matters** that are **Related** shall be deemed a single **Matter** first made on the date the earliest of such **Matters** was either first made, or on the date the earliest of such **Matters** is deemed to have been first made in accordance with the reporting provisions of this Policy or any prior policy.

VI. EXTENDED REPORTING PERIOD

With respect to the **Liability Coverage Parts**:

(A) If this Policy does not renew or is otherwise terminated for a reason other than for non-payment of premium (each a "Termination of Coverage"), then any **Insured** shall have the right to purchase the Extended Reporting Period for the Additional Period and Additional Premium as set forth in Item 3 of the Declarations.

(B) The right to purchase the Extended Reporting Period shall lapse unless written notice of election to purchase the Extended Reporting Period, together with payment of the applicable Additional Premium, is received by the Company within sixty (60) days after the effective date of a Termination of Coverage.

(C) If the Extended Reporting Period is purchased, then coverage otherwise afforded by this Policy shall be extended to apply to:

(1) any **Matter** that is either first made or deemed to have been first made during the Extended Reporting Period;

(2) any **Matter** that is reported to the Company in accordance with the Reporting Section for each applicable **Liability Coverage Part**; and

(3) any **Matter** for any **Wrongful Act**, or any **Matter** arising out of facts or circumstances, occurring prior to the earliest of the effective date of a Termination of Coverage or the date of any conversion of coverage described in Section X, Acquisition of The Parent Organization, or Section XI, Acquisition, Creation or Cessation of Subsidiaries or Plans.

(D) The Additional Premium for the Extended Reporting Period shall be deemed fully earned at the inception of the Extended Reporting Period.

(E) No coverage shall be available under this Section VI for that portion of any **Matter** covered under insurance purchased subsequent to the effective date of a Termination of Coverage. The applicable Limits of Liability including any Sublimits for the Extended Reporting Period are part of, and not in addition to, any applicable Aggregate Limit of Liability for the **Policy Period** immediately preceding the Extended Reporting Period.

VII. BANKRUPTCY

(A) Bankruptcy or insolvency of any **Insured** shall not relieve the Company of its obligations nor deprive the Company of its rights or defenses under this Policy.

(B) In the event a liquidation or reorganization proceeding is commenced by or against an **Organization** under United States bankruptcy law or any equivalent body of law in a **Foreign Jurisdiction**, the **Organization** and the **Insured Persons** hereby agree not to oppose or object to any efforts by the Company, the **Organization** or an **Insured Person** to obtain relief from any stay or injunction.

VIII. INDEMNIFICATION, SUBROGATION AND RECOURSE

With respect to the **Liability Coverage Parts**:

(A) This Policy has been issued to the **Parent Organization** with the understanding and agreement that each **Organization** agrees to fulfill its indemnification obligations to each **Insured Person** to the fullest extent permitted by: (1) any **Global Law**, or (2) any contract or agreement providing an indemnification obligation exceeding any such law. If indemnification is permitted, then coverage shall apply under each **Liability Coverage Part** as if such indemnification has been provided. If the Company pays as **Loss** any indemnification owed to any **Insured Person** by any **Organization**, the Company does not waive or compromise any of its rights to recover such **Loss** from such **Organization**.

(B) In the event of any payment of **Loss** under this Policy, the Company shall be subrogated to the extent of such payment of **Loss** to all of the **Insureds'** rights of recovery, including any such right to indemnification from any **Organization**, **Outside Entity**, other insurer or other source. The **Insureds** shall take all reasonable actions to secure and preserve the Company's rights, including any action against any **Organization** for indemnification. It is understood and agreed that the Company shall not subrogate against any **Insured Person**.

(C) Any recovery of payment made by the Company shall be the sole property of the Company; provided, as of the date the recovery is received by the Company, the applicable Limits of Liability of this Policy shall be reinstated in the amount of such recovery, minus all costs incurred by the Company to obtain such recovery.

(D) No **Plan** has purchased or paid for this Policy and thus, the right of recourse that is otherwise required under ERISA Section 410(b)(1) is not applicable.

IX. ACTION AGAINST THE COMPANY

No action may be taken against the Company unless, as a condition precedent thereto, there shall have been full compliance with all the terms of this Policy. No natural person or entity shall have any right under this Policy to join the Company as a party to any action against any **Insured** to determine such **Insured's** liability nor shall the Company be impleaded by such **Insured** or legal representatives of such **Insured**.

X. ACQUISITION OF THE PARENT ORGANIZATION

(A) If during the **Policy Period** any of the following events occurs:

(1) another entity, natural person or group of entities or natural persons acquires:

(a) more than fifty percent (50%) of the outstanding securities or voting rights representing the present right; or

(b) the right, pursuant to either written contract or the by-laws, charter, operating agreement or similar documents;

to elect, appoint or exercise a majority control over the **Parent Organization's** directors, trustees, manager, member of the Board of Managers, or the functional or foreign equivalent positions of the **Parent Organization**;

(2) the **Parent Organization** emerges from bankruptcy as of the effective date stated in the plan of reorganization; or

(3) the acquisition of all or substantially all of the **Parent Organization's** assets, by another entity, natural person or group of entities or natural persons, or the merger of the **Parent Organization** into or with another entity such that the **Parent Organization** is not the surviving entity;

(B) then:

(1) any applicable coverage under this Policy with respect to:

(a) any **Liability Coverage Part**, shall continue until the expiration of the current **Policy Period**, solely for **Matters** for **Wrongful Acts**, or **Matters** arising out of facts or circumstances, first occurring prior to such event; or

(b) any **Non-Liability Coverage Part**, shall terminate subject to Section XIX, Termination of Policy;

(2) the **Parent Organization** shall give written notice of such event to the Company as soon as practicable together with such information as the Company may require; and

(3) the entire premium for this Policy shall be deemed fully earned as of the effective date of such event.

(C) If the **Parent Organization** gives the Company written notice of an acquisition described in Paragraphs (A)(1) or (A)(3) above at least sixty days prior to the date of such acquisition together with all information that the Company may require, the Company shall provide the **Parent Organization** with a quote for up to a six (6) year extension of coverage, solely for **Matters** for **Wrongful Acts**, or **Matters** arising out of facts or circumstances, first occurring prior to such acquisition (the "Run-Off Quote"). Coverage offered pursuant to the Run-Off Quote may be subject to additional or different terms and conditions and payment of additional premium. If the **Parent Organization** accepts the Run-Off Quote, the extension of coverage provided pursuant to the Run-Off Quote shall replace any extension of coverage that would otherwise be available to the **Insureds** pursuant to Section VI, Extended Reporting Period.

XI. ACQUISITION, CREATION OR CESSATION OF SUBSIDIARIES OR PLANS

(A) **Acquisition of Another Organization, Sponsored Plan or Employee Benefit Plan**

(1) With respect to the **Liability Coverage Parts**, if before or during the **Policy Period** an **Organization** acquires:

(a) voting rights or appointment rights in another entity, such that the acquired entity becomes a **Subsidiary**; or

(b) another plan such that the acquired plan becomes a **Sponsored Plan** (other than an Employee Stock Ownership Plan ("ESOP")),

then coverage shall be provided for such **Subsidiary**, **Sponsored Plan**, and any

Insureds thereof, solely for **Matters** for **Wrongful Acts**, or **Matters** arising out of facts or circumstances, first occurring after such acquisition.

(2) With respect to the **Non-Liability Coverage Parts**, if before or during the **Policy Period** an **Insured** acquires, mergers or consolidates with another entity, such that the acquired, merged or consolidated entity becomes a **Subsidiary**, then coverage shall be provided for such **Subsidiary** and any **Employee Benefit Plan** thereof for loss **Discovered** after the date the **Insured** acquires, merges or consolidates with such entity, regardless of whether or not the loss was sustained prior to the date of such acquisition, merger or consolidation.

(B) **Acquisition or Creation of ESOP**

If during the **Policy Period** any **Organization** creates or directly or indirectly acquires an ESOP, then with respect to the Fiduciary Liability Coverage Part, the **Organization** shall promptly give to the Company written notice thereof, together with such other information requested by the Company. The Company shall, at the request of the **Organization**, provide to the **Organization** a quotation for coverage for **Matters** based upon, arising from or in consequence of such ESOP, subject to such terms, conditions, and limitations of coverage and such additional premium as the Company, in its sole discretion, may require.

(C) **Cessation of Subsidiaries, Sponsored Plans or Employee Benefit Plans**

If before or during the **Policy Period**:

(1) an **Organization** ceases to be a **Subsidiary**, then with respect to any:

(a) **Liability Coverage Part**, coverage for such **Subsidiary** and its **Insureds** shall continue until termination of this Policy for **Matters** for **Wrongful Acts**, or **Matters** arising out of facts or circumstances, first occurring while such **Organization** was a **Subsidiary**; and

(b) **Non-Liability Coverage Part**, such **Subsidiary** and any **Employee Benefit Plan** thereof shall cease to be **Insureds** as of the effective date of such cessation and coverage under this Policy shall terminate in accordance with Section XIX, Termination of Policy.

(2) a **Sponsored Plan** is terminated or otherwise ceases to be a **Sponsored Plan**, then with respect to the Fiduciary Liability Coverage Part coverage for such **Sponsored Plan** and its **Insureds** shall continue until termination of this Policy for **Matters** for **Wrongful Acts**, or **Matters** arising out of facts or circumstances, occurring prior to the earlier of:

(a) the date that the **Organization** or **Insured Person** ceases to be a fiduciary of such **Sponsored Plan**; or

(b) the date that:

(i) the **Sponsored Plan** ceases to be a **Sponsored Plan**; or

(ii) the final distribution of the assets of such **Sponsored Plan**,

whichever occurs last.

(3) the Pension Benefit Guaranty Corporation ("PBGC") becomes the Trustee of a **Sponsored Plan**, then with respect to the Fiduciary Liability Coverage Part coverage for such **Sponsored Plan** and its **Insureds** shall continue until termination of this Policy for **Matters** for **Wrongful Acts**, or **Matters** arising out of facts or circumstances, first occurring prior to the effective date the PBGC became the Trustee of such **Sponsored Plan**.

XII. REPRESENTATIONS AND SEVERABILITY

With respect to the **Liability Coverage Parts:**

(A) The Company, in issuing this Policy, has relied upon the statements, representations and information in the **Application** as being true and accurate. The **Application** is the basis for, and considered incorporated into, this Policy and shall be construed as a separate request for coverage by each **Insured**.

(B) The knowledge of an **Insured** shall not be imputed to any **Insured Person**, and only the actual knowledge of the **Control Group** shall be imputed to the **Organization** or **Plan**. The Company shall not be entitled under any circumstances to void or rescind this Policy with respect to any **Insured**.

(C) However, in the event that such **Application** contains any misrepresentations made with the actual intent to deceive or contains misrepresentations which materially affect either the acceptance of the risk or the hazard assumed by the Company under this Policy, then no coverage shall be afforded for any **Matter** based upon, arising from or in consequence of any such misrepresentations with respect to:

(1) any **Insured Person** who knew of such misrepresentations (whether or not such **Insured Person** knew such **Application** contained such misrepresentations) or any **Organization** or **Plan** to the extent it indemnifies any such **Insured Person**; or

(2) any **Organization** or **Plan** if any member of the **Control Group** knew of such misrepresentations (whether or not such individual knew such **Application** contained such misrepresentations).

XIII. STATE AMENDATORY INCONSISTENCY

If there is an inconsistency between a state amendatory endorsement attached to this Policy and any other term or condition of this Policy, the Company shall apply, where permitted by law, those terms and conditions either of such state amendatory endorsement or the Policy which are more favorable to the **Insured's** coverage; provided that, with respect to any time period relating to notice of cancellation or non-renewal, the Company shall apply the applicable state law.

XIV. NOTICE

(A) Notice to the Company of any **Matter**, **Potential Claim** or circumstances under any **Liability Coverage Part**, or any loss or occurrence that may subsequently result in a covered loss under any **Non-Liability Coverage Part**, shall be deemed notice under the Policy in its entirety.

(B) All notices to the Company under this Policy of any **Matter**, **Potential Claim** or circumstances under any **Liability Coverage Part**, or any loss or occurrence that may subsequently result in a covered loss under any **Non-Liability Coverage Part**, shall be given in writing to one of the following addresses:

(1) **ChubbClaimsFirstNotice@Chubb.com**

(2) Attn: Chubb Claims Department
Chubb
P.O. Box 5122
Scranton, PA18505-0544

(C) All other notices to the Company under this Policy shall be given in writing addressed to:

(1) **NA.FinancialLines@Chubb.com**

(2) Attn: Chubb Underwriting Department
Chubb
202B Hall's Mill Road
Whitehouse Station, NJ 08889

(D) Any notice described in Subsection (B) or (C) above shall be effective on the date of receipt by the Company.

XV. HEADINGS

The descriptions in the headings and sub-headings of this Policy are solely for convenience and form no part of the terms and conditions of coverage.

XVI. SPOUSES, DOMESTIC PARTNERS, ESTATES AND LEGAL REPRESENTATIVES

With respect to the **Liability Coverage Parts**, coverage under this Policy shall extend to **Claims** for **Wrongful Acts** of an **Insured Person** made against:

(A) the estate, heirs, legal representatives or assigns of such **Insured Person** if such **Insured Person** is deceased, or the legal representatives or assigns of such **Insured Person** if such **Insured Person** is legally incompetent, insolvent or bankrupt; or

(B) the lawful spouse or domestic partner of such **Insured Person** solely by reason of such spouse's or domestic partner's: (1) status as a spouse or domestic partner, or (2) ownership interest in property which the claimant seeks as recovery for an alleged **Wrongful Act** of such **Insured Person**;

provided that no coverage afforded by this Section XVI shall apply with respect to any loss arising from an act, error or omission by an **Insured Person's** estate, heirs, assigns, lawful spouse or domestic partner.

XVII. ALTERATION AND ASSIGNMENT

No change in, modification of or assignment of interest under this Policy shall be effective except when made by written endorsement to this Policy which is signed by an authorized representative of the Company.

XVIII. COMPLIANCE WITH TRADE SANCTIONS

This insurance does not apply to the extent that trade or economic sanctions or other similar laws or regulations prohibit the Company from providing insurance.

XIX. TERMINATION OF POLICY

(A) With respect to the **Liability Coverage Parts**, this Policy shall terminate at the earliest of the following times:

(1) ten (10) days after receipt by the **Parent Organization** of a written notice of termination from the Company for non-payment of premium;

(2) upon expiration of the **Policy Period**;

(3) upon receipt by the Company of a written notice of termination from the **Parent Organization**; except with respect to the **Liability Coverage Parts**, this Policy may not be terminated by the **Parent Organization** after the effective date of any event described in Section X, Acquisition of the Parent Organization; or

(4) at such other time as may be agreed upon by the Company and the **Parent Organization**.

(B) With respect to the **Non-Liability Coverage Parts**, this Policy shall terminate at the earliest of following times:

(1) upon any event set forth in Subsection (A) above;

(2) immediately upon any event described in Section X, Acquisition of the Parent Organization;

(3) immediately upon the liquidation or dissolution of the **Parent Organization**;

(4) as to any **Insured**, immediately upon such **Insured's** liquidation or dissolution;

(5) as to any **Insured**, immediately upon any event described in Section XI, Acquisition Creation, Cessation of Subsidiaries or Plans; or

(6) as to any **Employee Benefit Plan**, immediately upon the full assumption of responsibilities for the administration of such **Employee Benefit Plan** by another entity or **Insured** that was not the plan sponsor of such **Employee Benefit Plan** as of either the inception date of this Policy or the date such **Employee Benefit Plan** was added to the Policy.

(C) The Company shall refund the unearned premium on a pro rata basis if this Policy is terminated. Payment or tender of any unearned premium by the Company shall not be a condition precedent to the effectiveness of such termination, but such payment shall be made as soon as practicable.

XX. PAYMENT PRIORITY AND COVERAGE COORDINATION

With respect to the **Liability Coverage Parts**:

(A) It is understood and agreed that any coverage provided under this Policy is principally intended to protect and benefit the **Insured Persons**. Accordingly, in the event that **Loss** for which an **Insured Person** has not been paid or indemnified; and any other **Loss**, are concurrently due under any **Liability Coverage Part**, the Company shall pay **Loss** as follows:

(1) first, **Loss** for which an **Insured Person** has not been paid or indemnified;

(2) second, if applicable, **Loss** for which an **Insured Person** has been indemnified by the **Organization**; or **Loss** incurred by a **Plan**;

(3) third, if applicable, **Loss** incurred by an **Organization**; and

(4) with respect to whatever remaining amount of the Limit of Liability is available after payment under Paragraphs (A)(1) through (A)(3) above, any other **Loss** afforded coverage under any Insuring Clause or Coverage Extension.

(B) Except as otherwise provided in Subsection (A) above, the Company may pay covered **Loss** as it becomes due under this Policy without regard to the potential for other future payment obligations under this Policy.

(C) Any **Loss** covered under more than one **Liability Coverage Part** shall be first covered under the Employment Practices Liability Coverage Part, if applicable, subject to its terms, conditions and limitations. Any remaining portion of such **Loss** otherwise covered under any other applicable **Liability Coverage Part** which is not paid under the Employment Practices Liability Coverage Part shall be covered under such other **Liability Coverage Part**, subject to the terms, conditions and limitations of such **Liability Coverage Part**.

XXI. VALUATION AND FOREIGN CURRENCY

(A) With respect to the **Liability Coverage Parts**, all premiums, limits, retentions, **Loss** and other amounts under this Policy are expressed and payable in the currency of the United States of America. Except as otherwise provided in this Policy, if a judgment is rendered, a settlement is denominated or any element of **Loss** under this Policy is stated in a currency other than United States of America dollars, payment under this Policy shall be made in United States of America dollars at the rate of exchange published in *The Wall Street Journal* on the date the judgment

becomes final, the amount of the settlement is agreed upon or any element of **Loss** is due, respectively.

(B) With respect to the **Non-Liability Coverage Parts**:

(1) In the event of loss involving foreign currency, the Company shall pay the United States of America dollar value of foreign currency based on the rate of exchange published in *The Wall Street Journal* on the day loss involving foreign currency is **Discovered**.

(2) In the event of a loss of **Securities**, the Company shall value such **Securities** at the closing price of such **Securities** on the business day immediately preceding the day on which a loss is **Discovered**, provided that at its sole discretion, the Company may:

(a) pay the value of such **Securities** or purchase replacement **Securities**, in which event the **Insured** must assign the Company all rights, title and interest in and to those **Securities**; or

(b) issue its indemnity in the form of, or pay the cost of, a Lost Instrument Bond or similar suretyship, to effect replacement of such **Securities**.

(3) In the event of a loss of **Property**, other than any loss of precious metals, the Company shall pay without deduction for depreciation, the least of:

(a) the cost to repair or replace **Property**, other than precious metals, with that of similar quality and value; or

(b) the amount the **Insured** actually spends that is necessary to repair or replace **Property**.

With respect to this Subsection (B)(3):

(i) the Company shall not pay the cost to repair or replace **Property** until such **Property** is actually repaired or replaced, which must occur within twelve (12) months from the time the **Parent Organization** complies with Section XVI, Notice, of the General Terms and Conditions; and

(ii) if the **Property** is not repaired or replaced, the Company will pay the actual cash value of the **Property**.

(4) In the event of a loss of precious metals, the Company shall pay the United States of America dollar value of any precious metals based on the price published in *The Wall Street Journal*, Cash Prices, Precious Metals, on the day loss involving precious metals is **Discovered**.

(5) For purposes of this Subsection (B), the term **Securities** shall include both **Securities** as defined in the Crime Coverage Part and securities as referenced in the Kidnap, Ransom & Extortion Coverage Part.

XXII. WORLDWIDE TERRITORY, APPLICATION OF LAW AND LIBERALIZATION

(A) With respect to the **Liability Coverage Parts**:

(1) This Policy shall apply anywhere in the world.

(2) If the **Parent Organization** requests a policy for issuance to its foreign **Subsidiaries** in their own countries, the Company or any subsidiary or affiliate of Chubb shall provide a quote to the **Parent Organization** for a GLS policy; provided that Chubb can support or facilitate the issuance of such GLS policy to such foreign **Subsidiary** in such foreign country. Coverage offered pursuant to the issued GLS policy may be subject to additional or different terms and conditions and payment of additional premium. Any coordination of coverage under such policy with coverage under this Policy shall be set forth in an

endorsement attached to this Policy. For the purposes of this Subsection, "GLS policy" means Chubb's current Good Local Standard liability policy, including any mandatory endorsements, sold within such **Foreign Jurisdiction** that provides coverage substantially similar to the coverage afforded under this Policy. "GLS policy" shall not include any partnership management, cyber liability, or professional liability coverages.

(3) Whether or not a policy is purchased pursuant to Paragraph (A)(2) above, where legally permissible, for **Loss** from that portion of any **Matter** maintained in a **Foreign Jurisdiction** or to which the law of a **Foreign Jurisdiction** is applied, the Company shall apply to such **Matter** those specific definitions and exclusions of the GLS policy in such **Foreign Jurisdiction** that are more favorable to such **Insured** than the comparable definitions and exclusions of this Policy. This Section XXII shall not apply to any policy provision addressing limits of liability (primary, excess or sublimits), retentions, other insurance or excess liability provisions, duty to defend, defense within or outside the limits, taxes, conformance to law, any claims made provisions, and any endorsement to this Policy that excludes or limits coverage for specific events or litigation, or that specifically states that it will have worldwide effect.

(B) With respect to the **Non-Liability Coverage Parts**:

(1) Coverage under the Crime Coverage Part, if applicable, shall extend to loss anywhere in the world.

(2) Coverage under the Kidnap, Ransom & Extortion Coverage Part and the Workplace Violence Expense Coverage Part, if applicable, shall extend to the Coverage Territory set forth in KRE and WPV portions of the Declarations, if applicable.

XXIII. ROLE OF PARENT ORGANIZATION

By acceptance of this Policy, the **Parent Organization** agrees that it shall be considered the sole agent of, and shall act on behalf of, each **Insured** with respect to:

(A) the payment of premiums and the receiving of any return premiums that may become due under this Policy;

(B) the negotiation, agreement to and acceptance of endorsements; and

(C) the giving or receiving of any notice provided for in this Policy (except the giving of notice to apply for an Extended Reporting Period in accordance with Section VI, Extended Reporting Period, the giving of notice of **Matter**, **Potential Claim** or circumstances in accordance with the Reporting section of the applicable **Liability Coverage Part**).

Each **Insured** agrees that the **Parent Organization** shall act on its behalf with respect to the foregoing.

CHUBB®

GEORGIA AMENDATORY ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			1
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
GENERAL TERMS AND CONDITIONS

In consideration of the premium charged, it is agreed that the Company may condition renewal of this Policy upon:

(1) an increase in premium (in addition to an increase in premium due to a change in risk or exposure) which exceeds fifteen percent (15%) of the current Policy's premium; or

(2) a change in any provision which limits or restricts coverage,

by mailing or delivering to the **Parent Organization** at least forty-five (45) days' advance written notice of such renewal changes.

The Policy will be deemed to have been amended to the extent necessary to effect the purposes of this Amendatory Endorsement.

The regulatory requirements set forth in this Amendatory Endorsement shall supersede and take precedence over any provisions of the Policy or any endorsement to the Policy, whenever added, that are inconsistent with or contrary to the provisions of this Amendatory Endorsement, unless such Policy or endorsement provisions comply with the applicable insurance laws of the state of Georgia.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB®

CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

Named Insured				Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC				2
Policy Number	Policy Period			Effective Date of Endorsement
J06814347	12-09-2025	to	12-09-2026	December 9, 2025
Issued By				
Federal Insurance Company				

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
General Terms and Conditions

In consideration of the premium charged, it is agreed that:

A. If aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed $100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds $100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

1. The act resulted in insured losses in excess of $5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and

2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

B. The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for any "loss" that is otherwise excluded under this Policy.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

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PREDETERMINED RUN-OFF ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			3
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
General Terms and Conditions

In consideration of the premium charged, it is agreed that:

(1) The Declarations is amended by adding the following:

Item 5. Run-Off Coverage Period:

(A) Additional Period: One Year(s)

Additional Premium: 100 % of Annualized Premium

(B) Additional Period: Three Year(s)

Additional Premium: 125 % of Annualized Premium

(C) Additional Period: Six Year(s)

Additional Premium: 150 % of Annualized Premium

(2) The second sentence of Section X, Acquisition of the Parent Organization, Subsection (C), is deleted and replaced with the following:

Coverage offered pursuant to the Run-off Quote may be subject to additional terms and conditions, and the payment of additional premium as set forth in Item 5 of the Declarations.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB®

ADDITIONAL INSURED ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			4
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
General Terms and Conditions

In consideration of the premium charged, it is agreed that this Policy is amended as follows solely with respect to the following Coverage Parts (each a "**Selected Coverage Part**"):

☒ Directors & Officers and Entity ☒ Employment Practices ☒ Fiduciary ☐ Crime

☐ Kidnap, Ransom & Extortion ☐ Employed Lawyers ☐ Workplace Violence

(1) Section II, Definitions, of the General Terms and Conditions is amended as follows:

(A) The definition of **Subsidiary** is amended to include any **Additional Insured**.

(B) The definition of **Additional Insured** is added as follows:

Additional Insured means any entity scheduled below subject to, if applicable, the respective Pending or Prior Proceedings Dates and/or Known Wrongful Acts Dates set forth below; provided:

(i) such entity has the same securityholders or members as the **Parent Organization** that, individually or collectively, own more than fifty percent (50%) of the outstanding securities or voting rights representing the present right to elect, appoint or exercise a majority control over such entity's directors, trustees, managers, members of the Board of Managers, or any functional equivalent thereof; or has the right, pursuant to written contract or the by-laws, charter, operating agreement or similar agreement, to elect, appoint or designate a majority of the board of directors or managers of such entity;

(ii) the **Organization** has the authority, whether by operation of law, stock ownership or membership or pursuant to contract, agreement or such entity's charter, articles of incorporation, or by-law provisions, to direct the operations and/or the financial or managerial decision making of such entity; or

(iii) such entity is a **Subsidiary** as defined in the General Terms and Condition of the Policy.

(2) Solely with respect to any **Additional Insured** scheduled above and any **Insured Person** thereof, the respective Pending or Prior Proceedings Dates set forth in Item 4 of the portion of the Declarations for each applicable **Selected Coverage Part** are deleted and replaced with the Pending or Prior Proceeding Dates set forth below.

(3) Solely with respect to any **Additional Insured** scheduled above and any **Insured** thereof, the **Control Group** (as defined in the applicable **Selected Coverage Part**) represent that no **Insured** has knowledge or information, as of the applicable Known Wrongful Acts Date set forth below, of any fact, circumstance or situation that could reasonably be expected to give rise to a **Matter** to which any applicable **Selected Coverage Part** set forth above would apply. Accordingly, if any such fact, circumstance or situation exists, the Company shall not be liable under any **Selected Coverage Part** set forth below for **Loss** on account of any **Matter** based upon, arising from or in consequence of any such fact, circumstance or situation.

(4) Coverage as is afforded under this endorsement with respect to an **Additional Insured** and any **Insured Person** thereof shall be provided:

(a) with respect to any **Liability Coverage Part**, solely for **Matters** for **Wrongful Acts**, facts or circumstances occurring after the respective date such **Additional Insured** became an **Additional Insured** pursuant to the terms and conditions set forth in (1)(B) above; or

(b) with respect to any **Non-Liability Coverage Part**, after the respective date the **Additional Insured** became an **Additional Insured** pursuant to the terms and conditions set forth in (1)(B) above, regardless of whether or not the loss was sustained prior to such date.

(5) If before or during the **Policy Period** an **Additional Insured** ceases to be an **Additional Insured** pursuant to the terms and conditions set forth in (1)(B) above, then coverage for such **Additional Insured** and any **Insured Person** thereof shall:

(a) with respect to any **Liability Coverage Part**, continue until termination of this Policy, but only for **Matters** for **Wrongful Acts**, facts or circumstances occurring while such **Additional Insured** was an **Additional Insured**; or

(b) with respect any **Non-Liability Coverage Part**, terminate subject to Section XIX, Termination of Policy.

Additional Insured	**Coverage Part (D&O/EPL/FL/ELL)**	**Pending or Prior Proceedings Date (or "N/A")**	**Known Wrongful Acts Date (or "N/A")**
Medical Business Management, LLC	D&O/EPL/Fiduciary	N/A	N/A
North Crescent Surgery Center, LLC	D&O/EPL/Fiduciary	December 9, 2024	December 9, 2024

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB

GTC ENHANCEMENT ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			5
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
GENERAL TERMS AND CONDITIONS

In consideration of the premium charged, it is agreed that the General Terms and Conditions are amended as follows:

(1) **AMEND DEFINITIONS**

Section II, Definitions, is amended as follows:

(A) The definition of **Application** is deleted and replaced with the following:

Application means any portion of an application given to the Company for this Policy, including any attachments, written information, written representations or written materials provided to the Company by, or on behalf of, an **Insured** during the negotiation of this Policy or for the purposes of the Company's underwriting of this Policy.

(B) The second sentence of the definition of **Organization** is deleted and replaced with the following:

Organization shall also mean any such entity as a debtor in possession or the bankruptcy estate of such entity under the United States bankruptcy law or the equivalent thereof in a **Foreign Jurisdiction**.

(C) Paragraph (C) of the definition of **Subsidiary** is deleted and replaced with the following:

(C) any foundation, charitable trust or political action committee while such entity is controlled by the **Parent Organization**;

(2) **AMEND RETENTION**

Section IV, Retention, paragraph (A), is amended to add the following:

With respect to the Directors & Officers and Entity Liability Coverage Part, the Company shall recognize any payment by an **Insured's** Side A/Difference in Conditions policy with respect to payment of an Insuring Clause (B) Retention and that such payment shall reduce, and may exhaust, the **Organization's** obligation to pay such Retention under this Section IV. Nothing in this paragraph shall preclude the Company from considering any of the terms, conditions, limitations and exclusions of this Policy in determining whether payment by the **Insured's** Side A/Difference in Conditions policy is for an otherwise covered **Matter** under this Coverage Part.

(3) **AMEND EXTENDED REPORTING PERIOD**

Section VI, Extended Reporting Period, is amended as follows:

(A) Paragraph (A) is amended to add the following:

However, in addition to the **Insured's** right to purchase the Extended Reporting Period set forth in Item 3 of the Declarations, if this Policy gives the **Insured** the ability to purchase Run-Off Coverage for a period greater than 1 year, then such Extended Reporting Period shall be automatically extended to match the Run-Off Coverage Period. The amended Extended Reporting Period shall be subject to the same terms, conditions and premium as the Run-Off Coverage.

(B) Paragraph (B) is deleted and replaced as follows:

(C) The right to purchase the Extended Reporting Period shall lapse unless written notice of election to purchase the Extended Reporting Period, together with payment of the applicable Additional Premium, is received by the Company no later than the effective date of a Termination of Coverage.

(C) Paragraph (E) is deleted and replaced as follows:

(E) The applicable Limits of Liability including any Sublimits for the Extended Reporting Period are part of, and not in addition to, any applicable Aggregate Limit of Liability for the **Policy Period** immediately preceding the Extended Reporting Period.

(4) **AMEND ACQUISITION OF THE PARENT ORGANIZATION**

Section X, Acquisition of the Parent Organization, is amended as follows:

(A) Paragraph (C) is amended to add the following:

Such additional premium for the Run-Off Quote shall be reduced by the amount of the unearned premium from the date of the acquisition through the expiration date of the **Policy Period**.

(B) The following paragraph is added:

(D) If the **Parent Organization** gives the Company written notice of a potential insolvency, bankruptcy, liquidation or any other restructuring, together with all information that the Company may require, the Company shall provide the **Parent Organization** with: (i) a quote for an extension of the **Policy Period** up to three-hundred sixty-five (365) days ("Extension Quote"); and (ii) an additional extension of the **Policy Period** of up to six (6) years solely for **Matters** for **Wrongful Acts**, or **Matters** arising out of facts or circumstances, first occurring prior to the expiration of the **Policy Period** (including, if applicable, an extension of the **Policy Period** purchased as part of the Extension Quote) ("Restructuring Related Run-Off Quote"). Coverage offered pursuant to the Extension Quote or Restructuring Related Run-Off Quote may be subject to additional or different terms and conditions and payment of additional premium. If the **Parent Organization** accepts the Extension Quote and/or Restructuring Related Run-Off Quote, the extension of coverage provided shall replace any extension of coverage that would otherwise be available to the **Insureds** pursuant to Section VI, Extended Reporting Period.

(5) **AMEND INDEMNIFICATION, SUBROGATION AND RECOURSE**

The last sentence of Paragraph (B) of Section VIII, Indemnification, Subrogation and Recourse, is deleted and replaced with the following:

It is understood and agreed that the Company shall not subrogate against any **Insured Person** and natural persons who are lawful spouses or domestic partners of **Insured Persons** under this Policy.

(6) **AMEND REPRESENTATIONS AND SEVERABILITY**

Paragraph (A) of Section XII, Representations and Severability, is deleted and replaced with the following:

(A) The Company, in issuing this Policy, has relied upon the written statements, written representations and written information in the **Application** as being true and accurate. The **Application** is the basis for, and considered incorporated into, this Policy and shall be construed as a separate request for coverage by each **Insured**.

(7) **AMEND STATE AMENDATORY INCONSISTENCY**

Section XIII, State Amendatory Inconsistency, is deleted and replaced with the following:

If there is an inconsistency between a state amendatory endorsement attached to this Policy and any other term or condition of this Policy (including any other endorsement attached thereto), the Company shall apply, where permitted by law, those terms and conditions either of such state amendatory endorsement or the Policy (including any other endorsement attached thereto) which are more favorable to the **Insured's** coverage, provided that, with respect to any time period relating to termination provided under this Policy, the Company shall apply the applicable state law.

(8) **AMEND SPOUSES, DOMESTIC PARTNERS, ESTATES AND LEGAL REPRESENTATIVES**

Section XVI, Spouses, Domestic Partners, Estates and Legal Representative, is amended to include the following:

For purposes of the coverage afforded under this Section, the term "domestic partner" shall include any natural person recognized as a domestic partner under the provisions of any formal company program or policy established by the **Organization**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

In consideration of payment of the premium and subject to the Declarations, General Terms and Conditions, and the limitations, conditions, provisions and other terms of this Coverage Part, the Company and the Insureds agree as follows:

I. INSURING CLAUSES

Insuring Clause (A): Individual Non-Indemnified Liability Coverage

(A) The Company shall pay, on behalf of an **Insured Person**, **Loss** on account of a **Claim** first made against the **Insured Person** during the **Policy Period**, to the extent that such **Loss** is not indemnified by an **Organization**.

Insuring Clause (B): Individual Indemnified Liability Coverage

(B) The Company shall pay, on behalf of an **Organization**, **Loss** on account of a **Claim** first made against an **Insured Person** during the **Policy Period**, to the extent the **Organization** indemnifies the **Insured Person** for such **Loss** as permitted or required by law.

Insuring Clause (C): Entity Liability Coverage

(C) The Company shall pay, on behalf of an **Organization**, **Loss** on account of a **Claim** first made against the **Organization** during the **Policy Period**.

II. COVERAGE EXTENSIONS

(A) **Inquiry Coverages**

(1) **Securityholder or Member Inquiry Coverage**

(a) **Derivative Demand Investigation Coverage**

The Company shall pay, on behalf of an **Organization**, **Defense Costs** on account of a **Derivative Demand Investigation** first made during the **Policy Period**. No Retention shall apply to **Defense Costs** under this Inquiry Coverage (A)(1)(a).

(b) **Appraisal Action Coverage**

The Company shall pay, on behalf of an **Insured**, **Loss** on account of an **Appraisal Action** first made during the **Policy Period**.

(c) **Books and Records Request Coverage**

The Company shall pay, on behalf of an **Insured**, **Defense Costs** on account of a **Books and Records Request** first made during the **Policy Period.**

(2) **Written Request to Toll or Waive a Statute of Limitations Coverage**

The Company shall pay, on behalf of an **Insured**, **Defense Costs** incurred solely by such **Insured** in responding to a written request to toll or waive a statute of limitations, first made during the **Policy Period**, applicable to a potential **Claim**.

(B) **Regulatory Fraud Coverage**

The Company shall pay, on behalf of an **Insured**, **Loss** on account of a **Regulatory Fraud Matter** first made against the **Insured** during the **Policy Period**.

(C) **Clinical Trial Coverage**

The Company shall pay, on behalf of an **Insured**, **Loss** on account of a **Clinical Trial Matter** first made against the **Insured** during the **Policy Period**.

(D) **Early Engagement Expense Coverage**

In the event of any **Pre-Matter Expense**, **Pre-Tender Expense** or **Early Settlement Opportunity**, an aggregate amount not to exceed the lesser of: (1) $25,000; or (2) fifty percent (50%) of the applicable Retention, shall qualify as **Loss** solely for the purpose of exhaustion of the applicable Retention. Once the applicable Retention has been exhausted, any **Pre-Matter Expense** or **Pre-Tender Expense** shall no longer qualify as covered **Loss** under this Coverage Part.

Coverage provided herein shall not be deemed to waive the Company's rights hereunder or limit the **Insured's** right to receive coverage for **Loss** incurred following the reporting of a **Matter**.

(E) **Additional Limit of Liability Dedicated for Executives**

The Additional Limit of Liability Dedicated for **Executives** as set forth in Item 4(C) of the D&O portion of the Declarations, which amount is in addition to, and not part of, the Aggregate Limit of Liability set forth in Item 4(A) of the D&O portion of the Declarations, shall be available to any **Executive** solely with respect to any **Loss** resulting from any **Matter** against an **Executive** that is not indemnified by an **Organization**.

Coverage Extensions (A) through (C) shall be subject to any applicable Limit of Liability, Sublimit and Retention set forth in the D&O portion of the Declarations and this Policy. Except as otherwise set forth in Coverage Extensions (B) and (C) above, no coverage shall be provided under any Insuring Clause or Coverage Extension for a **Regulatory Fraud Matter** or a **Clinical Trial Matter**.

III. DEFINITIONS

For purposes of this Coverage Part:

Appraisal Action means any written demand or proceeding brought by a securityholder or member of an **Organization** against an **Insured** pursuant to any **Global Law** which provides appraisal rights to determine the value of such **Organization's** securities.

Asset Protection Costs means that portion of **Defense Costs** constituting reasonable costs, charges, fees, and expenses incurred by an **Executive**, with the Company's consent, to oppose any efforts by an **Enforcement Unit** to seize or otherwise enjoin the personal assets or real property of such **Executive** or to obtain the discharge or revocation of a court order entered during the **Policy Period** that in any way impairs the use thereof.

Antitrust Matter means any **Matter** based upon, arising from, or in consequence of an **Antitrust Wrongful Act**.

Antitrust Wrongful Act means any price fixing, restraint of trade, monopolization, unfair trade practices, or any violation of the Federal Trade Commission Act, the Sherman Antitrust Act, the Clayton Act, or any other **Global Law** involving antitrust, monopoly, price fixing, price discrimination, predatory pricing or restraint of trade activities.

Board Observer means any natural person formally designated or invited to act as an observer at formal board meetings or committee meetings of the duly elected or appointed directors of an **Organization** pursuant to a written agreement with such **Organization**.

Books and Records Request means any written demand or proceeding brought by a securityholder or member of an **Organization** pursuant to any federal, state or local statutory law which provides a right to inspect the **Organization's** books and records.

Claim means any:

(A) written demand (other than an **Inquiry**, subpoena or other investigatory instrument):

(1) for monetary or non-monetary (including injunctive) relief; or

(2) for arbitration, mediation, or other equivalent alternative dispute resolution proceeding,

against an **Insured** for a **Wrongful Act**, commenced by the first receipt of such demand by an **Insured**;

(B) proceeding, including any appeal therefrom, against an **Insured** for a **Wrongful Act**, commenced by:

(1) the service of a civil complaint or similar pleading, or any foreign equivalent thereof;

(2) the service of a notice of charges or foreign equivalent thereof; or

(3) an arrest, the return of an indictment, information or any foreign equivalent thereof, or the receipt of an official request for **Extradition**; or

(C) investigation by an **Enforcement Unit** against an **Insured Person** for a **Wrongful Act**, commenced by the service of a written request from such **Enforcement Unit** upon an **Insured Person** compelling witness testimony or document production and identifying such **Insured Person** as the target of such investigation, including a subpoena, civil investigative demand, grand jury subpoena, search warrant, target letter or Wells notice; provided that the Company shall take into reasonable consideration all extrinsic evidence presented by the **Insured Person** when determining whether such written request identifies such **Insured Person** as a target of such investigation;

provided that **Claim** shall not include any **Inquiry** or, except as otherwise provided in Subsection (C) above, any civil, criminal, administrative or regulatory inquiry or investigation.

Claim Services means the submission, handling, investigation, adjudication, denial, payment or adjustment of claims for benefits or coverage under healthcare, behavioral health, prescription drug, dental, vision, disability or workers' compensation plans or other similar plans, including any actual or alleged lack of good faith or unfair dealing in the handling of any claim or obligation under any **Insurance Contract**.

Clinical Trial means any organized study that adheres to a formal written protocol and which provides clinical data for the assessment of the effects of a pharmaceutical, biologic, or medical device on humans.

Clinical Trial Matter means any **Matter** brought or maintained solely by a government or regulatory body arising out of a **Clinical Trial**; provided that such **Matter** shall not include any **Regulatory Fraud Matter**, **Antitrust Matter** or **Claim** as defined in Subsection (C) above. Except as otherwise set forth in this definition or unless otherwise covered as a **Regulatory Fraud Matter** or **Antitrust Matter**, no coverage shall be provided under this Coverage Part for any **Matter** arising out of a **Clinical Trial**.

Control Group means the chief executive officer, chief financial officer or in-house general counsel, or any person with the responsibility for the management of insurance claims (or any equivalent position to any of the foregoing) of an **Organization**.

De Facto Director means a natural person who is expressly recognized by **Global Law** or by a court of competent jurisdiction as a "de facto" director of an **Organization** and, as result of such recognition, would incur liability as if such natural person were a duly elected or appointed director of such **Organization**.

Defense Costs means that part of **Loss** consisting of the following:

(A) reasonable costs, charges, fees (including attorneys' fees, experts' fees and the cost of **E-Discovery Specialist Services**), and expenses (other than regular or overtime wages, salaries, fees, or benefits of **Insured Persons**) incurred in:

(1) investigating, defending, opposing or appealing any **Claim** and the premium for appeal, attachment, or similar bonds;

(2) a **Securityholder or Member Inquiry**; or

(3) responding to a written request to toll or waive a statute of limitations; or

(B) **Asset Protection Costs**.

Derivative Demand Investigation means an investigation by an **Organization** solely to determine whether it is in the best interest of such **Organization** to pursue the claims alleged in a derivative demand.

Early Settlement Opportunity means any settlement recommended by the Company within the Limit of Liability set forth in Item 4(A) of the D&O portion of the Declarations which is agreed to by the claimant where: (A) the **Insureds** consent to such settlement within thirty (30) days of the date the **Insureds** are first made aware of such opportunity to settle; (B) such consent occurs within the first ninety (90) days after the **Matter** is first reported to the Company; and (C) such **Matter** is reported to the Company within the first thirty (30) days after it is made. The **Insured** agrees not to settle or offer to settle any **Claim** or otherwise assume any contractual obligation or admit any liability with respect to any **Matter** without the Company's written consent, which shall not be unreasonably withheld. The Company shall not be liable for any settlement assumed obligation or admission to which it has not consented.

E-Discovery means the review, development, collection, cataloging and/or production of electronically stored information in connection with the defense of a **Matter**.

E-Discovery Specialist Services means only the following services performed by an **E-Specialist Firm**:

(A) assisting the **Insured** with managing and minimizing the internal and external costs associated with **E-Discovery**;

(B) assisting the **Insured** in developing or formulating an **E-Discovery** strategy which shall include interviewing qualified and cost-effective **E-Discovery** vendors;

(C) serving as project manager, advisor and/or consultant to the **Insured**, defense counsel and the Company in executing and monitoring the **E-Discovery** strategy; and

(D) such other services provided by the **E-Specialist Firm** that the **Insured**, Company, and **E-Specialist Firm** agree are reasonable and necessary given the circumstances of the **Matter**.

E-Specialist Firm means the e-discovery consultant firms approved by the Company.

Employee means any natural person whose labor or service is, was or will be engaged and directed by an **Organization**, including a part-time, seasonal, leased or temporary employee, intern or volunteer. **Employee** shall not include any **Independent Contractor**.

EMTALA Matter means any **Matter** brought or maintained solely by a government or regulatory body alleging a violation of the Emergency Medical Treatment and Active Labor Act, 42 U.S.C., 1396dd et seq., or any similar state or local statutory law ("**EMTALA**"). Except as otherwise set forth in this definition, no coverage shall be provided under this Coverage Part for any **Matter** arising out of **EMTALA**.

Enforcement Unit means any federal, state, local, provincial or foreign law enforcement or governmental authority worldwide (including the Office of Inspector General, Internal Revenue Service,

Federal Drug Administration, Department of Health and Human Services, Centers for Medicare & Medicaid Services, U.S. Department of Justice, the U.S. Securities and Exchange Commission, or any attorney general).

Executive means any natural person who was, now is or shall become:

(A) a duly elected or appointed director, officer, manager, or member of the Board of Managers, the Advisory Board or any duly constituted committee, or the in-house general counsel of any **Organization** incorporated, formed or organized in the United States of America;

(B) a holder of an equivalent position to those described in Subsection (A) above in any **Organization** incorporated, formed or organized in a **Foreign Jurisdiction**; or

(C) a **Board Observer** or **De Facto Director** of an **Organization** but only if such **Organization** has indemnified such **Board Observer** or **De Facto Director** as any director or officer of an **Organization**, to the fullest extent permitted by: (1) any **Global Law**; or (2) any contract or agreement providing an indemnification obligation exceeding such law.

Excess Benefit means an excess benefit as defined in the Taxpayer Bill of Rights Act 2, 26 U.S.C. 4958.

Extradition means any formal or written process by which an **Insured Person** located in any country is surrendered, or sought to be surrendered, to any other country for trial or otherwise to answer any criminal accusation, including the execution of an arrest warrant where such execution is an element of such process.

Financial Impairment means the status of an **Organization** resulting from:

(A) the appointment by a state or federal official, agency or court of any receiver, conservator, liquidator, trustee, rehabilitator or similar party (including a creditors' committee, if applicable) or foreign equivalent thereof empowered to initiate the assumption of control, supervision, management, or liquidation of such **Organization**; or

(B) such **Organization** becoming a debtor in possession under United States bankruptcy law or the equivalent of a debtor in possession under the law of any **Foreign Jurisdiction**;

provided that the court or other judicial or administrative body overseeing the receivership, conservatorship, liquidation, rehabilitation, bankruptcy or equivalent proceeding has denied a request by the **Organization**, or other party determined to have standing, for authorization of the **Organization** to indemnify an **Insured Person** for **Loss**; provided further that, the Company may, in its sole discretion, waive the foregoing requirement.

Independent Contractor means any natural person working for an **Organization** in the capacity of an independent contractor and pursuant to an **Independent Contractor Services Agreement**.

Independent Contractor Services Agreement means any written contract or agreement between an **Independent Contractor**, or any entity on behalf of such **Independent Contractor**, and the **Organization**, governing the nature of the **Organization's** engagement of such **Independent Contractor**.

Inquiry means a **Securityholder or Member Inquiry** or written request to toll or waive the statute of limitations. An **Inquiry** is commenced by first receipt by an **Insured** of any applicable written demand or request.

Insurance Contract means any policy or agreement of insurance, reinsurance or indemnity, including any bond, annuity, or endowment; healthcare, dental, life or disability insurance plan or product; pension contract and risk management self-insurance program, pool or similar program; and any policy or program of stop loss or provider excess insurance, reinsurance or self-insurance.

Insured means any **Organization** and **Insured Person**.

Insured Person means any:

(A) **Executive**;

(B) **Employee**;

(C) **Independent Contractor** working for an **Organization**, but only while acting in his or her capacity as such and only if the **Organization** agrees in writing, prior to or no later than thirty (30) days after a **Matter** is reported to the Company, to indemnify the **Independent Contractor** for liability arising out of such **Matter**; or

(D) staff physician, nurse or medical director of an **Organization**, regardless of whether or not such person is directly employed by an **Organization** or is considered an **Independent Contractor** as set forth in (C) above.

Loss means the amount which an **Insured** becomes legally obligated to pay as a result of any **Matter**, including:

(A) **Defense Costs**, compensatory damages, judgments, including pre-judgment and post-judgment interest;

(B) settlements, including that portion of any settlement which represents claimant's attorney's fees;

(C) punitive, exemplary or multiplied damages, if and to the extent such damages are insurable under the law of the jurisdiction most favorable to the insurability of such damages, provided such jurisdiction has a substantial relationship to the relevant **Insureds**, to the Company, or to the **Matter** giving rise to such damages;

(D) civil fines or civil penalties: (1) assessed pursuant to a **Tax Matter** or **EMTALA Matter**; or (2) assessed against an **Insured Person** for a violation of **Global Law** including civil fines or penalties assessed against an **Insured Person** pursuant to 15 U.S.C. §78dd-2(g)(2)(B) (the Foreign Corrupt Practices Act), if and to the extent that such violation is neither intentional nor willful and only if such fines or penalties are insurable under the law of the jurisdiction in which such fines or penalties are assessed;

(E) **Excess Benefit** penalties assessed in the amount of ten percent (10%) by the Internal Revenue Service against any **Insured** for management's involvement in the award of an **Excess Benefit**; and

(F) the premium for a bail bond, if bail is available for an **Extradition** in the country at issue, provided the Company shall be under no obligation to provide such bail bond;

provided that **Loss** does not include any portion of such amount that constitutes any:

(1) cost incurred to comply with any order for non-monetary (including injunctive) relief, or to comply with any agreement to provide such relief;

(2) amount uninsurable under the law pursuant to which this Coverage Part is construed; provided that the Company shall not assert that any amount attributable to violations of Sections 11, 12 or 15 of the Securities Act of 1933, as amended, is subject to this Subsection (2), unless such amount is determined to be uninsurable in a final, non-appealable adjudication in the underlying action or proceeding (other than a declaratory or equivalent action or proceeding brought by or against the Company);

(3) amount that represents, or is substantially equivalent to, an increase in the consideration paid (or proposed to be paid) in an acquisition or merger (or proposed acquisition or merger) of more than fifty percent (50%) of the outstanding securities or other ownership interest of an entity, including an **Organization**, or in the right to vote for election of, or to appoint, more than fifty percent (50%) of the directors, manager, member of the Board of Managers, or the equivalent of such positions, of an entity, including an **Organization**; provided that this Subsection (3) shall not apply to any amount otherwise covered under Insuring Clause (A), Individual Non-Indemnified Liability Coverage;

(4) (a) twenty-five percent (25%) penalty assessed by the Internal Revenue Service against an **Insured** deemed to have received an **Excess Benefit**; (b) **Defense Costs** incurred to defend an **Insured Person** if it has been determined in fact that such **Insured Person** received an **Excess Benefit**; or (c) two-hundred percent (200%) penalty assessed by the Internal Revenue Service for failure to correct the award of an **Excess Benefit**;

(5) taxes, fines or penalties, except as provided in Subsections (C) through (E) above;

(6) cost incurred in cleaning-up, removing, containing, treating, detoxifying, neutralizing, assessing the effects of, testing for, or monitoring **Pollutants**;

(7) **Pre-Matter Expense** or **Pre-Tender Expense**, except as provided under the Early Engagement Expense Coverage set forth in Section II(D) of this Coverage Part; or

(8) amount that represents, or is substantially equivalent to, a payment, overpayment, return, reimbursement, disgorgement or restitution requested or required to be repaid by an **Insured**, or any amount owed under any contract, including an employment contract, or a partnership, stock or other ownership agreement.

Managed Care Activity means any of the following services or activities: (A) **Utilization Review**; (B) **Claim Services**; (C) reviewing the quality of **Medical Services** or providing quality assurance, wellness or health promotion education, including participation at health fairs and the administration of any vaccination, cholesterol and blood pressure tests; (D) the development or implementation of clinical guidelines, practice parameters or protocols; (E) the design or implementation of financial incentive plans, including compensation programs based upon process and quality measures; (F) establishing healthcare, dental, vision, behavioral health, and pharmacy networks; (G) pharmaceutical formulary development and management; (H) triage for payment of **Medical Services**; (I) advertising, marketing, selling or servicing healthcare, workers' compensation, dental, vision, behavioral health, prescription drug, or disability plans or any other **Insurance Contract**; (J) any actual or alleged conduct of any **Insured** in the negotiation, placement or maintenance of any **Insurance Contract**; (K) the administration or management of healthcare, workers' compensation, dental, vision, behavioral health, prescription drug or disability plans; and (L) the disciplining, evaluating, selecting, de-selecting, contracting, credentialing, privileging or peer review of any provider of **Medical Services**.

Managed Care Organization means any health maintenance organization, preferred provider organization, or any similar organization which provides, or arranges to provide, healthcare services to members under a written contract or agreement.

Matter means any **Claim** or **Inquiry**.

Medical Services means any healthcare, medical care, or treatment provided to others, including: (A) medical, surgical, dental, psychiatric, mental health, chiropractic, osteopathic, nursing or other professional healthcare; (B) the use, prescription, furnishing or dispensing of medications, drugs, blood, blood products or medical, surgical, dental or psychiatric supplies, equipment or appliances in connection with (A) above; (C) the furnishing of food or beverages in connection with (A) above; (D) counseling or other social services in connection with (A) or (B) above; (E) the handling of, or the performance of post-mortem examinations on human bodies; (F) any services in connection with any **Clinical Trial**, whether or not the trial adheres to a formal written protocol; and (G) failure to properly select, train, retain, evaluate, or supervise any provider of services, including any actual or alleged defects in the disciplining, evaluating, selecting, de-selecting, contracting, credentialing, privileging or peer review process.

Network Security or Privacy Breach means any:

(A) unauthorized or unlawful access to, alteration of, or damage to any computer, computer program, computer network or computer database, including the infection of any of the foregoing through the transmission of a computer virus, malware, spyware or other fraudulent or unauthorized computer code that: (1) modifies, alters, damages, destroys, deletes, records or transmits information; (2) contaminates other computer programs or computer data; or (3) consumes computer resources or in some fashion usurps the normal operation of a computer system;

(B) denial of service or delay, disruption, impairment or failure of any computer network, communication network, technology, information or telecommunication network, service, hardware or software;

(C) unauthorized or unlawful access to, disclosure of, alteration of, theft, collection, storage, use or dissemination of, or loss of any data or confidential or proprietary business information or personally identifiable information as defined by: (1) applicable **Global Law**; or (2) an **Organization's** publicly stated privacy policy;

(D) violation of any privacy protection or data security **Global Law**, including the Health Insurance Portability and Accountability Act of 1996 (HIPAA), any amendments thereto or amendments pursuant to the Health Information Technology for Economic and Clinical Health Act (HITECH) of 2009; or

(E) violation of any **Global Law** used to impose liability in connection with any unsolicited communication, distribution, publication, sending or transmission via telephone, cell or mobile phone, telephone facsimile machine, computer or other telephonic or electronic devices, including the United States of America Telephone Consumer Protection Act of 1991, United States of America CAN-SPAM Act of 2003, as amended.

Outside Capacity means service by an **Insured Person** in an **Outside Entity** as a: (A) director or officer; (B) manager or member of the Board of Managers; (C) trustee, regent, or governor; or (D) equivalent executive position of any of the foregoing, but solely during the time that such service is with the knowledge and express consent of an **Organization**.

Outside Entity means:

(A) any non-profit corporation, community chest, fund or foundation that is exempt from federal income tax as an entity described in Section 501(c)(3), 501(c)(4), 501(c)(7) or 501(c)(10) of the Internal Revenue Code of 1986, as amended, or any other entity organized for a religious or charitable purpose under any non- profit organization act or statute; or

(B) any other entity specifically added as an **Outside Entity** by written endorsement attached to this Coverage Part;

that is not an **Organization**.

Pollutants means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals, asbestos, asbestos products or waste. Waste includes medical waste or materials to be recycled, reconditioned or reclaimed.

Pre-Matter Expense means reasonable costs, charges fees (including attorneys' fees and experts' fees) and expenses (other than regular or overtime wages, salaries, fees, or benefits of **Insured Persons**) incurred in investigating, defending, opposing or appealing a notice of circumstance if such circumstance has been reported under Subsection (D) of Section V, Reporting, and a **Matter** subsequently arises out of such circumstance.

Pre-Tender Expense means reasonable costs, charges, fees (including attorneys' fees and experts' fees) and expenses (other than regular or overtime wages, salaries, fees or benefits of **Insured Persons**) incurred in investigating, defending, opposing or appealing any **Matter** before such **Matter** has been reported under Subsections (A) or (B) of Section V, Reporting.

Professional Services means services, other than **Medical Services**, which are performed for others for a fee.

Provider Selection Matter means any **Matter** for a **Provider Selection Wrongful Act** brought or maintained by a provider of **Medical Services** registered or licensed to perform services pursuant to federal, state or applicable local government.

Provider Selection Wrongful Act means any act, error, omission, or breach of duty (including any discrimination or retaliation) committed as part of the disciplining, evaluating, selecting, de-selecting, contracting, credentialing, privileging or peer review process; provided any such act or process is performed by, or on behalf of, an **Organization** which is not a **Managed Care Organization**.

Regulatory Fraud Matter means any **Matter**, including any proceeding brought or maintained by an **Enforcement Unit** or by a relator in a qui tam action, for a **Regulatory Fraud Wrongful Act**; provided that a **Regulatory Fraud Matter** shall not include any routine or regularly scheduled regulatory inspection, compliance, review, examination, production or audit, including any request for mandatory information from a regulated entity, conducted in the normal review or compliance process of the **Organization** by any administrative, government or regulatory agency or entity, authority, commission, department, division or similar body of any kind. No coverage for a **Regulatory Fraud Matter** shall be provided under this Coverage Part except as set forth in Coverage Extension (B).

Regulatory Fraud Wrongful Act means any actual or alleged violation by an **Insured** of the responsibilities, obligations or duties imposed by the Federal False Claims Act or any similar **Global Law**, or any anti-kickback, self-referral, or healthcare fraud and abuse **Global Law**.

Securityholder or Member Inquiry means any**:**

(A) **Derivative Demand Investigation**;

(B) **Appraisal Action**; or

(C) **Books and Records Request**.

Securityholder or Member Matter means any:

(A) **Claim** against an **Insured** for a violation of any **Global Law** relating to securities brought by: (1) a securityholder of an **Organization** solely in connection with such securityholder's interest in the securities of such **Organization**, or (2) any person or entity solely in connection with the purchase or sale of, or offer to purchase or sell securities of an **Organization**;

(B) **Claim** brought as a securityholder derivative demand or action, on behalf of an **Organization** against an **Insured Person** or the **Organization** (in the **Organization's** capacity as a nominal defendant);

(C) **Securityholder or Member Inquiry**, subject to the Sublimit set forth in Item 4(A) of the D&O portion of the Declarations; or

(D) other **Matter** which is brought by or on behalf of one or more securityholders or members of an **Organization** in their capacity as such;

provided such **Securityholder or Member Matter** is brought without the solicitation, assistance, active participation, or intervention of any **Executive**.

Tax Matter means a **Matter** brought or maintained by the Internal Revenue Service seeking an assessment of taxes, initial taxes, additional taxes, tax deficiencies, excise taxes or penalties pursuant to the Internal Revenue Code of 1986, as amended, ("**IRC**") but only so long as, the **Insureds** relied upon, with respect to such **Matter**: (A) the written advice of tax counsel licensed to practice law in the United States of America or a Certified Public Accountant; or (B) a tax return prepared by a Certified Public Accountant. Except as otherwise set forth in this definition, a **Tax Matter** shall not include any **Matter** brought or maintained by the Internal Revenue Service.

Utilization Review means the process of evaluating the appropriateness, necessity or cost of **Medical Services** for purposes of determining whether payment or coverage for such **Medical Services** will be authorized or paid for under any healthcare plan, including the prospective review of proposed payment or coverage for **Medical Services**, concurrent review of ongoing **Medical Services**, retrospective review of already rendered **Medical Services** or already incurred costs, disease management, and case management.

Wrongful Act means:

(A) any actual or alleged error, misstatement, misleading statement, act, omission, neglect, breach of duty, **Antitrust Wrongful Act** or **Provider Selection Wrongful Act** committed, attempted, or allegedly committed or attempted by: (1) an **Insured Person** while acting in his or her capacity as such, or in an **Outside Capacity**; or (2) for purposes of coverage under Insuring Clause (C), Entity Liability Coverage, an **Organization**;

(B) for purposes of coverage under Coverage Extension (B), a **Regulatory Fraud Wrongful Act**; or

(C) any other matter claimed against an **Insured Person** solely by reason of serving in his or her capacity or status as such.

IV. EXCLUSIONS

(A) EXCLUSIONS APPLICABLE TO ALL INSUREDS

The Company shall not be liable for any **Loss** on account of any **Matter**:

(1) Prior Notice

based upon, arising from or in consequence of any **Wrongful Act**, fact, circumstance or **Matter** that was the subject of any notice accepted under any prior management liability coverage;

(2) Pending or Prior Proceedings

based upon, arising from or in consequence of any written demand first received by, or action, proceeding, **Matter** or **Matter** that is **Related** commenced against any **Insured**, on or prior to the applicable Pending or Prior Proceedings Date set forth in Item (F) of the D&O portion of the Declarations;

(3) Bodily Injury/Property Damage

based upon, arising from or in consequence of any bodily injury, mental anguish, humiliation, emotional distress, sickness, disease or death of any person or damage to or destruction of any tangible property, including loss of use thereof, whether or not it is damaged or destroyed; provided that this Exclusion (A)(3) shall not apply to a **Loss** on account of any: (a) **Provider Selection Matter**, (b) **Clinical Trial Matter**; (c) **EMTALA Matter**; or (d) **Securityholder or Member Matter**;

(4) Pollution

based upon, arising from or in consequence of any: (a) discharge, emission, release, dispersal or escape of any **Pollutants** or any threat thereof; (b) treatment, removal or disposal of any **Pollutants**; or (c) regulation, order, direction or request to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize any **Pollutants**; provided that this Exclusion (A)(4) shall not apply to **Loss** on account of any: (i) **Matter** against an **Insured Person** that is not indemnified by an **Organization**; or (ii) **Securityholder or Member Matter**;

(5) ERISA

for any violation of the responsibilities, obligations or duties imposed by Employee Retirement Income Security Act of 1974 (including amendments relating to the Consolidated Omnibus Budget Reconciliation Act of 1985, and the Health Insurance Portability and Accountability Act of 1996), all as amended, or any similar **Global Law**;

(6) Insured versus Insured

brought by or on behalf of: (a) an **Insured** in any capacity; (b) an **Outside Entity** against an **Insured Person** serving in an **Outside Capacity**; or (c) a securityholder or member of an **Organization** with the solicitation, assistance, active participation or intervention of any **Executive** against an **Insured**; provided that this Exclusion (A)(6) shall not apply to any:

(i) **Securityholder or Member Matter**;

(ii) **Provider Selection Matter**; or

(iii) other **Matter**:

a. brought against an **Insured Person**:

1. outside the United States of America or Canada;

2. while an **Organization** is in **Financial Impairment**;

3. for employment-related **Wrongful Acts** if the **Loss** is not indemnified by the **Organization**; or

4. for contribution or indemnity arising from another **Matter** otherwise covered under this Coverage Part;

b. brought by an **Executive** who has ceased serving in his or her capacity as an **Executive** for at least one (1) year; or

c. brought by a whistleblower pursuant to any **Global Law**;

(7) Publicly Traded Securities

based upon, arising from or in consequence of: (a) any public offering of securities issued by any **Organization** or **Outside Entity**; or (b) the violation of any **Global Law** relating to securities, including the Securities Act of 1933 and the Securities Exchange Act of 1934, all as amended; provided that this Exclusion A(7) shall not apply to **Loss** on account of any **Matter**:

(i) based upon, arising from or in consequence of an offering, sale or purchase of:

a. securities that are not required to be registered under the Securities Act of 1933 or any **Global Law** that regulates the offering, sale or purchase of securities, including an offering, sale or purchase made pursuant to Regulation D or Regulation S under the Securities Act of 1933 or Titles II, III or IV of the JOBS Act, all as amended; or

b. debt securities, provided such securities were offered to the public prior to the **Policy Period**;

(ii) made by any securityholder of an **Organization** for the failure of the **Organization** to undertake or complete the initial public offering or sale of securities of the **Organization**; or

(iii) for any **Wrongful Act** relating to an **Organization's** preparation for any public offering, including any road show presentation to potential investors or other similar presentation, made by the **Organization** and its **Executives** via any medium in connection with such public offering, if such offering does not occur;

(8) Conduct

based upon, arising from or in consequence of:

(a) any deliberate fraud, any deliberate criminal act, or any knowing and willful violation of any **Global Law**, by an **Insured**, provided that, for acts or omissions which are treated as a criminal violation in a **Foreign Jurisdiction** and that are not treated as a criminal violation in the United States of America, the imposition of a criminal fine or other criminal sanction in such **Foreign Jurisdiction** will not, by itself, be conclusive proof that a deliberate fraud, deliberate criminal act, or knowing and willful violation has occurred;

(b) an **Insured Person** having gained any personal profit, remuneration or other financial advantage to which such **Insured Person** was not legally entitled; or

(c) an **Organization** having gained any profit, remuneration or other financial advantage to which such **Organization** was not legally entitled,

established by a final, non-appealable adjudication in the underlying action or proceeding; provided that Paragraphs (8)(b) and (8)(c) above shall not apply to that portion of a **Securityholder or Member Matter** for a violation of Section 11, 12, or 15 of the Securities Act of 1933, as amended, to the extent such amount is insurable under the law pursuant to which this Coverage Part is construed;

(9) Employment-Related / Third-Party

based upon, arising from or in consequence of any employment-related **Wrongful Act**; or any discrimination against, or harassment, including sexual harassment of any third party; provided that this Exclusion (A)(9) shall not apply to **Loss** on account of any: (a) **Provider Selection Matter**; or (b) **Securityholder or Member Matter**;

(10) Personal Injury

based upon, arising from or in consequence of any libel, slander, oral or written publication of defamatory or disparaging material, wrongful entry, eviction, false arrest, false imprisonment, malicious prosecution, malicious use or abuse of process, assault, battery or loss of consortium; provided that this Exclusion (A)(10) shall not apply to **Loss** on account of any: (a) **Provider Selection Matter**; or (b) **Securityholder or Member Matter**;

(11) Medical Services

for a **Wrongful Act** in the rendering of, or the failure to render any **Medical Services**; provided that this Exclusion (A)(11) shall not apply to **Loss** on account of any: (a) **Regulatory Fraud Matter**; (b) **Provider Selection Matter**; (c) **Clinical Trial Matter**; or (d) **EMTALA Matter**;

(12) Managed Care

based upon, arising from or in consequence of the rendering of, or failure to render any **Managed Care Activity**; provided that this Exclusion (A)(12) shall not apply to **Loss** on account of any: (a) **Regulatory Fraud Matter**; (b) **Provider Selection Matter**; or (c) **Securityholder or Member Matter**;

(13) Professional Services

based upon, arising from or in consequence of the rendering of, or failure to render any **Professional Services**; provided that this Exclusion (A)(13) shall not apply to **Loss** on account of any: (a) **Regulatory Fraud Matter**; (b) **Provider Selection Matter**; (c) **Clinical Trial Matter**; (d) **EMTALA Matter**; or (e) **Securityholder or Member Matter**;

(14) Sexual Behavior

for any actual or alleged sexual abuse, sexual assault, or molestation, including any mental anguish or emotional distress resulting therefrom and the failure to supervise or report any person alleged to have engaged in such misconduct; provided that this Exclusion (A)(14) shall not apply to **Loss** on account of any **Provider Selection Matter**; or

(15) Network Security/Privacy Beach

based upon, arising from or in consequence of any **Network Security or Privacy Breach**, provided that this Exclusion (A)(15) shall not apply to **Loss** on account of any: (a) **Matter** against an **Insured Person** that is not indemnified by an **Organization**; or (b) **Securityholder or Member Matter**;

(16) Billing

for a **Wrongful Act** in the improper billing or collection of fees for **Medical Services** or any other services, provided that this Exclusion (A)(16) shall not apply to **Loss** on account of any **Regulatory Fraud Matter**.

(B) EXCLUSIONS APPLICABLE TO THE ORGANIZATION ONLY

The Company shall not be liable for any **Loss** on account of any **Matter** against an **Organization**:

(1) Contract

based upon, arising from or in consequence of any liability in connection with any written contract or agreement to which an **Organization** is a party; provided that this Exclusion (B)(1) shall not apply to: (a) **Loss** on account of any **Securityholder or Member Matter**; or (b) the extent that such **Organization** would have been liable in the absence of such contract or agreement;

(2) Goods/Products

based upon, arising from or in consequence of:

(a) any malfunction of any product or failure of any product to perform in any manner as a result of any defect, deficiency, inadequacy or dangerous condition in such product or in its design or manufacture; or

(b) any false advertising, misrepresentation in advertising or unfair or deceptive trade practices, with respect to or the labeling or advertising of the **Insured's** own goods, publications or services;

provided that this Exclusion (B)(2) shall not apply to **Loss** on account of any **Securityholder or Member Matter**; or

(3) Intellectual Property

based upon, arising from or in consequence of any infringement, misappropriation, or violation of copyright, patent, service marks, trademarks, trade secrets, title or other proprietary or licensing rights or intellectual property of any products, technologies or services; provided that this Exclusion (B)(3) shall not apply to **Loss** on account of any **Securityholder or Member Matter**.

For the purpose of determining the applicability of the foregoing Exclusion (A)(8) above: (i) the **Wrongful Acts,** conduct, or actual knowledge of, or facts pertaining to, one **Insured** shall not be imputed to any **Insured Person**; and (ii) solely with respect to Insuring Clause (C), the **Wrongful Acts**, conduct, or actual knowledge of, or facts pertaining to the **Control Group** of an **Organization** shall be imputed to such **Organization** and its **Subsidiaries**, provided that, the foregoing Subparagraph (ii) shall not preclude the application of Exclusion (A)(8) if the **Organization** is adjudicated in its own right.

V. REPORTING

(A) An **Insured** shall give to the Company written notice of any **Claim** as soon as practicable after the **Control Group** of an **Organization** becomes aware of such **Claim**, but in no event later than:

(1) if this Coverage Part expires (or is otherwise terminated) without being renewed with the Company, ninety (90) days after the effective date of such expiration or termination; or

(2) the expiration date of the Extended Reporting Period, if applicable;

provided that if the Company sends written notice to the **Parent Organization** stating that this Coverage Part is being terminated for nonpayment of premium, an **Insured** shall give to the Company written notice of such **Claim** prior to the effective date of such termination.

(B) The **Insureds**, at their discretion, may give to the Company written notice of any **Inquiry** no later than ninety (90) days after the **Control Group** first becomes aware of such **Inquiry**. No coverage shall be available under this Coverage Part for **Loss** on account of any unreported **Inquiry**.

(C) With respect to Subsections (A) and (B) above, such written notice to the Company shall be a condition precedent to coverage for any **Matter**. Provided, however, if the **Parent Organization** can prove to the Company's satisfaction that it was not reasonably possible for the **Insureds** to give such notice within the time periods set forth in Subsections (A) or (B) above and that subsequent notice was given as soon as reasonably possible thereafter, the Company shall waive the foregoing time period.

(D) If during the **Policy Period** an **Insured** gives written notice to the Company of any circumstance which could give rise to a subsequent **Matter**, then such **Matter** subsequently arising from such circumstance shall be deemed to have been first made during the **Policy Period** in which such written notice was first given by an **Insured** to the Company; provided any such subsequent **Matter** is reported to the Company as soon as practicable after the **Control Group** first becomes aware of such **Matter**.

(E) The **Insureds** shall give to the Company in any written notice described in Subsections (A), (B) or (D) above a description of the **Matter** or circumstance, the nature of any alleged **Wrongful Acts**, the nature of the alleged or potential damage, and the names of all actual or potential defendants.

VI. DEFENSE AND SETTLEMENT

(A) If Duty to Defend Defense is selected in Item 4(G) of the D&O portion of the Declarations, then:

(1) the Company shall have the right and duty to defend any **Matter** covered by this Coverage Part, including the right to select defense counsel from the current list of approved defense firms for the jurisdiction in which such **Matter** is pending;

(2) coverage shall apply even if any of the allegations are groundless, false or fraudulent; and

(3) the Company's obligation to pay **Loss**, including **Defense Costs**, or to defend or continue to defend any **Matter** shall cease upon exhaustion of the applicable Limit of Liability or Sublimit.

(B) If Reimbursement Defense is selected in Item 4(G) of the D&O portion of the Declarations, or, if the **Insured** has the duty to defend or exercises any legal right to appoint counsel for the defense of a **Matter** covered by this Coverage Part, then:

(1) the **Insured** shall have the duty to defend **Matters** made against the **Insured**, including the right to select defense counsel, subject to the Company's approval which shall not be unreasonably withheld;

(2) the **Insured** agrees that: (a) defense counsel shall adhere in all respects to the Company's Litigation Management Guidelines; and (b) **Defense Costs** shall not include any costs, charges, fees or expenses: (i) that are not billed in accordance with the hourly rates agreed to between the **Insured** and the Company; (ii) that do not adhere in all respects to the Company's Litigation Management Guidelines; (iii) related to travel incurred by any firm while traveling to, from or within any state in which such firm does not maintain an office; and (iv) incurred by or through the use of local counsel. The Company shall not be liable for any such **Defense Costs** unless incurred with the Company's written consent, which shall not be unreasonably withheld; and

(3) the Company shall advance covered **Defense Costs** on a current basis on account of a **Matter** reported pursuant to Section V, Reporting, on a current basis, but no later than sixty (60) days after receipt by the Company of bills or invoices detailing such **Defense Costs** and all other information reasonably requested by the Company with respect to such bills or invoices, until such time the Limit of Liability set forth in Item 4(A) of the D&O portion of the Declarations or any applicable Sublimit has been exhausted, whichever first occurs. Any advancement of **Defense Costs** shall reduce the Limit of Liability set forth in Item 4(A) of the D&O portion of the Declarations or any applicable Sublimit.

(C) With respect to Subsections (A) and (B) above:

(1) the **Insured** agrees not to settle or offer to settle any **Claim**, incur any **Defense Costs**, or otherwise assume any contractual obligation or admit any liability with respect to any **Matter** without the Company's written consent, which shall not be unreasonably withheld. The Company shall not be liable for any settlement, **Defense Costs**, assumed obligation or admission to which it has not consented;

(2) the **Insured** agrees, with respect to a **Matter**, to provide the Company with all information, assistance and cooperation which the Company may reasonably require and agrees that the **Insured** shall not do anything that could prejudice the Company's position or its potential or actual rights of recovery; provided that the failure of any **Insured** to give the Company such information, assistance or cooperation shall not impair the rights of any other **Insured Person** under this Coverage Part;

(3) in the event an **Organization** refuses in writing, or fails within sixty (60) days of an **Insured Person's** written request for indemnification, to advance, pay or indemnify an **Insured Person** for **Defense Costs** on account of a **Matter** reported pursuant to Section V, Reporting, the Company shall pay or advance covered **Defense Costs** on a current basis until such time that the **Organization** accepts an **Insured Person's** request for indemnification or the Limit of Liability set forth in Item 4(A) of the D&O portion of the Declarations or applicable Sublimit has been exhausted, whichever first occurs; and

(4) any payment or advancement of **Defense Costs** shall be repaid to the Company by the **Insureds**, severally according to their respective interests, if and to the extent it is determined that such **Defense Costs** are not insured under this Coverage Part; provided the Company shall not seek repayment from an **Insured** of any **Defense Costs** paid or advanced by the Company that are deemed uninsured pursuant to Exclusion (A)(8), Conduct, unless a final, non-appealable adjudication has occurred.

VII. ALLOCATION

(A) Except as provided in Subsection (B) below, if an **Insured** who is afforded coverage for a **Matter** incurs an amount consisting of both **Loss** that is covered by this Coverage Part and any amount that is not covered by this Coverage Part, then:

(1) one hundred percent (100%) of **Defense Costs** incurred by such **Insured** on account of such **Matter** shall be covered **Loss**; and

(2) with respect to loss other than **Defense Costs**, the **Insureds** and the Company shall use their best efforts to determine an allocation between **Loss** that is covered and any amount that is not covered based on the relative legal and financial exposures of the covered parties to the covered matters.

(B) Notwithstanding anything in (A) above, the **Insureds** and the Company shall use their best efforts to determine an allocation between **Loss** that is covered and any amount that is not covered based on the relative legal and financial exposures of the covered parties to the covered matters, if:

(1) Reimbursement Defense is selected in Item (G) of the D&O portion of the Declarations;

(2) the **Insured** has the duty to defend or exercises any legal right to appoint counsel for the defense of a **Matter** covered by this Coverage Part; or

(3) coverage with respect to any **Insured** is excluded, in whole or in part, pursuant to Exclusion (B)(2)(b), or Subsection XII(C), Representations and Severability of the General Terms and Conditions.

VIII. OTHER INSURANCE

(A) If any **Loss** under this Coverage Part is insured under any other valid and collectible insurance policy (other than a policy that is issued specifically as excess of the insurance afforded by this Coverage Part), this Coverage Part shall be excess of and shall not contribute with such other insurance, regardless of whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise.

(B) This Coverage Part shall be specifically excess of, and shall not contribute with, any valid and collectible insurance for privacy, network security or cyber liability, professional liability or general liability, regardless of whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise.

(C) The Additional Limit of Liability Dedicated For **Executives** set forth in Coverage Extension (E) shall be excess of any insurance available that is specifically excess to this Coverage Part and such excess insurance must be completely exhausted by payment of loss, damages or defense costs thereunder before the Company shall have any obligation to make any payment. Any coverage afforded under this Coverage Part for a **Matter** in connection with an **Insured Person** serving in an **Outside Capacity** for an **Outside Entity** shall be specifically excess of any indemnity (other than any indemnity provided by an **Organization**) and insurance available to such **Insured Person** by reason of serving in such **Outside Capacity**. Notwithstanding the foregoing, if the Company or any subsidiary or affiliate of Chubb Limited ("Chubb") makes payment under another coverage part or policy on account of such **Matter**, the applicable Limit of Liability for this Coverage Part with respect to such **Matte**r shall be reduced by the amount of such payment.

IX. CO-INSURANCE

To the extent that a **Matter** is subject to Co-Insurance as set forth in Item 4(E) of the D&O portion of Declarations, with respect to that part of **Loss** which is excess of the applicable Retention, the **Insured** shall bear uninsured and at their own risk that percentage of such **Loss** specified as the applicable Co-Insurance Percentage, and the Company's liability shall apply only to the remaining percentage of such **Loss**.

Manuscript Placeholder – to be drafted by Chubb Legal

Directors & Officers and Entity Liability Coverage Part

Draft Title: Controlled Substance Opioid Exclusion

Description: Controlled Substance Opioid Exclusion

CHUBB

RATE CAP REIMBURSEMENT ENDORSEMENT

Named Insured				Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC				7
Policy Number	Policy Period			Effective Date of Endorsement
J06814347	12-09-2025	to	12-09-2026	December 9, 2025
Issued By				
Federal Insurance Company				

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
DIRECTORS & OFFICERS AND ENTITY LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that Paragraph B(1) of Section VI, Defense and Settlement, of the Directors & Officers Entity Liability Coverage Part is deleted and replaced with the following:

(1) the **Insured** shall have the duty to defend **Matters** made against the **Insured**, including the right to select defense counsel; provided that: (a) such selection of defense counsel shall be subject to the Company's approval which shall not be unreasonably withheld; and (b) the Company's liability for **Defense Costs** incurred by defense counsel shall be subject to a maximum rate of: (i) $400 per hour for all work performed by partners, (ii) $300 per hour for all work performed by associates, and (iii) $125 per hour for all work performed by paralegals. Hourly fees in excess of the rates set forth in this Paragraph shall be uninsured. Moreover, payment by the **Insured** of any fees in excess of the rates set forth in this paragraph shall not reduce the applicable Retention;

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB®

CRISIS MANAGEMENT EXPENSE COVERAGE ENDORSEMENT

Named Insured				Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC				8
Policy Number	Policy Period			Effective Date of Endorsement
J06814347	12-09-2025	to	12-09-2026	December 9, 2025
Issued By				
Federal Insurance Company				

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Directors & Officers and Entity Liability Coverage Part

In consideration of the premium charged, it is agreed that the Directors & Officers and Entity Liability Coverage Part is amended as follows:

1. Section II, Coverage Extensions, is amended to add the following:

   Crisis Management Expense Coverage

   The Company shall pay, on behalf of an **Organization**, **Crisis Management Expenses** which the **Organization** becomes legally obligated to pay on account of a **Crisis Management Event** occurring during the **Policy Period**; provided that the Company's Maximum Aggregate Limit of Liability for all **Crisis Management Expenses** shall not exceed $25,000, which amount is part of, and not in addition to, the Company's Aggregate Limit of Liability as set forth in Item 4(A) of the D&O portion of the Declarations. No Retention shall apply to **Crisis Management Expenses** under this Coverage Extension.

2. Any **Insured** shall, as a condition precedent to exercising their rights under the Crisis Management Expense Coverage Extension, give to the Company written notice as soon as practicable of the **Crisis Management Event**, but in no event later than thirty (30) days after the commencement of such **Crisis Management Event**.

3. Section III, Definitions, is amended to add the following terms:

   Adverse Publicity means the publication of unfavorable information regarding an **Organization** which can reasonably be considered to materially reduce public confidence in the competence, integrity or viability of such **Organization**. Such publication must occur in a report about an **Insured** appearing in: (1) a daily newspaper of general circulation or (2) a radio or television news program.

   Crisis Management Expenses means the following reasonable expenses, incurred with the Company's prior written consent:

   (1) expenses incurred by a marketing firm, public relations firm, law firm or crisis management firm retained on behalf of the **Organization** to make a public communication or provide advice in order to prevent or minimize business disruption with respect to a **Crisis Management Event**;

   (2) expenses incurred by an **Organization** for the publication or circulation of materials in connection with a **Crisis Management Event**; or

   (3) travel expenses incurred by an **Insured Person** in connection with a **Crisis Management Event**

   Crisis Management Event means any of the following events which results in **Adverse Publicity**:

   (1) the unanticipated death, incapacity, resignation or federal or state criminal indictment of the chief executive officer or chief financial officer of an **Organization**

   (2) the intention to file or the actual filing for bankruptcy protection, whether voluntary or involuntary, by an **Organization**, or a third party on behalf of an **Organization**;

(3) the commencement or threat of litigation or other proceeding by any governmental or regulatory agency against an **Organization**;
(4) the unanticipated loss to an **Organization** arising from a product recall, a delay in production, loss of intellectual property rights (other than by expiration) or loss of a major customer or contract; or
(5) any other material event if such event is specifically added by written endorsement attached to this Coverage Part.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB®

REGULATORY FRAUD DEFENSE COST ONLY COVERAGE ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			9
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Directors & Officers and Entity Liability Coverage Part

In consideration of the premium charged, it is agreed that the Directors & Officers and Entity Liability Coverage Part is amended as follows:

1. Section II, Coverage Extensions, Subsection (B), Regulatory Fraud Coverage, is deleted and replaced with the following:

   (B) **Regulatory Fraud Defense Costs Only Coverage**

   The Company shall pay, on behalf of an **Insured**, **Defense Costs** on account of a **Regulatory Fraud Matter** first made against the **Insured** during the **Policy Period**.

2. Items 4(A)(2), of the D&O portion of the Declarations are deleted.

   (2) **Defense Costs** Sublimit for **Regulatory Fraud Matter**: $1,000,000

3. Any Exclusion carve-back for a "**Regulatory Fraud Matter**" in Section IV, Exclusions, shall be limited to **Defense Costs**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

Authorized Representative

CHUBB

D&O ENHANCEMENT ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			10
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
DIRECTORS & OFFICERS AND ENTITY LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that solely with respect to this Directors & Officers and Entity Liability Coverage Part, the following shall apply:

(1) **AMEND COVERAGE EXTENSIONS**

Section (A), Inquiry Coverages, Paragraph (1), Securityholder or Member Inquiry Coverage, of Section II, Coverage Extensions, of this Coverage Part, is amended to add the following:

Notwithstanding anything to the contrary, each Coverage Extension set forth in this Paragraph (A)(1) shall be subject to a separate Sublimit of Liability, which amount shall be a part of and not in addition to the Aggregate Limit of Liability, set forth in Item 4(A) of the D&O portion of the Declarations and this Policy.

(2) **AMEND DEFINITIONS**

Section III, Definitions, of this Coverage Part is amended as follows:

(A) The definition of **Control Group** is deleted and replaced with the following:

Control Group means the chief executive officer, president, chief financial officer (or any equivalent position to any of the foregoing) of an **Organization**.

(B) Paragraph (C) of the definition of **Claim** is deleted and replaced with the following:

(C) investigation by an **Enforcement Unit** against an **Insured** for a **Wrongful Act**, commenced by the service of a written request from such **Enforcement Unit** upon an **Insured Person** compelling witness testimony or document production and identifying such **Insured Person** as the target of such investigation, including a subpoena, civil investigative demand, grand jury subpoena, search warrant, target letter or Wells notice; provided that the Company shall take into reasonable consideration all extrinsic evidence presented by the **Insured Person** when determining whether such written request identifies such **Insured Person** as a target of such investigation;

The Company's maximum aggregate liability under this Coverage Part for all **Loss** on account of any **Claim** described in this Paragraph (C) against an **Organization** shall be $100,000, which amount is part of, and not in addition to, the Maximum Aggregate Limit of Liability set forth in Item 4(A) of the D&O portion of the Declarations.

(C) The definition of **Defense Costs** is amended to add the following:

(i) **Class Certification Event Study Costs**;

(ii) **Special Litigation Committee Costs;** and

(iii) **Nominal Defendant Derivative Defense Costs.**

(D) The definition of **Early Settlement Opportunity** is amended to delete the phrase "(C) such **Matter** is reported to the Company within the first thirty (30) days after it is made." and replace it with the phrase "(C) such **Matter** is reported to the Company within the first sixty (60) days after it is made."

(E) The definition of **Employee** is deleted and replaced with the following:

Employee means any natural person who is, was or will be a full-time, part-time, seasonal, leased or temporary employee, intern or volunteer of an **Organization**. **Employee** shall not include any **Independent Contractor**.

(F) The definition of **Enforcement Unit** is deleted and replaced with the following:

Enforcement Unit means any federal, state, local, provincial or foreign law enforcement or governmental authority worldwide (including the Office of Inspector General, Internal Revenue Service, Federal Drug Administration, Department of Health and Human Services, Centers for Medicare & Medicaid Services, U.S. Department of Justice, the U.S. Securities and Exchange Commission, or any attorney general or any similar regulatory organization).

(G) The definition of **Executive** is amended to add the following:

Executive shall also mean any natural person who was, now is or shall become:

(i) a duly elected or appointed trustee (other than a bankruptcy trustee) and any member of a Board of Governors of any **Organization** incorporated, formed or organized in the United States of America or a holder of an equivalent position to those described above in any **Organization** incorporated, formed or organized in a **Foreign Jurisdiction**; or

(ii) **Shadow Director**, Chief Restructuring Officer, Data Protection Officer or Chief Information Officer of an **Organization**.

(H) The definition of **Insured Person** is amended to add the following:

Insured Person also means an **Executive** in his or her capacity as a **Controlling Securityholder**, but only: (A) with respect to a **Securityholder or Member Matter** made against such individual both in their capacity as a **Controlling Securityholder** and as an **Executive**; and (B) if the **Organization** has indemnified such individual to the fullest extent permitted by statutory or common law and to the same extent as any other **Executive.**

(I) The definition of **Loss** is amended as follows:

(i) Paragraph (A) is deleted and replaced with the following:

(A) **Defense Costs**, compensatory damages, judgments, including pre-judgment interest, post-judgment interest and any portion thereof deemed to be allocated to claimant's attorney's fees.

(ii) Paragraph (3) is deleted in its entirety.

(J) The definition of **Matter** is amended to add the following:

Matter shall also include any **Aiding and Abetting Matter** and **Merger Objection Matter**.

(K) The definition of **Outside Capacity** is deleted and replaced with the following:

Outside Capacity means service by an **Insured Person** in an **Outside Entity** as a: (A) director or officer; (B) manager or member of the Board of Managers; (C) trustee, regent, or governor; or (D) equivalent executive position of any of the foregoing, but solely during the time that such service is with the knowledge and consent of an **Organization**.

(L) The definition of **Outside Entity** is deleted and replaced with the following:

Outside Entity means:

(A) any non-profit corporation, community chest, fund or foundation that is exempt from federal income tax or any other entity organized for a religious or charitable purpose under any non- profit organization act or statute; or

(B) any other entity specifically added as an **Outside Entity** by written endorsement attached to this Coverage Part;

that is not an **Organization**.

(M) Paragraph (A) of the definition of **Securityholder or Member Matter** is deleted and replaced with the following:

(A) **Claim** against an **Insured** for a violation of any **Global Law** relating to securities, including a common law cause of action pled with such securities law violation, brought by: (1) a securityholder of an **Organization** solely in connection with such securityholder's interest in the securities of such **Organization**, or (2) any person or entity solely in connection with the purchase or sale of, or offer to purchase or sell securities of an **Organization**;

(N) The following definitions are added as follows:

Aiding and Abetting Matter means any **Claim** or **Inquiry**: (A) against an **Organization** for aiding and abetting a violation of any **Global Law** relating to securities law; or (B) against an **Organization** for aiding and abetting a common law cause of action, including a breach of fiduciary duty, in connection with an acquisition, or proposed acquisition, of an entity which results in, or would result in, such entity becoming a **Subsidiary**.

Class Certification Event Study Costs means that portion of **Defense Costs** constituting reasonable costs, charges, fees and expenses of an expert witness incurred by an **Insured** to conduct an admissible event study regarding issues of fact relevant to class certification in a **Securityholder or Member Matter** subsequent to the denial of a motion to dismiss in such **Securityholder or Member Matter**; provided that the Company's Maximum Aggregate Limit of Liability for such **Class Certification Event Study Costs** shall be $250,000, which amount is part of, and not in addition to, the Company's Aggregate Limit of Liability as set forth in Item 4(A) of the D&O portion of the Declarations.

Controlling Securityholder means a controlling person of an **Organization** within the meaning of Section 15 of the Securities Act of 1933, as amended.

Merger Objection Matter means any **Claim** or **Inquiry** based upon, arising from or in consequence of any proposed or actual acquisition as described in Subparagraphs (A)(1) and (A)(3) of Section X, Acquisition of the Parent Organization, of the General Terms and Conditions.

Nominal Defendant Derivative Defense Costs means that portion of **Defense Costs** constituting reasonable costs, charges, fees and expenses incurred through counsel, with the Company's consent, in representing an **Organization** as a nominal plaintiff or nominal defendant in any **Securityholder or Member Matter** brought as a securityholder derivative action by one or more securityholders to enforce a right of the **Organization**.

Shadow Director means a natural person meeting the definition of shadow director in Section 251 of the United Kingdom Companies Act 2006 or in similar legal provisions in any other jurisdiction.

Special Litigation Committee Costs means that portion of **Defense Costs** constituting reasonable costs, charges, fees and expenses incurred by a Special Litigation Committee formed by the Board of Directors of any **Organization** solely to investigate a securityholder derivative demand and evaluate whether a securityholder derivative action is in the best interests of the **Organization.**

(3) **AMEND EXCLUSIONS**

Section IV, Exclusions, of this Coverage Part, is amended as follows:

(A) The preamble to Section IV(A), Exclusions Applicable to All **Insureds**, is deleted and replaced with the following:

The Company shall not be liable for any **Loss** on account of that portion of any **Matter**:

(B) Exclusion IV(A)(1), Prior Notice, is deleted and replaced with the following:

(1) Prior Notice

based upon, arising from or in consequence of any **Wrongful Act**, fact, circumstance or **Matter** that was the subject of any notice accepted under any prior directors & officers liability coverage of which this Coverage Part is a direct or indirect renewal or replacement of;

(C) Exclusion IV(A)(2), Pending or Prior Proceedings, is deleted and replaced with the following:

(2) Pending or Prior Proceedings

based upon, arising from or in consequence of any action or proceeding (including a qui tam or relator suit commenced by the service of a civil complaint or similar proceeding), **Matter** or **Matter** that is **Related**, commenced against any **Insured**, on or prior to the applicable Pending or Prior Proceedings Date set forth in Item (F) of the D&O portion of the Declarations;

Solely with respect to any circumstance reported pursuant to Section V(D), Reporting, based upon, arising from or in consequence of a qui tam or relator suit filed under seal, Section V(D), Reporting, shall apply only to the extent of the information reasonably available to the **Insured**.

(D) Exclusion IV(A)(4), Pollution, is deleted and replaced with the following:

(4) Pollution

for any: (a) discharge, emission, release, dispersal or escape of any **Pollutants** or any threat thereof; (b) treatment, removal or disposal of any **Pollutants**; or (c) regulation, order, direction or request to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize any **Pollutants**; provided that this Exclusion (A)(4) shall not apply to **Loss** on account of any: (i) **Matter** against an **Insured Person** that is not indemnified by an **Organization**; or (ii) **Securityholder or Member Matter**;

(E) Exclusion IV(A)(5), ERISA, is deleted and replaced with the following:

(5) ERISA

for any violation of the responsibilities, obligations or duties imposed by Employee Retirement Income Security Act of 1974 (including amendments relating to the Consolidated Omnibus Budget Reconciliation Act of 1985, and the Health Insurance Portability and Accountability Act of 1996), all as amended, or any similar **Global Law** with regard to a plan sponsored by an **Organization**;

(F) Exclusion IV(A)(7), Publicly Traded Securities, is deleted and replaced with the following:

(7) Publicly Traded Securities

based upon, arising from or in consequence of: (a) any public offering of securities issued by any **Organization** or **Outside Entity**; or (b) the violation of any **Global Law** relating to securities of the **Organization**, including the Securities Exchange Act of 1934, as amended; provided that this Exclusion A(7) shall not apply to **Loss** on account of any **Matter**:

(i) based upon, arising from or in consequence of an offering, sale or purchase of:

a. securities that are not required to be registered under the Securities Act of 1933 or any **Global Law** that regulates the offering, sale or purchase of securities, including an offering, sale or purchase made pursuant to Regulation D or Regulation S under the Securities Act of 1933 or Titles II, III or IV of the JOBS Act, all as amended; or

b. debt securities;

(ii) made by any securityholder of an **Organization** for the failure of the **Organization** to undertake or complete the initial public offering or sale of securities of the **Organization**; or

(iii) for any **Wrongful Act** relating to an **Organization's** preparation for any public offering, including any road show presentation to potential investors or other similar presentation, made by the **Organization** and its **Executives** via any medium in connection with such public offering, if such offering does not occur;

(G) Exclusion IV(A)(8), Conduct, is deleted and replaced with the following:

(8) Conduct

based upon, arising from or in consequence of:

(a) any deliberate fraud, any deliberate criminal act, or any willful violation of any **Global Law,** by an **Insured**; provided that, for acts or omissions which are treated as a criminal violation in a **Foreign Jurisdiction** and that are not treated as a criminal violation in the United States of America, the imposition of a criminal fine or other criminal sanction in such **Foreign Jurisdiction** will not, by itself, be conclusive proof that a deliberate fraud, deliberate criminal act, or willful violation has occurred;

(b) an **Insured Person** having gained any personal profit, remuneration or other financial advantage to which such **Insured Person** was not legally entitled; or

(c) an **Organization** having gained any profit, remuneration or other financial advantage to which such **Organization** was not legally entitled,

established by a final, non-appealable adjudication in the underlying action or proceeding; provided that Paragraphs (8)(b) and (8)(c) above shall not apply to that portion of a **Securityholder or Member Matter** for a violation of Section 11, 12, or 15 of the Securities Act of 1933, as amended, to the extent such amount is insurable under the law pursuant to which this Coverage Part is construed;

(H) With respect to any **Matter** against an **Insured Person**, Exclusion IV(A)(9), Employment-Related/Third-Party, is deleted and replaced with the following:

(9) Employment-Related/Third-Party

for any employment-related **Wrongful Act**; or any discrimination against, or harassment, including sexual harassment of any third party; provided that this Exclusion A(9) shall not apply to **Loss** on account of any: (a) **Matter** against an **Insured Person** that is not indemnified by an **Organization**; or (b) **Securityholder or Member Matter**;**.**

(I) The preamble to Section IV(B), Exclusions Applicable to the **Organization** Only, is deleted and replaced with the following:

The Company shall not be liable for any **Loss** on account of that portion of any **Matter** against an **Organization**:

(J) The paragraph at the end of Section IV, Exclusions, is deleted and replaced with the following:

For the purpose of determining the applicability of the foregoing Exclusion (A)(8) above: (i) the **Wrongful Acts**, or actual knowledge of facts pertaining to, one **Insured** shall not be imputed to any **Insured Person**; and (ii) solely with respect to Insuring Clause (C), the **Wrongful Acts,** or actual knowledge of, or facts pertaining to the **Control Group** of an **Organization** shall be imputed to such **Organization** and its **Subsidiaries**, provided that, the foregoing Subparagraph (ii) shall not preclude the application of Exclusion (A)(8) if the **Organization** is adjudicated in its own right.

(4) **AMEND REPORTING**

Section V, Reporting, of this Coverage Part, is amended to add the following:

(A) Subsection (B) is deleted and replaced with the following:

(B) The **Insureds**, at their discretion, may give to the Company written notice of any **Inquiry** no later than one hundred twenty (120) days after the **Control Group** first becomes aware of such **Inquiry**. No coverage shall be available under this Coverage Part for **Loss** on account of any unreported **Inquiry**.

However, if an **Insured** elects not to report a request to toll or waive the statute of limitations, coverage for any subsequent **Matter** that is **Related** to such request shall not be denied based on a failure to report such request and shall be deemed first made in the **Policy Period** in which such subsequent **Matter** was first made against such **Insured** and reported to the Company.

(B) The following is added:

Notwithstanding the foregoing, the Company shall not assert failure to provide notice of a **Claim** in a timely manner unless the Company is materially prejudiced by such untimely notice. In no event, however, shall notice of a **Claim** be given later than the expiration date of the Extended Reporting Period, if applicable.

(5) **AMEND DEFENSE AND SETTLEMENT**

Section VI, Defense and Settlement, of this Coverage Part, is amended as follows:

(A) Paragraph (B)(2) is deleted and replaced with the following:

(2) unless otherwise agreed in writing by the Company, the **Insured** agrees that: (a) defense counsel shall adhere in all respects to the Company's Litigation Management Guidelines; and (b) **Defense Costs** shall not include any costs, charges, fees or expenses: (i) that are not billed in accordance with the hourly rates agreed to between the **Insured** and the Company (to be mutually agreed upon and determined on the basis of reasonableness); (ii) that do not adhere in all respects to the Company's Litigation Management Guidelines; (iii) related to travel incurred by any firm while traveling to, from or within any state in which such firm does not maintain an office; and (iv) incurred by or through the use of local counsel. The Company shall not be liable for any such **Defense Costs** unless incurred with the Company's written consent, which shall not be unreasonably withheld; and

(B) Paragraph (C)(1) is amended as follows:

(1) The word "written" is deleted.

(2) The following is added to the end of Paragraph (C)(1):

However:

(i) the **Insureds** may incur any **Defense Costs** with respect to any **Claim**, without the Company's prior consent, if the amount of such **Defense Costs** does not exceed fifty percent (50%) of any applicable Retention;

(ii) if Reimbursement Defense is selected in Item 4(G) of the D&O portion of the Declarations, or, if the **Insured** has the duty to defend or exercises any legal right to appoint counsel for the defense of a **Matter** covered by this Coverage Part, then the **Insureds** may incur any **Defense Costs** or settle any **Matter**, without the Company's prior consent, if the amount of such **Defense Costs** or settlement does not exceed the applicable Retention. The Company shall not be liable for any settlement or **Defense Costs** in excess of the amount of the applicable Retention to which it has not consented to in writing. The **Insureds** shall submit to the Company all requested information with respect to any incurred **Defense Costs** or settlement.

(C) Paragraph (C)(2) is amended to delete "prejudice" and replace it with "materially prejudice";

(D) Paragraph (C)(4) is deleted and replaced with the following:

(4) any payment or advancement of **Defense Costs** shall be repaid to the Company by the **Insureds**, severally according to their respective interests, if and to the extent it is determined that such **Defense Costs** are not insured under this Coverage Part; provided the Company shall not seek repayment from an **Insured** of any **Defense Costs** paid or advanced by the Company that are deemed uninsured pursuant to Exclusion (A)(8), Conduct, unless a final, non-appealable adjudication has occurred with respect to such **Insured**.

(6) **AMEND ALLOCATION**

Paragraph (B) of Section VII, Allocation is amended to add the following:

However, subject to Section VI, Defense and Settlement, Paragraph (B)(3), if the **Insureds** and the Company cannot agree on an allocation: (i) no presumption as to allocation shall exist in any alternative dispute resolution proceeding or other proceeding; and (ii) the Company shall advance on a current basis **Defense Costs** which the Company believes to be covered under this coverage section until a different allocation is negotiated or otherwise determined.

Further, any negotiated or otherwise determined allocation of **Defense Costs** on account of a **Matter** shall be applied retroactively to all **Defense Costs** on account of such **Matter**, notwithstanding any prior advancement to the contrary. Any allocation or advancement of **Defense Costs** on account of a **Matter** shall not apply to or create any presumption with respect to the allocation of other **Loss** on account of such **Matter**.

(7) **AMEND OTHER INSURANCE**

Section VIII, Other Insurance, of this Coverage Part, is amended as follows:

(A) Solely with respect to any coverage afforded under this Coverage Part for any **Independent Contractor**, Section VIII, Other Insurance, is amended to add the following:

Notwithstanding anything to the contrary, no coverage shall be available for any **Loss** until after any or all coverage available under any policy providing professional liability or errors and omissions coverage has been exhausted.

(B) Paragraph (C) of Section VIII, Other Insurance, is deleted and replaced with the following:

(C) The Additional Limit of Liability Dedicated For **Executives** set forth in Coverage Extension (E) shall be excess of any insurance available that is specifically excess to this Coverage Part and such excess insurance must be completely exhausted by payment of loss, damages or defense costs thereunder before the Company shall have any obligation to make any payment. Any coverage afforded under this Coverage Part for a **Matter** in connection with an **Insured Person** serving in an **Outside Capacity** for an **Outside Entity** shall be specifically excess of any indemnity (other than any indemnity provided by an **Organization**) and insurance available to such **Insured Person** by reason of serving in such **Outside Capacity**. Notwithstanding the foregoing, if the Company or any subsidiary or affiliate of Chubb Limited ("Chubb") makes payment under another coverage part or policy (collectively referred to as "Other Policy") on account of such **Matter**, the Company's maximum aggregate limit of liability for all **Loss** on account of such **Matter** under this Coverage Part and any applicable Other Policy, combined, shall not exceed $25,000,000. Nothing in this provision is intended, nor shall anything herein be construed, to increase the Company's Aggregate Limit of Liability as set forth in Item 4(A) of the D&O portion of the Declarations for this Policy or any limit of liability provided in any applicable Other Policy.

(C) The following is added:

Notwithstanding the foregoing, solely with respect to any **Loss** that may be covered under both this Coverage Part and under any personal director's liability insurance, this Coverage Part shall be primary.

(8) **RETIRED AND RESIGNED EXECUTIVE**

Notwithstanding anything to the contrary in this Policy, if this Coverage Part expires (or is otherwise terminated) without being replaced or renewed by the **Parent Organization**, then any **Executive** who has retired or resigned prior to or during the **Policy Period** shall have an automatic extension of coverage under this Coverage Part for any **Matter** first made during the twelve (12) month period following the end of the **Policy Period**, but only with respect to any **Wrongful Act** committed before the official retirement or resignation date of such **Executive** and only for a **Matter** that is not indemnified by an **Organization** ("Retired and Resigned Executive Coverage Extension"); provided that this Retired and Resigned Executive Coverage Extension shall terminate upon: (A) the occurrence of any event described in Section X(A)(2), Acquisition of the Parent Organization of the General Terms and Conditions; or (B) the **Financial Impairment** of the **Organization**.

The Company's maximum liability for all such **Loss** on account of all **Matters** covered under this Retired and Resigned Executive Coverage Extension shall be $1,000,000 which amount is in addition to, and not part of, the Aggregate Limit of Liability set forth in Item 4(A) of the D&O portion of the Declarations.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

In consideration of payment of the premium and subject to the Declarations, General Terms and Conditions, and the limitations, conditions, provisions and other terms of this Coverage Part, the Company and the Insureds agree as follows:

I. INSURING CLAUSES

Insuring Clause (A): Employment Practices Liability Coverage

(A) The Company shall pay, on behalf of an **Insured**, **Loss** on account of an **Employment Claim** first made against the **Insured** during the **Policy Period**.

Insuring Clause (B): Third Party Liability Coverage

(B) The Company shall pay, on behalf of an **Insured**, **Loss** on account of a **Third Party Claim** first made against the **Insured** during the **Policy Period**.

II. COVERAGE EXTENSIONS

(A) **Written Request to Toll or Waive a Statute of Limitation Coverage**

The Company shall pay, on behalf of an **Insured**, **Defense Costs** incurred solely by such **Insured** in responding to a written request to toll or waive a statute of limitations, first made during the **Policy Period**, applicable to a potential **Claim**.

(B) **Early Engagement Expense Coverage**

In the event of any **Pre-Matter Expense**, **Pre-Tender Expense** or **Early Settlement Opportunity**, an aggregate amount not to exceed the lesser of: (1) $25,000; or (2) fifty percent (50%) of the applicable Retention, shall qualify as **Loss** solely for the purpose of exhaustion of the applicable Retention. Once the applicable Retention has been exhausted, any **Pre-Matter Expense** or **Pre-Tender Expense** shall no longer qualify as covered **Loss** under this Coverage Part.

Coverage provided herein shall not be deemed to waive the Company's rights hereunder or limit the **Insured's** right to receive coverage for **Loss** incurred following the reporting of a **Matter**.

Coverage Extension (A) above shall be subject to any applicable Limit of Liability, Sublimit and Retention set forth in the EPL portion of the Declarations and this Policy.

III. DEFINITIONS

For purposes of this Coverage Part:

Benefits means perquisites, fringe benefits, deferred compensation or payments (including insurance premiums) in connection with an employee benefit plan and any other payment to or for the benefit of an employee arising out of the employment relationship. **Benefits** shall not include salary, wages, commissions, bonuses, **Stock Benefits** or non-deferred cash incentive compensation.

Breach of Employment Contract means any breach of any oral, written or implied contract or contractual obligation including any contract or contractual obligation arising out of any personnel manual, employee handbook, policy statement or other representation.

Claim means any **Employment Claim** and any **Third Party Claim**.

Control Group means the chief executive officer, executive director, president, in-house general counsel, head of human resources, risk manager or any person with the responsibility for the management of insurance claims (or any equivalent position to any of the foregoing) of an **Organization**.

Defense Costs means that part of **Loss** consisting of reasonable costs, charges, fees (including attorneys' fees, experts' fees and the cost of **E-Discovery Specialist Services**) and expenses (other than regular or overtime wages, salaries, fees or benefits of **Insured Persons**) incurred in:

(A) investigating, defending, opposing or appealing any **Claim**, and the premium for appeal, attachment or similar bonds; or

(B) responding to a written request to toll or waive the statute of limitations.

Early Settlement Opportunity means any settlement recommended by the Company within the Limit of Liability set forth in Item 4(A) of the EPL portion of the Declarations which is agreed to by the claimant where: (A) the **Insureds** consent to such settlement within thirty (30) days of the date the **Insureds** are first made aware of the opportunity to settle; (B) such consent occurs within the first ninety (90) days after the **Matter** is first reported to the Company; and (C) such **Matter** is reported to the Company within the first thirty (30) days after it is made. The **Insured** agrees not to settle or offer to settle any **Claim** or otherwise assume any contractual obligation or admit any liability with respect to any **Matter** without the Company's written consent, which shall not be unreasonably withheld. The Company shall not be liable for any settlement assumed obligation or admission to which it has not consented.

E-Discovery means the review, development, collection, cataloging and/or production of electronically stored information in connection with the defense of a **Matter**.

E-Discovery Specialist Services means only the following services performed by an **E-Specialist Firm**:

(A) assisting the **Insured** with managing and minimizing the internal and external costs associated with **E- Discovery**;

(B) assisting the **Insured** in developing or formulating an **E-Discovery** strategy which shall include interviewing qualified and cost-effective **E-Discovery** vendors;

(C) serving as project manager, advisor or consultant to the **Insured**, defense counsel, and the Company in executing and monitoring the **E-Discovery** strategy; and

(D) such other services provided by the **E-Specialist Firm** that the **Insured**, Company, and **E-Specialist Firm** agree are reasonable and necessary given the circumstances of the **Matter**.

E-Specialist Firm means any e-discovery consultant firm approved by the Company**.**

Employee means any natural person whose labor or service was, is or will be engaged and directed by an **Organization**, including a part-time, seasonal, leased and temporary employee, intern or volunteer. **Employee** shall not include any **Independent Contractor**.

Employment Claim means:

(A) any:

(1) written demand (other than a written request to toll or waive a statute of limitations, subpoena or other investigatory instrument):

(a) for monetary or non-monetary (including injunctive) relief; or

(b) for an arbitration proceeding pursuant to an employment contract, policy or practice of an **Organization**, or any other external alternative dispute resolution proceeding,

commenced by first receipt of such demand by an **Insured**;

(2) proceeding, including any appeal therefrom, commenced by:

(a) the service of a civil complaint or similar pleading, or any foreign equivalent thereof; or

(b) the return of an indictment, information or any foreign equivalent thereof; or

(3) administrative, regulatory or tribunal proceeding, including any appeal therefrom, commenced by:

(a) the issuance of a notice of charges, formal investigative order or foreign equivalent thereof; or

(b) in the event an **Insured** is not issued notice as set forth in Subparagraph (3)(a) above, the receipt by an **Insured** of the charge, formal investigative order or foreign equivalent thereof; or

(B) in the context of an audit conducted by the Office of Federal Contract Compliance Programs, a Notice of Violation or Order to Show Cause or written demand for monetary relief or injunctive relief, commenced by the receipt by an **Insured** of such notice, order or written demand,

which is brought and maintained by or on behalf of a past, present or prospective employee, an applicant for employment, intern, volunteer or an independent contractor of an **Organization** against an **Insured** for an **Employment Practices Wrongful Act**.

Notwithstanding the foregoing, **Employment Claim** shall not include any labor or grievance proceeding, arbitration proceeding or any other proceeding pursuant to a collective bargaining agreement.

Employment Discrimination means any violation of employment discrimination laws or discrimination based upon a **Protected Status**.

Employment Harassment means any workplace harassment (including bullying) of a sexual or non-sexual nature that interferes with performance or creates an abusive, intimidating, hostile or offensive working environment within an **Organization**, even if not perpetrated by an **Insured Person**.

Employment Practices Wrongful Act means any actual or alleged:

(A) **Breach of Employment Contract**;

(B) **Employment Discrimination**;

(C) **Employment Harassment**;

(D) **Retaliation**;

(E) **Workplace Tort**;

(F) **Wrongful Employment Decision**;

(G) **Wrongful Termination**; or

(H) act described in Subsections (A) through (G) above that occurs via social media or social networking;

committed, attempted, or allegedly committed or attempted by an **Organization**, or by an **Insured Person** while acting in his or her capacity as such.

Executive means any natural person who was, now is or shall become:

(A) a duly elected or appointed director, officer, manager, or member of the Board of Managers, the Advisory Board or any duly constituted committee, or the in-house general counsel of any **Organization** incorporated, formed or organized in the United States of America; or

(B) a holder of an equivalent position to those described in Subsection (A) above in any **Organization** incorporated, formed or organized in a **Foreign Jurisdiction**.

Financial Impairment means the status of an **Organization** resulting from:

(A) the appointment by a federal or state official, agency or court of any receiver, conservator, liquidator, trustee, rehabilitator or similar party (including a creditors' committee, if applicable) or foreign equivalent thereof empowered to initiate the assumption of control, supervision, management or liquidation such **Organization**; or

(B) such **Organization** becoming a debtor in possession under United States bankruptcy law or the equivalent of a debtor in possession under the law of any **Foreign Jurisdiction**.

Independent Contractor means any natural person working for an **Organization** in the capacity of an independent contractor and pursuant to an **Independent Contractor Services Agreement**.

Independent Contractor Services Agreement means any written contract or agreement between an **Independent Contractor**, or any entity on behalf of such **Independent Contractor**, and an **Organization**, governing the nature of the **Organization's** engagement of such **Independent Contractor**.

Insured means any **Organization** and any **Insured Person**.

Insured Person means any:

(A) **Executive**;

(B) **Employee**; or

(C) **Independent Contractor** working for an **Organization**, but only while acting in his or her capacity as such and only if the **Organization** agrees in writing, prior to or no later than thirty (30) days after a **Matter** is reported to the Company, to indemnify the **Independent Contractor** for liability arising out of such **Matter**.

Loss means the amount which an **Insured** becomes legally obligated to pay as a result of any **Matter**, including:

(A) **Defense Costs**, compensatory damages, judgments, including pre-judgment and post-judgment interest;

(B) settlements, including that portion of any settlement which represents claimant's attorney's fees;

(C) punitive, exemplary or multiplied damages, if and to the extent such damages are insurable under the law of the jurisdiction most favorable to the insurability of such damages, provided such jurisdiction has a substantial relationship to the relevant **Insureds**, to the Company, or to the **Matter** giving rise to such damages;

(D) liquidated damages awarded pursuant to the Age Discrimination in Employment Act, Family and Medical Leave Act or Equal Pay Act; and

(E) back pay or front pay;

provided that **Loss** does not include any portion of such amount that constitutes any:

(1) cost incurred by any **Insured** to comply with any order for non-monetary (including injunctive) relief or to comply with an agreement to provide such relief, or cost associated with providing any accommodation for persons with disabilities or any other status which is protected under any applicable **Global Law**, including the Americans with Disabilities Act and the Civil Rights Act of 1964, all as amended;

(2) amount uninsurable under the law pursuant to which this Coverage Part is construed;

(3) taxes, fines or penalties, except as provided in (C) and (D) above;

(4) **Pre-Matter Expense** or **Pre-Tender Expense**, except as provided under the Early Engagement Expense Coverage set forth in Section II(B) of this Coverage Part;

(5) future salary, wages, commissions or **Benefits** of a claimant who has been or shall be hired, promoted or reinstated to employment pursuant to a settlement, order or other resolution of any **Matter**;

(6) salary, wages, commissions, **Benefits** or other monetary payments which constitute a severance payment or obligation payable upon termination of employment or payments pursuant to a notice period;

(7) **Benefits** due or to become due or the equivalent value of such **Benefits**, except with respect to any **Employment Claim** for **Wrongful Termination**;

(8) **Stock Benefits** or any amounts based on or compensating for any alleged denial, deprivation, or future expectation of any right to **Stock Benefits**; or

(9) amounts owed under any:

(a) written employment contract; or

(b) **Independent Contractor Services Agreement**;

except to the extent an **Insured** would have been liable for such **Loss** in the absence of such written employment contract or **Independent Contractor Services Agreement**.

Mass or Class Action means any **Matter** brought or maintained:

(A) by or on behalf of five or more natural persons who are acting in concert, whether or not such natural persons are represented by one or more legal counsel;

(B) by or on behalf of one to four natural persons if any of such natural persons are making a pattern and practice or systemic discrimination allegation and are seeking monetary relief on behalf of a class or group of complainants in order to resolve such **Matter**, whether or not such natural persons are represented by one or more legal counsel; or

(C) by a governmental entity, department or agency making a pattern and practice or systemic discrimination allegation or seeking monetary relief on behalf of a class or group of complainants in order to resolve such **Matter**.

Matter means any **Claim** or written request to toll or waive the statute of limitations. A written request to toll or waive a statute of limitations is commenced by first receipt by an **Insured** of such written request.

Potential Claim means a complaint or allegation of a **Wrongful Act** by or on behalf of a potential claimant if such complaint or allegation:

(A) does not constitute a **Matter** but may subsequently give rise to a **Matter**; and

(B) is communicated to:

(1) any supervisory employee having management-level responsibility for personnel matters with respect to such claimant; or

(2) any member of an **Organization's** human resources, general counsel or risk management departments, or any other comparable department.

Pre-Matter Expense means reasonable costs, charges, fees (including attorneys' fees and experts' fees) and expenses (other than regular or overtime wages, salaries, fees, or benefits of **Insured Persons**) incurred in investigating, defending, opposing or appealing a **Potential Claim** if such **Potential Claim** has been reported under Subsection (D) of Section V, Reporting, and a **Matter** subsequently arises out of such **Potential Claim**.

Pre-Tender Expense means reasonable costs, charges, fees (including attorneys' fees and experts' fees), and expenses (other than regular or overtime wages, salaries, fees or benefits of **Insured Persons**) incurred in investigating, defending, opposing or appealing any **Matter** before such **Matter** has been reported under Subsections (A) or (B) of Section V, Reporting.

Protected Status means a natural person's race, color, religion, creed, genetic information, age, sex, disability, marital status, national origin, pregnancy, HIV status, sexual orientation or preference or other status that is protected pursuant to any **Global Law**, as well as such natural person's Vietnam Era Veteran or other military status, political affiliation, or gender identity or expression.

Retaliation means retaliatory treatment against an **Employee** or **Independent Contractor** of an **Organization** on account of such individual:

(A) exercising his or her rights under law, refusing to violate any law or opposing any unlawful practice;

(B) having assisted or testified in or cooperated with a proceeding or investigation (including any internal investigation conducted by an **Organization's** human resources department or legal department) regarding alleged violations of law by an **Insured**;

(C) disclosing or threatening to disclose to a superior or to any governmental agency any alleged violations of law; or

(D) filing any claim against an **Organization** under the Federal False Claims Act, Section 806 of the Sarbanes Oxley Act or any other whistleblower **Global Law**.

Stock Benefits means any:

(A) offering, plan or agreement between an **Organization** and any employee which grants stock, warrants, shares or stock options of the **Organization** to such employee, including grants of stock options, restricted stock, stock warrants, performance stock shares, membership shares or any other compensation or incentive granted in the form of securities of the **Organization**; or

(B) payment or instrument, the amount or value of which is derived from the value of securities of the **Organization**, including stock appreciation rights or phantom stock plans or arrangements;

provided that **Stock Benefits** shall not include amounts claimed under any employee stock ownership plans or employee stock purchase plans.

Third Party means any natural person who is not a past, present or prospective employee, applicant for employment, intern, volunteer or independent contractor of an **Organization**, or a group of such natural persons.

Third Party Claim means any:

(A) written demand (other than a written request to toll or waive a statute of limitations, subpoena or other investigatory instrument):

(1) for monetary or non-monetary (including injunctive) relief; or

(2) for arbitration, mediation or other equivalent alternative dispute resolution proceeding,

commenced by the first receipt of such demand by an **Insured**;

(B) proceeding, including any appeal therefrom, commenced by the service of a civil complaint or similar pleading, or any foreign equivalent thereof; or

(C) administrative, regulatory or tribunal proceeding, including any appeal therefrom, commenced by the service of a notice of charges, formal investigative order, or foreign equivalent thereof;

which is brought and maintained by or on behalf of a **Third Party** against an **Insured** for a **Third Party Wrongful Act**, including any appeal therefrom.

Third Party Wrongful Act means any actual or alleged:

(A) discrimination against a **Third Party** based upon such **Third Party's Protected Status**;

(B) harassment, including sexual harassment, unwelcome sexual advances or requests for sexual favors against a **Third Party**; or

(C) act described in Subsections (A) or (B) above that occurs via social media or social networking,

committed, attempted, or allegedly committed or attempted by an **Organization**, or by an **Insured Person** while acting in his or her capacity as such.

Workplace Tort means any:

(A) employment-related:

(1) misrepresentation (including any inducement to become or remain employed based upon an erroneous job description);

(2) defamation (including libel and slander) or disparagement;

(3) invasion of privacy (including the unauthorized use or disclosure of an **Employee's** (a) medical information in violation of the Health Insurance Portability and Accountability Act; (b) credit information or related information in violation of the Fair Credit Reporting Act; or (c) other information obtained through an employment-related background check);

(4) negligent evaluation;

(5) wrongful discipline;

(6) wrongful deprivation of career opportunity;

(7) violation of the Family Medical Leave Act or any similar **Global Law**; or

(8) violation of the Uniformed Services Employment and Reemployment Rights Act of 1994; or

(B) employment-related:

(1) negligent retention, supervision, or hiring;

(2) denial of or negligent training;

(3) wrongful infliction of emotional distress, mental anguish or humiliation;

(4) failure to provide or enforce consistent employment-related corporate policies and procedures; or

(5) false imprisonment, malicious prosecution or false arrest;

but only when alleged as part of an **Employment Claim** for any **Wrongful Employment Decision**, **Breach of Employment Contract**, **Employment Discrimination**, **Employment Harassment**, **Retaliation**, **Wrongful Termination**, or any act set forth in Subsection (A) of this definition.

Wrongful Act means an **Employment Practices Wrongful Act** or **Third Party Wrongful Act**.

Wrongful Employment Decision means any wrongful demotion, denial of tenure, or failure or refusal to hire or promote, failure to employ, wrongful reassignment or wrongful or negligent employee reference. **Wrongful Employment Decision** does not include **Breach of Employment Contract**.

Wrongful Termination means any wrongful termination, dismissal or discharge of employment, including constructive termination, dismissal or discharge.

IV. EXCLUSIONS

The Company shall not be liable for **Loss** on account of any **Matter**:

(A) Prior Notice

based upon, arising from or in consequence of any **Wrongful Act**, fact, circumstance or **Matter** that was the subject of any notice accepted under any prior employment practices liability coverage;

(B) Pending or Prior Proceedings

based upon, arising from or in consequence of any written demand first received by, or action, proceeding, **Matter**, or **Matter** that is **Related**, commenced against any **Insured** on or prior to the applicable Pending or Prior Proceedings Date set forth in Item (D) of the EPL portion of the Declarations;

(C) Bodily Injury/Property Damage

for bodily injury, mental anguish, humiliation, emotional distress, sickness, disease or death of any person or damage to or destruction of any tangible property, including the loss of use thereof, whether or not it is damaged or destroyed; provided that this Exclusion (C) shall not apply to **Loss** for any mental anguish, humiliation or emotional distress; or

(D) Statutory/Common Law

for any violation of the responsibilities, obligations or duties imposed by any **Global Law**, that governs:

(1) workers compensation, unemployment insurance, social security or disability benefits;

(2) any employee benefit arrangement, program, policy, plan or scheme of any type (whether or not legally required or whether provided during or subsequent to employment with an **Organization**), including the Employee Retirement Income Security Act (except Section 510 thereof) and the Consolidated Omnibus Budget Reconciliation Act;

(3) workplace safety and health, as well as any obligation to maintain a place of employment free from hazards likely to cause physical harm, injury or death, including the Occupational Safety and Health Act;

(4) wage, hour and payroll policies and practices or the calculation, recordkeeping, timing, manner or method of providing or payment of minimum wages, prevailing wage rates, overtime pay, business expenses, rest periods, break periods or other compensation alleged to be due and owing, including the Fair Labor Standards Act; provided that this Exclusion (D)(4) shall not apply to the Equal Pay Act;

(5) any obligation of an employer to notify, discuss or bargain with its employees or others in advance of any plant or facility closing, mass layoff or any similar obligation, including the Worker Adjustment and Retraining Notification Act; or

(6) rights or duties as set forth in Subparagraphs (a) through (e) below:

(a) the rights of employees to engage in, or to refrain from engaging in, union or other collective activities, including union organizing, union elections and other union activities;

(b) the duty or obligation of an employer to meet, discuss, notify or bargain with any employee or employee representative, collectively or otherwise;

(c) the right to enforce any collective bargaining agreement, including grievance and arbitration proceedings;

(d) the right to strikes, work stoppages, boycotts, picketing and lockouts; or

(e) any other similar rights or duties set forth in Subparagraphs (a) through above, including the National Labor Relations Act;

provided that this Exclusion (D) shall not apply to **Loss** on account of any **Employment Claim** for **Retaliation**.

V. REPORTING

(A) An **Insured** shall give to the Company written notice of any **Claim** as soon as practicable after the **Control Group** of an **Organization** becomes aware of such **Claim**, but in no event later than:

(1) if this Coverage Part expires (or is otherwise terminated) without being renewed with the Company, ninety (90) days after the effective date of such expiration or termination; or

(2) the expiration date of the Extended Reporting Period, if applicable;

provided that if the Company sends written notice to the **Parent Organization** stating that this Coverage Part is being terminated for nonpayment of premium, an **Insured** shall give to the Company written notice of such **Claim** prior to the effective date of such termination.

(B) The **Insureds**, at their discretion, may give to the Company written notice of any request to toll or waive the statute of limitations no later than ninety (90) days after the **Control Group** first becomes aware of such request. No coverage shall be available under this Coverage Part for **Loss** on account of any unreported request to toll or waive the statute of limitations.

(C) With respect to Subsections (A) and (B) above, such written notice to the Company shall be a condition precedent to coverage for any **Matter**. Provided, however, if the **Parent Organization** can prove to the Company's satisfaction that it was not reasonably possible for the **Insureds** to give such notice within the time periods set forth in Subsections (A) and (B) above and that subsequent notice was given as soon as reasonably possible thereafter, the Company shall waive the foregoing time period.

(D) If during the **Policy Period** an **Insured** gives written notice to the Company of a **Potential Claim** which could give rise to a subsequent **Matter**, then such **Matter** subsequently arising from such **Potential Claim** shall be deemed to have been first made during the **Policy Period** in which such written notice was first given by an **Insured** to the Company; provided any such subsequent **Matter** is reported to the Company as soon as practicable after the **Control Group** first becomes aware of such **Matter**.

(E) The **Insured** shall give to the Company in any written notice described above a description of the **Matter** or **Potential Claim**, the nature of any alleged **Wrongful Act**, the nature of the alleged or potential damage, and the names of all actual or potential claimants and defendants.

VI. DEFENSE AND SETTLEMENT

(A) If Duty to Defend Defense is selected in Item 4(E) of the EPL portion of the Declarations, then:

(1) the Company shall have the right and duty to defend any **Matter** covered by this Coverage Part, including the right to select defense counsel from the current list of approved employment defense firms for the jurisdiction in which such **Matter** is pending;

(2) coverage shall apply even if any of the allegations are groundless, false or fraudulent; and

(3) the Company's obligation to pay **Loss**, including **Defense Costs**, or to defend or continue to defend any **Matter** shall cease upon exhaustion of the applicable Limit of Liability or Sublimit.

(B) If Reimbursement Defense is selected in the Item 4(E) of the EPL portion of the Declarations, or, if the **Insured** has the duty to defend or exercises any legal right to appoint counsel for the defense of a **Matter** covered by this Coverage Part, then:

(1) the **Insured** shall have the duty to defend **Matters** made against the **Insured**; including the right to select defense counsel, subject to the Company's approval which shall not be unreasonable withheld;

(2) the **Insured** agrees that: (a) defense counsel shall adhere in all respects to the Company's Litigation Management Guidelines; and (b) **Defense Costs** shall not include any costs, charges, fees or expenses: (i) that are not billed in accordance with the hourly rates agreed to between the Insured and the Company, (ii) that do not adhere in all respects to the Company's Litigation Management Guidelines; (iii) related to travel incurred by any firm while traveling to, from or within any state in which such firm does not maintain an office; and (iv) incurred by or through the use of local counsel. The Company shall not be liable for any such **Defense Costs** unless incurred with the Company's written consent, which shall not be unreasonably withheld; and

(3) the Company shall advance covered **Defense Costs** on a current basis on account of a **Matter** reported pursuant to Section V, Reporting, on a current basis, but no later than sixty (60) days after receipt by the Company of bills or invoices detailing such **Defense Costs** and all other information reasonably requested by the Company with respect to such bills or invoices, until such time the Limit of Liability set forth in Item 4(A) of the EPL portion of the Declarations or any applicable Sublimit has been exhausted, whichever first occurs. Any advancement of **Defense Costs** shall reduce the Limit of Liability set forth in Item 4(A) of the EPL portion of the Declarations or any applicable Sublimit.

(C) With respect to Subsections (A) and (B) above:

(1) the **Insured** agrees not to settle or offer to settle any **Claim**, incur any **Defense Costs**, or otherwise assume any contractual obligation or admit any liability with respect to any **Matter** without the Company's written consent, which shall not be unreasonably withheld. The Company shall not be liable for any settlement, **Defense Costs**, assumed obligation or admission to which it has not consented;

(2) the **Insured** agrees, with respect to a **Matter**, to provide the Company with all information, assistance and cooperation which the Company may reasonably require and agrees that the **Insured** shall not do anything that could prejudice the Company's position or its potential or actual rights of recovery; provided that the failure of any **Insured** to give the Company such information, assistance or cooperation shall not impair the rights of any other **Insured Person** under this Coverage Part; and

(3) any payment or advancement of **Defense Costs** shall be repaid to the Company by the **Insureds**, severally according to their respective interests, if and to the extent it is determined that such **Defense Costs** are not insured under this Coverage Part.

VII. ALLOCATION

(A) Except as provided in (B) below, if an **Insured** who is afforded coverage for a **Matter** incurs an amount consisting of both **Loss** that is covered by this Coverage Part and any amount that is not covered by this Coverage Part, then:

(1) one hundred percent (100%) of **Defense Costs** incurred by such **Insured** on account of such **Matter** shall be covered **Loss**; and

(2) with respect to loss other than **Defense Costs**, the **Insureds** and the Company shall use their best efforts to determine an allocation between **Loss** that is covered and any amount that is not covered based on the relative legal and financial exposures of the covered parties to the covered matters.

(B) Notwithstanding anything in (A) above, the **Insureds** and the Company shall use their best efforts to determine an allocation between **Loss** that is covered and any amount that is not covered based on the relative legal and financial exposures of the covered parties to the covered matters, if:

(1) Reimbursement Defense is selected in the EPL portion of the Declarations;

(2) the **Insured** has the duty to defend or exercises any legal right to appoint counsel for the defense of a **Matter** covered by this Coverage Part; or

(3) coverage with respect to any **Insured** is excluded, in whole or in part, pursuant to Exclusion (D)(4), or Subsection XII(C), Representations and Severability, of the General Terms and Conditions.

VIII. OTHER INSURANCE

Unless specifically stated otherwise, the coverage afforded under this Coverage Part for:

(A) **Employment Claims** shall be primary; provided that with respect to that portion of an **Employment Claim**:

(1) made against any leased or temporary employee or **Independent Contractor** and covered by any valid and collectible insurance policy; or

(2) covered by any valid and collectible: (a) insurance policy for employment practices liability for which any **Insured** is provided coverage on a codefendant basis; or (b) privacy, network security or cyber liability insurance policy,

this Coverage Part shall be excess of and shall not contribute with such other valid and collectible insurance policy (other than a policy that is issued specifically as excess of the insurance afforded by this Coverage Part), regardless of whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise; and

(B) **Third Party Claims** shall be excess of and shall not contribute with any other valid and collectible insurance policy (other than a policy that is issued specifically as excess of the insurance afforded by this Coverage Part), regardless of whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise.

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CONTROLLED SUBSTANCE/OPIOID EXCLUSION ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			11
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
EMPLOYMENT PRACTICES LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that the Employment Practices Liability Coverage Part is amended as follows:

(1) The Company shall not be liable under this Coverage Part for any **Loss** on account of any **Matter** based upon, arising from, or in consequence of any actual or alleged:

(a) diversion, abuse, misuse, addictive use, illicit use, overuse, manufacturing, preparation, marketing, sales, distribution, (including unlawful distribution), dispensing, prescribing, labeling, or handling of any **Controlled Substance**;

(b) failure or inadequacy of any controls, practices or procedures to prevent or report behavior relating to the actual or alleged diversion, abuse, misuse, addictive use, illicit use, overuse, manufacturing, preparation, marketing, sales, distribution, (including unlawful distribution), dispensing, prescribing, labeling, or handling of any **Controlled Substance**; or

(c) failure to warn or inadequacy of warnings related to the consequences of any diversion, abuse, misuse, addictive use, illicit use, overuse, manufacturing, preparation, marketing, sales, distribution, (including unlawful distribution), dispensing, prescribing, labeling, or handling of any **Controlled Substance**.

(2) Section III, Definitions, of this Coverage Part is amended to include the following:

Controlled Substance means:

(a) codeine, fentanyl, hydrocodone, oxycontin, hydromorphone, meperidine, methadone, oxycodone, naloxone or any other opioid or narcotic drug, medication or substance of any type, nature, or kind; or

(b) controlled substance as defined by or included in the Schedules of the Controlled Substance Act of the United States of America (21 U.S.C. § 801 *et seq*.) or any other judicial, statutory, regulatory or other legal measure of any nation, province, state, municipality or other governmental division or subdivision.

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this policy shall remain unchanged.

Authorized Representative

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SEXUAL BEHAVIOR EXCLUSION FOR THIRD PARTY MATTERS ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			12
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Employment Practices Liability Coverage Part

In consideration of the premium charged, it is agreed that:

1. Notwithstanding anything to the contrary contained in the Employment Practices Liability Coverage Part, including but not limited to the definition of **Third Party Wrongful Act** set forth in Section III, Definitions, the Company shall not be liable under this Coverage Part for **Loss** on account of any **Third Party Claim** or request to toll or waive the statute of limitations relating to a **Third Party Claim**, based upon, arising from or in consequence of any actual or alleged "Sexual Behavior".
2. For purposes of this Endorsement, "Sexual Behavior" means any behavior, conduct, act, or expression that involves:
   (A) sexual contact;
   (B) physical sexual abuse;
   (C) physical sexual assault; or
   (D) physical sexual battery.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

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SPECIFIC MATTER EXCLUSION ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			13
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Employment Practices Liability Coverage Part

In consideration of the premium charged, it is agreed that:

(1) The Company shall not be liable under the Employment Practices Liability Coverage Part for **Loss** on account of any **Matter** or **Matter** that is **Related** based upon, arising from or in consequence of any Specific Matter (as defined in Paragraph (2) of this Endorsement).

(2) For the purposes of this endorsement, Specific Matter means the following:

Leslie Feinberg, As submitted via EEOC Charge of Discrimination form received by the commission on August 28, 2017

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

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SEPARATE RETENTION - HIGH WAGE EARNERS ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			14
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Employment Practices Liability Coverage Part

In consideration of the premium charged, it is agreed that:

1. Solely with respect to any **Employment Claim** brought by or on behalf of a "High Wage Earner", Items C, Retentions, of the EPL portion of the Declarations is deleted and replaced with the following:

   (C) Retentions

   Each **Employment Claim**: $150,000

2. For the purposes of this Endorsement, the following shall apply:

   A. "High Wage Earner" means any **Employee** whose "Annual Compensation" is $150,000 or higher.

   B. "Annual Compensation" means an **Employee's** annual salary wages and any performance-based cash commissions or bonuses as reported on the previous year's Form W-2. "Annual Compensation" shall not include **Stock Benefits**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

Authorized Representative

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WORKPLACE VIOLENCE EXPENSES (WITH SUBLIMIT) ENDORSEMENT

Named Insured				Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC				15
Policy Number	Policy Period			Effective Date of Endorsement
J06814347	12-09-2025	to	12-09-2026	December 9, 2025
Issued By				
Federal Insurance Company				

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Employment Practices Liability Coverage Part

In consideration of the premium charged, it is agreed that the Employment Practices Liability Coverage Part is amended as follows:

1. The following is added to Section II, Coverage Extensions:

   Workplace Violence Expense Coverage

   The Company shall reimburse the **Parent Organization** for **Workplace Violence Expenses** incurred by an **Organization** resulting from any **Workplace Violence** occurring during the **Policy Period**; provided that the Company's maximum aggregate liability for all **Workplace Violence Expenses** shall not exceed $250,000, which amount is part of, and not in addition to, the Company's Aggregate Limit of Liability as set forth in Item 4(A) of the EPL portion of the Declarations. No Retention shall apply to **Workplace Violence Expenses** under this Coverage Extension.

2. Section III, Definitions, is amended to add the following:

   Workplace Violence means any intentional and unlawful:

   (A) act of deadly force involving the use of lethal weapon; or

   (B) threat of deadly force involving the display of a lethal weapon,

   which occurs on or in the **Premises** and which did or could result in bodily injury or death to an **Insured Person**.

   Workplace Violence Expenses means the reasonable fees and expenses, or cost of:

   (A) an independent security consultant for ninety (90) days following the date **Workplace Violence** occurs;

   (B) an independent public relations consultant for ninety (90) days following the date **Workplace Violence** occurs;

   (C) a counseling seminar for all employees conducted by an independent consultant following a **Workplace Violence**;

   (D) independent security guard services for up to fifteen (15) days; or

   (E) an independent forensic analyst.

   Premises means the buildings, facilities or properties occupied by an **Organization** in conducting its business.

3. Solely with respect to **Workplace Violence Expense Coverage**, Section IV, Exclusion (C), Bodily Injury/Property Damage, is deleted and replaced with the following:

(C) based upon, arising from, or in consequence of bodily injury, mental anguish, emotional distress, humiliation, sickness, disease or death of any person or damage to or destruction of any tangible property including loss of use thereof whether or not it is damaged or destroyed; provided that this Exclusion (C) shall not apply to emotional distress, mental anguish or humiliation resulting from any **Wrongful Act**;

4. Solely with respect to Workplace Violence Expense Coverage, Section VI, Defense and Settlement, is deleted.

5. Solely with respect to **Workplace Violence Expense Coverage**, no coverage will be available under this Coverage Part for:

   (A) any **Workplace Violence** which occurs at any location other than the **Premises**;

   (B) **Loss** arising from declared or undeclared war, civil war, insurrection, riot, civil commotion, rebellion or revolution, military, naval or usurped power, governmental intervention, expropriation or nationalization;

   (C) legal costs, judgments and settlements incurred as the result of any claim, suit or judicial action brought against an **Organization** in connection with **Workplace Violence**; or

   (D) **Loss** resulting from the use or threat of force or violence occurring on the **Premises** for the purpose of demanding money, securities or property.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

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CRISIS MANAGEMENT EXPENSE COVERAGE ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			16
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Employment Practices Liability Coverage Part

In consideration of the premium charged, it is agreed that the Employment Practices Liability Coverage Part is amended as follows:

1. Section II, Coverage Extensions, is amended to add the following:

   Crisis Management Expenses

   The Company shall reimburse the **Parent Organization** for **Crisis Management Expenses** incurred by an **Organization**, provided that the Company's Maximum Aggregate Limit of Liability for all **Crisis Management Expenses** shall not exceed $25,000, which amount is part of, and not in addition to, the Company's Aggregate Limit of Liability as set forth in Item 4(A) of the EPL portion of the Declarations. No Retention shall apply to **Crisis Management Expenses** under this Coverage Extension.

2. Any **Insured** shall, as a condition precedent to exercising their rights under the Crisis Management Expenses Coverage Extension, give to the Company written notice as soon as practicable of the **Crisis Management Event**, but in no event later than thirty (30) days after the commencement of such **Crisis Management Event**.

3. The Company shall not be liable under this Coverage Part for:

   (1) revising or rewriting personnel policies or procedures;

   (2) sensitivity or awareness training; or

   (3) accommodations made by the **Organization** pursuant to the Americans with Disabilities Act.

4. Section III, Definitions, is amended to add the following terms:

   Crisis Management Expenses means the reasonable cost of retaining for a stipulated period of time, with the prior approval of the Company, an independent public relations consultant, media management consultant, investigative firm or law firm, and the cost of advertising and public relations media and activities in connection with a **Crisis Management Event**.

   Crisis Management Event means an allegation of:

   (i) an **Employment Practices Wrongful Act** which the **Organization's** director of Human Resources, in-house general counsel, or equivalent position of the foregoing, reasonably believes that such **Employment Practices Wrongful Act** will result in a **Mass or Class Action**; or

   (ii) **Employment Harassment** by a **Senior Executive**, which the **Organization's** director of Human Resources, in-house general counsel, or equivalent position of the foregoing, reasonably believes that such **Employment Harassment** will result in a **Matter**.

   Senior Executive means a director or corporate officer of the **Organization**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

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IMMIGRATION MATTER COVERAGE ENDORSEMENT (WITH SUBLIMIT FOR DEFENSE COSTS)

Named Insured				Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC				17
Policy Number	Policy Period			Effective Date of Endorsement
J06814347	12-09-2025	to	12-09-2026	December 9, 2025
Issued By				
Federal Insurance Company				

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Employment Practices Liability Coverage Part

In consideration of the premium charged, it is agreed that the Employment Practices Liability Coverage Part is amended as follows:

1. Section II, Coverage Extensions, is amended to add the following:

   Immigration Matter Defense Costs Coverage

   The Company shall pay **Defense Costs** on behalf of the **Insureds** resulting from any **Immigration Matter** first made against such **Insureds** during the **Policy Period** for any **Immigration Wrongful Act** committed or allegedly committed prior to the end of the **Policy Period**; provided, that the Company's maximum aggregate limit of liability for any such **Defense Costs** shall be $50,000, which amount shall be part of and not in addition to the Aggregate Limit of Liability set forth in Item 4(A) of the EPL portion of the Declarations (hereinafter "Immigration Matter Defense Costs Sublimit"). The Retention set forth in Item 4(C)(1) of the EPL portion of the Declarations shall also be the Retention applicable to this Immigration Matter Defense Costs Coverage.

2. For purposes of Section IV, Exclusions, the term **Matter** shall also include any **Immigration Matter**.

3. No coverage will be available under this Coverage Part for **Defense Costs** resulting from any **Immigration Matter** for an **Immigration Wrongful Act** of which any past or present chief executive officer, in-house general counsel, or head of human resources (or any position equivalent to any of the foregoing) of the **Organization** had knowledge prior to December 9, 2024.

4. The following terms are added to Section III, Definitions:

   Immigration Matter means a criminal investigation of any **Insured** by any governmental agency. **Immigration Matter** shall not include any labor or grievance arbitration or other proceeding pursuant to a collective bargaining agreement.

   Immigration Wrongful Act means an actual or alleged violation of the responsibilities, obligations or duties imposed by the Immigration Control Act of 1986 or any other similar **Global Law** in connection with the actual or alleged hiring or harboring of illegal aliens.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

Authorized Representative

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HEALTHCARE AMENDATORY ENDORSEMENT (EPL)

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			18
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
EMPLOYMENT PRACTICES LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that the Employment Practices Liability Coverage Part is amended as follows:

(1) **AMEND DEFINITIONS**

(A) The definition of **Insured Person** is amended to add the following:

(D) staff physician, nurse or medical director of an **Organization**, regardless of whether or not such person is directly employed by an **Organization** or is considered an **Independent Contractor** as set forth in (C) above**.**

(B) The definition of **Wrongful Act** is amended to add the following:

However, **Wrongful Act** shall not include any act, error, omission, or breach of duty (including any discrimination or retaliation) committed as part of the disciplining, evaluating, selecting, de-selecting, contracting, credentialing, privileging or peer review process.

(2) **AMEND EXCLUSIONS**

(A) Exclusion (C) of Section IV, Exclusions, is deleted and replaced with the following:

(C) Bodily Injury/Property Damage

based upon, arising from or in consequence of bodily injury, mental anguish, humiliation, emotional distress, sickness, disease or death of any person or damage to or destruction of any tangible property, including the loss of use thereof, whether or not it is damaged or destroyed; provided that this Exclusion (C) shall not apply to **Loss** for any mental anguish, humiliation or emotional distress; or

(B) Section IV, Exclusions, is amended to add the following:

The Company shall not be liable for **Loss** on account of any **Matter** based upon, arising from or in consequence of any sexual abuse, sexual assault, or molestation.

(3) **AMEND DEFENSE AND SETTLEMENT**

Section VI, Defense and Settlement, is amended to add the following:

Notwithstanding anything to the contrary in this Coverage Part, it shall be the duty of the **Insureds** and not the duty of the Company to defend any **Employment Claim** based upon, arising from or in consequence of any actual or alleged violation by an **Insured** of the responsibilities, obligations or duties imposed by the Federal False Claims Act or any similar **Global Law**, or any anti-kickback, self-referral, or healthcare fraud and abuse **Global Law**. Further, any such **Employment Claim** shall be further subject to the provisions set forth in Subsection (B) of Section VI, Defense and Settlement.

(4) **AMEND ALLOCATION**

Subsection (B) of Section VII, Allocation, is amended to add the following:

(4) coverage with respect to any **Insured** is afforded, in whole or in part, for an **Employment Claim** based upon, arising from or in consequence of any actual or alleged violation by an **Insured** of the responsibilities, obligations or duties imposed by the Federal False Claims Act or any similar **Global Law**, or any anti-kickback, self-referral, or healthcare fraud and abuse **Global Law**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

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BIOMETRIC INFORMATION PRIVACY MATTER EXCLUSION ENDORSEMENT

Named Insured				Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC				19
Policy Number	Policy Period			Effective Date of Endorsement
J06814347	12-09-2025	to	12-09-2026	December 9, 2025
Issued By				
Federal Insurance Company				

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
EMPLOYMENT PRACTICES LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that the Employment Practices Liability Coverage Part is amended as follows:

1. The Company shall not be liable for **Loss** on account of any **Biometric Information Privacy Matter**; provided that for any **Biometric Information Privacy Matter** which includes an actual or alleged **Employment Claim** for **Employment Discrimination**, **Employment Harassment**, **Retaliation**, **Wrongful Employment Decision**, or **Wrongful Termination**, this Exclusion shall not apply to that portion of **Loss** on account of such **Employment Claim** for **Employment Discrimination**, **Employment Harassment, Retaliation**, **Wrongful Employment Decision**, or **Wrongful Termination**.

2. Section III, DEFINITIONS is amended to add the following:

   Biometric Information means any: (A) Biometric identifier including a retina or iris scan, fingerprint, voiceprint or scan of hand or face geometry; or (B) information, regardless of how it is captured, converted, stored or shared, based on an individual's biometric identifier used to identify an individual.

   Biometric Information Privacy Matter means any **Matter**, in whole or in part, based upon, arising from, or in consequence of any actual or alleged:

   (A) disclosure, collection, possession, usage, retention, storage, transmission, protection, dissemination, or destruction of **Biometric Information**;

   (B) consent to or release of the disclosure of **Biometric Information**;

   (C) sale, lease, capture, purchase or trade or any other types of profit from **Biometric Information**;

   (D) violation of any policies or practices involving **Biometric Information**; or

   (E) violation of any **Global Law** involving **Biometric Information**.

3. Solely with respect to this Endorsement, Section VII(B)(3), ALLOCATION, is deleted and replaced with the following:

   (3) coverage with respect to any **Insured** is excluded, in whole or in part, pursuant to this Biometric Information Privacy Exclusion Endorsement, Exclusion (D)(4), or Subsection XII(C), Representations and Severability, of the General Terms and Conditions.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

In consideration of payment of the premium and subject to the Declarations, General Terms and Conditions, and the limitations, conditions, provisions and other terms of this Coverage Part, the Company and the Insureds agree as follows:

I. INSURING CLAUSE

The Company shall pay, on behalf of an **Insured**, **Loss** on account of a **Claim** first made against an **Insured** during the **Policy Period**, for a **Wrongful Act** by such **Insured**, or by any **Insured Person** for whose **Wrongful Acts** the **Insureds** are legally liable.

II. COVERAGE EXTENSION

(A) **Inquiry Coverage**

(1) **Pre-Claim Investigation Coverage**

The Company shall pay, on behalf of an **Insured**, **Loss** on account of any **Pre-Claim Investigation** first made against an **Insured** during the **Policy Period**.

(2) **Interview Coverage**

The Company shall pay, on behalf of an **Insured**, **Defense Costs** incurred solely by such **Insured Person** on account of an **Interview** first made during the **Policy Period**.

(3) **Written Request to Toll or Waive a Statute of Limitation Coverage**

The Company shall pay, on behalf of an **Insured**, **Defense Costs** incurred solely by such **Insured** in responding to a written request to toll or waive a statute of limitations, first made during the **Policy Period**, applicable to a potential **Claim**.

(B) **Benefit Claim Denial Coverage**

The Company shall pay, on behalf of an **Insured**, **Loss** on account of a **Benefit Claim Denial** first made against the **Insured** during the **Policy Period**.

(C) **Failure to Enroll Demand Coverage**

The Company shall pay, on behalf of an **Insured**, **Failure to Enroll Loss** and **Defense Costs** on account of any **Failure to Enroll Demand** first made during the **Policy Period**.

(D) **Voluntary Program Notice Coverage**

The Company shall pay, on behalf of an **Insured**, **Voluntary Program Loss** and **Defense Costs** on account of a **Voluntary Program Notice** first given to the Company during the **Policy Period**.

(E) **Penalty Suite Additional Sublimit of Liability**

Solely with respect to coverage for **Civil Penalties** for which a Sublimit of Liability is set forth in Items (A)(1) through A(5) of the FL portion of the Declarations (each "Individual Civil Penalty Sublimit"), the Company shall provide an additional Sublimit of Liability set forth in Item (A)(7) of the Declarations ("Excess Penalty Suite Sublimit") in excess of each Individual Civil Penalty Sublimit. However, the Excess Penalty Suite Sublimit shall be an aggregate Sublimit of Liability applying to all **Civil Penalties** in excess of all Individual Civil Penalty Sublimits combined. No Retention shall apply to **Civil Penalties** pursuant to Subsections (C) through (F) of the definition of **Civil Penalties**.

(F) **Early Engagement Expense Coverage**

In the event of any **Pre-Matter Expense**, **Pre-Tender Expense** or **Early Settlement Opportunity**, an aggregate amount not to not to exceed the lesser of: (1) $25,000; or (2) fifty percent (50%) of the applicable Retention, shall qualify as **Loss** solely for the purpose of exhaustion of the applicable Retention. Once the applicable Retention has been exhausted, any **Pre-Matter Expense** or **Pre-Tender Expense** shall no longer qualify as covered **Loss** under this Coverage Part.

Coverage provided herein shall not be deemed to waive the Company's rights hereunder or limit the **Insured's** right to receive coverage for **Loss** incurred following the reporting of a **Matter**.

Coverage Extensions (A) through (E) above shall be subject to any applicable Limit of Liability, Sublimit and Retention set forth in the FL portion of the Declarations and this Policy.

III. DEFINITIONS

For purposes of this Coverage Part:

Administration means: (A) advising, counseling, failing to provide proper or timely notice, providing interpretations to, or calculating benefits of, **Employees**, **Executives**, participants or beneficiaries with respect to any **Plan**; or (B) handling of records or effecting enrollment, termination or cancellation of **Employees**, **Executives**, participants or beneficiaries under any **Plan**.

Benefit Claim Denial means an appeal of an **Insured's** adverse benefits determination pursuant to the U.S. Department of Labor's claim procedure regulation 29 C.F.R. Section 2560.503-1(h) or any similar claim procedures pursuant to applicable law.

Civil Penalties means, to the extent such penalties are insurable under the law pursuant to which this Coverage Part is construed:

(A) the five percent (5%) or less, or the twenty percent (20%) or less, civil penalties imposed upon an **Insured** as a fiduciary under Section 502(i) or (l) of **ERISA**, respectively;

(B) civil money penalties imposed by:

(1) the Pension Ombudsman appointed by the United Kingdom Secretary of State for Work and Pensions or any successor thereto, the United Kingdom Occupational Pensions Regulatory Authority, or the Pensions Regulator or any successor thereto, pursuant to the Pension Scheme Act 1993, the Pensions Act 1995, the Pensions Act 2004, or rules or regulations thereunder;

(2) Ireland's Pensions Board or Pensions Ombudsman; or

(3) the Pension Benefit Standards Act, R.S.C., 1985, C.32 of Canada, including any rules or regulations thereunder, as amended, or the same or similar provisions of any legislation, rules or regulations in each of the provinces or territories of Canada ("Canadian Penalties"); provided the Company's maximum liability for all such Canadian Penalties on account of all **Matters** shall be the amount set forth in Item (A)(5) of the FL portion of the Declarations;

provided any coverage for such civil money penalties applies only if the funds or assets of the pension scheme are not used to fund, pay or reimburse the premium for this Coverage Part;

(C) civil money penalties imposed upon an **Insured** for violation of the privacy provisions of the Health Insurance Portability and Accountability Act of 1996, as amended, ("HIPAA/HITECH Penalties"); provided the Company's maximum limit of liability for all such HIPAA/HITECH Penalties on account of all **Matters** shall be the amount set forth in Item (A)(1) of the FL portion of the Declarations;

(D) civil money penalties imposed upon an **Insured** for violation of the Patient Protection and Affordable Care Act, as amended ("PPACA Penalties"); provided the Company's maximum limit of liability for all such PPACA Penalties on account of all **Matters** shall be the amount set forth in Item (A)(2) of the FL portion of the Declarations;

(E) the fifteen percent (15%) or less excise tax imposed upon an **Insured** under Section 4975 of the Internal Revenue Code of 1986, as amended, ("Section 4975 IRC Excise Tax"); provided the Company's maximum limit of liability for such Section 4975 IRC Excise Tax on account of all **Matters** shall be the amount set forth in Item (A)(3) of the FL portion of the Declarations; or

(F) civil money penalties imposed upon an **Insured** as a fiduciary under Section 502(c) of **ERISA,** including any amendments pursuant to Section 507 of Title V of the Pension Protection Act of 2006 ("Section 502(c) Penalties"); provided the Company's maximum limit of liability for all such Section 502(c) Penalties on account of all **Matters** shall be the amount set forth in Item (A)(4) of the FL portion of the Declarations.

Claim means any:

(A) written demand (other than an **Elective Matter**, subpoena or other investigatory instrument):

(1) for monetary or non-monetary (including injunctive) relief; or

(2) for arbitration, mediation, or other equivalent alternative dispute resolution proceeding,

against an **Insured** for a **Wrongful Act**, commenced by the first receipt of such demand by an **Insured**;

(B) proceeding, including any appeal therefrom, against an **Insured** for a **Wrongful Act**, commenced by:

(1) the service of a civil complaint or similar pleading, or any foreign equivalent thereof;

(2) the receipt of written notice of an administrative or regulatory proceeding, including a receipt of a written notice of commencement of a fact-finding investigation, by the U.S. Department of Labor, the U.S. Pension Benefit Guaranty Corporation ("PBGC"), or any similar governmental authority located in a **Foreign Jurisdiction**, including, the Pensions Ombudsman appointed by the United Kingdom Secretary of State for Work and Pensions or by the United Kingdom Occupational Pensions Regulatory Authority or any successor thereto; or

(3) an arrest, the return of an indictment, information or any foreign equivalent thereof, or the receipt of an official request for **Extradition**; or

(C) investigation by an **Enforcement Unit** against an **Insured Person**, solely in his or her fiduciary capacity with respect to any **Sponsored Plan**, for a **Wrongful Act**, commenced by the service of a written request from such **Enforcement Unit** upon an **Insured Person** compelling witness testimony or document production and identifying such **Insured Person** as a target of such investigation, including a subpoena, civil investigative demand, grand jury subpoena, search warrant, target letter or Wells notice; provided that the Company shall take into reasonable consideration all extrinsic evidence presented by the **Insured Person** when determining whether such written request identifies such **Insured Person** as a target of such investigation.

Committee means any employee benefit or pension committee established by an **Organization** with respect to a **Sponsored Plan**; provided the committee consists of at least one **Insured Person**.

Control Group means the chief executive officer, executive director, president, chief financial officer, in-house general counsel or head of benefits, or any person with the responsibility for the management of insurance claims (or any equivalent position to any of the foregoing) of an **Organization**.

Corporate Trustee Company means any entity formed and operating in a **Foreign Jurisdiction** established by the **Parent Organization** and duly appointed to act as a trustee of a **Sponsored Plan**.

Defense Costs means that part of **Loss** consisting of reasonable costs, charges, fees (including attorneys' fees, experts' fees, and the cost of **E-Discovery Specialist Services**) and expenses (other than regular or overtime wages, salaries, fees or benefits of the **Insured Persons**) incurred in:

(A) investigating, defending, opposing or appealing any **Claim** and the premium for appeal, attachment or similar bonds;

(B) a **Pre-Claim Investigation**;

(C) a **Benefit Claim Denial**;

(D) preparing and filing any entry into a **Voluntary Program**;

(E) responding to a **Failure to Enroll Demand**;

(F) an **Interview**; or

(G) responding to a written request to toll or waive a statute of limitations.

Early Settlement Opportunity means any settlement recommended by the Company within the Limit of Liability set forth in Item 4(A) of the FL portion of the Declarations which is agreed to by the claimant where: (A) the **Insureds** consent to such settlement within thirty (30) days of the date the **Insureds** are first made aware of such opportunity to settle; (B) such consent occurs within the first ninety (90) days after the **Matter** is first reported to the Company; and (C) such **Matter** is reported to the Company within the first thirty (30) days after it is made. The **Insured** agrees not to settle or offer to settle any **Claim** or otherwise assume any contractual obligation or admit any liability with respect to any **Matter** without the Company's written consent, which shall not be unreasonably withheld. The Company shall not be liable for any settlement assumed obligation or admission to which it has not consented.

E-Discovery means the review, development, collection, cataloging and/or production of electronically stored information in connection with the defense of a **Matter**.

E-Discovery Specialist Services means only the following services performed by an **E-Specialist Firm**:

(A) assisting the **Insured** with managing and minimizing the internal and external costs associated with **E-Discovery**;

(B) assisting the **Insured** in developing or formulating an **E-Discovery** strategy which shall include interviewing qualified and cost-effective **E-Discovery** vendors;

(C) serving as project manager, advisor or consultant to the **Insured**, defense counsel and the Company in executing and monitoring the **E-Discovery** strategy; and

(D) such other services provided by the **E-Specialist Firm** that the **Insured**, Company, and **E-Specialist Firm** agree are reasonable and necessary given the circumstances of the **Matter**.

E-Specialist Firm means any e-discovery consultant firm approved by the Company**.**

Elective Matter means any **Pre-Claim Investigation**, **Interview**, written request to toll or waive a statute of limitations, **Benefit Claim Denial** or **Failure to Enroll Demand**, if reported to the Company in accordance with Section V, Reporting. An **Elective Matter** is commenced by first receipt of such request or demand by an **Insured**.

Employee means any natural person whose labor or service was, is or will be engaged and directed by an **Organization** or any **Plan**, including a part-time, seasonal, leased or temporary employee, intern or volunteer. **Employee** shall not include any independent contractor.

Enforcement Unit means any federal, state, local, provincial or foreign law enforcement or governmental regulatory authority worldwide (including the U.S. Department of Justice, the U.S. Securities and Exchange Commission, or any attorney general) or the enforcement unit of any securities exchange or similar self-regulatory organization. **Enforcement Unit** shall not include the U.S.

Department of Labor, the PBGC, the Internal Revenue Service (with the exception of the Criminal Investigative Division thereof), or any similar governmental authority located in a **Foreign Jurisdiction**, including the Pensions Ombudsman appointed by the United Kingdom Secretary of State for Work and Pensions or by the United Kingdom Occupational Pensions Regulatory Authority or any successor thereto.

ERISA means:

(A) the Employee Retirement Income Security Act of 1974, as amended, including amendments thereto pursuant to the:

(1) Consolidated Omnibus Budget Reconciliation Act of 1985;

(2) Health Insurance Portability and Accountability Act of 1996;

(3) Newborns' and Mothers' Health Protection Act of 1996;

(4) Mental Health Parity Act of 1996;

(5) Women's Health and Cancer Rights Act of 1998;

(6) Pension Protection Act of 2006;

(7) Health Information Technology for Economic and Clinical Health Act of 2009;

(8) Patient Protection and Affordable Care Act of 2010; and

(9) Setting Every Community Up for Retirement Enhancement Act of 2019;

(B) the English Pension Scheme Act 1993, the English Pensions Act 1995 and the Pensions Act 2004, all as amended;

(C) the privacy provisions under the Health Insurance Portability and Accountability Act of 1996, as amended; and

(D) with respect to Subsections (A) and (B) above, any similar **Global Law**.

Executive means any natural person who was, now is or shall become:

(A) a duly elected or appointed director, officer, manager, or member of the Board of Managers, the Advisory Board or any duly constituted committee, or the in-house general counsel of any **Organization** incorporated, formed or organized in the United States of America; or

(B) a holder of a position equivalent to those described in Subsection (A) above in any **Organization** that is incorporated, formed or organized in a **Foreign Jurisdiction**.

Extradition means any formal or written process by which an **Insured Person** located in any country is surrendered, or sought to be surrendered, to any other country for trial or otherwise to answer any criminal accusation, including the execution of an arrest warrant where such execution is an element of such process.

Failure to Enroll Demand means any written demand (other than an otherwise covered **Matter** arising out of such demand) by a participant or a participant's beneficiary to pay **Failure to Enroll Loss.** Except as otherwise set forth in Coverage Extension (C), no coverage shall be provided under this Policy for a **Failure to Enroll Demand.**

Failure to Enroll Loss means an amount equal to the amount that otherwise would have been due to, or on behalf of, a participant or beneficiary of a **Sponsored Plan**, but for the **Insured** negligently failing to enroll such participant or beneficiary in such **Sponsored Plan**; provided that such **Sponsored Plan** is not a self-funded **Plan**.

Financial Impairment means the status of an entity resulting from:

(A) the appointment by any state or federal official, agency or court of any receiver, conservator, liquidator, trustee, rehabilitator or similar party (including a creditors' committee, if applicable) or foreign equivalent thereof empowered to initiate the assumption of control, supervision, management or liquidation of such **Organization**; or

(B) such entity becoming a debtor in possession under the United States bankruptcy law or the equivalent of a debtor in possession under the law of any **Foreign Jurisdiction**.

Health Care Exchange means the American Health Benefit Exchange, the SHOP Exchange, as such terms are defined in Section 1311 of the Patient Protection and Affordable Care Act of 2010, and any other similar health care exchange, including any public or private entity established to facilitate the purchase of health insurance coverage in accordance with the Patient Protection and Affordable Care Act of 2010, as amended.

Insured means any:

(A) **Organization;**

(B) **Plan**;

(C) **Committee;**

(D) **Insured Person**; and

(E) **Corporate Trustee Company**.

Insured Person means any:

(A) **Executive**;

(B) **Employee**;

(C) past **Employee** or **Executive** retained as a fiduciary or plan consultant to a **Sponsored Plan**, but only if an **Organization** has indemnified such fiduciary or plan consultant as any director or officer of an **Organization** to the fullest extent permitted by: (1) any **Global Law**; or (2) any contract or agreement providing an indemnification obligation exceeding any such law;

(D) duly elected or appointed natural person member of a **Committee**, solely in his or her capacity as such; or

(E) duly elected or appointed natural person trustee of a **Sponsored Plan**, solely in his or her capacity as such.

Insured Person shall not include any natural person in his or her capacity as an employee or executive of any third party, including a service provider, other than a **Corporate Trustee Company**.

Interview means any request for an interview or meeting with, or a sworn statement or testimony from, an **Insured Person** by:

(A) an **Enforcement Unit** in connection with: (1) such **Insured Person** acting solely in his or her capacity as a fiduciary of a **Sponsored Plan**; or (2) a **Sponsored Plan's** business activities; or

(B) an **Organization** in connection with an inquiry or investigation of a **Sponsored Plan** by an **Enforcement Unit**;

provided that **Interview** does not include any request: (a) for document production or discovery of information unless such documents or information are in the sole possession and control of the **Insured Person**; (b) by an **Enforcement Unit** that is part of any routine or regularly scheduled **Enforcement Unit** oversight, compliance, audit, inspection or examination; or (c) by an **Enforcement Unit** that is part of an employment-related investigation or claim.

Loss means the amount which any **Insured** becomes legally obligated to pay as a result of any **Matter**, including:

(A) **Defense Costs**, compensatory damages, judgments, including pre-judgment and post-judgment interest;

(B) settlements, including that portion of any settlement which represents claimant's attorney's fees awarded by a court pursuant to Section 502(g) of **ERISA** against an **Insured**;

(C) punitive, exemplary or multiplied damages, if and to the extent such damages are insurable under the law of the jurisdiction most favorable to the insurability of such damages; provided such jurisdiction has a substantial relationship to the relevant **Insureds**, to the Company, or to the **Matter** giving rise to such damages;

(D) **Civil Penalties**;

(E) reasonable fees and expenses of an independent fiduciary retained to review a proposed settlement of a covered **Claim** (including reasonable and necessary fees and expenses of any law firm hired by such independent fiduciary to facilitate that review of such proposed settlement of a covered **Claim**);

(F) **Failure to Enroll Loss**; and

(G) solely for purposes of Coverage Extension (E), **Voluntary Program Loss**;

provided that **Loss** does not include any portion of such amount that constitutes any:

(1) cost incurred by any **Insured** to comply with any order for non-monetary (including injunctive) relief or to comply with an agreement to provide such relief;

(2) amount uninsurable under the law pursuant to which this Coverage Part is construed;

(3) taxes, fines or penalties, except as provided in Subsections (C), (D) and (G) above, with respect to punitive, exemplary or multiplied damages, **Civil Penalties** and **Voluntary Program Loss**;

(4) (a) benefits due, or to become due, or that portion of any settlement or award in an amount equal to such benefits, under any **Plan**; or (b) benefits which would be due, or that portion of any settlement or award in an amount equal to such benefits, under any **Plan** if such **Plan** complied with all applicable law, including loss resulting from the payment of claimant attorneys' fees based upon a percentage of such benefits or payable from a common fund established to pay such benefits, except to the extent that:

(i) an **Insured** is a natural person and the benefits are payable by such **Insured** as a personal obligation, and recovery for the benefits is based upon a covered **Wrongful Act**; or

(ii) a **Matter** made against an **Insured**:

a. alleges a loss to the **Sponsored Plan** or to the accounts of such **Sponsored Plan's** participants by reason of a change in the value of the investments held by such **Sponsored Plan**, regardless of whether the amounts sought or recovered by the plaintiffs in such **Claim** are characterized by plaintiffs as "benefits" or held by a court as "benefits"; or

b. seeks **Failure to Enroll Loss**;

(5) costs incurred in cleaning-up, removing, containing, treating, detoxifying, neutralizing, assessing the effects of, testing for or monitoring **Pollutants**;

(6) any amount constituting any contribution, or that portion of any settlement or award constituting any contribution, that is owed to, or is to fund, any **Plan**, except to the extent that the contribution is **Non-Indemnifiable Loss** payable by an **Insured Person** as a personal obligation based upon a **Wrongful Act**; or

(7) **Pre-Matter Expense** or **Pre-Tender Expense**, except as provided under the Early Engagement Expense Coverage set forth in Section II(F) of this Coverage Part.

Managed Care Services means the administration or management of a health care plan utilizing cost control mechanisms, including utilization review, case management, disease management or the use of a preferred provider network. **Managed Care Services** does not include any **Self-Administered Plan**.

Mass or Class Action means any **Matter**:

(A) brought or maintained by or on behalf of five or more natural persons who are acting in concert, whether or not such natural persons are represented by one or more legal counsel;

(B) brought or maintained by or on behalf of one to four natural persons if any of such natural persons are seeking monetary relief on behalf of a class or group of complainants in order to resolve such **Matter**, whether or not such natural persons are represented by one or more legal counsel; or

(C) brought or maintained by a governmental entity, department, agency or authority seeking monetary relief on behalf of a class or group of complainants in order to resolve such **Matter**.

Matter means any **Claim**, **Elective Matter** or **Voluntary Program Notice**.

Non-Indemnifiable Loss means **Loss** for which an **Organization** is not permitted by common or statutory law to indemnify an **Insured Person** or is permitted to indemnify an **Insured Person** but does not do so solely by reason of **Financial Impairment**.

Plan means any:

(A) **Sponsored Plan**; and

(B) government-mandated insurance program for workers' compensation, unemployment, social security or disability benefits for **Employees** and any plan maintained to comply with applicable workers' compensation, unemployment, social security or disability laws.

Pollutants means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals, asbestos, asbestos products or waste. Waste includes materials to be recycled, reconditioned or reclaimed.

Pre-Claim Investigation means a fact-finding investigation into a possible violation of **ERISA** with respect to a **Sponsored Plan** which does not contain any allegation of a **Wrongful Act** in writing, commenced by the U.S. Department of Labor, the PBGC, or any similar governmental authority located in a **Foreign Jurisdiction**, including, the Pensions Ombudsman appointed by the United Kingdom Secretary of State for Work and Pensions or by the United Kingdom Occupational Pensions Regulatory Authority, or any successor thereto.

Pre-Matter Expense means reasonable costs, charges fees (including attorneys' fees and experts' fees) and expenses (other than regular or overtime wages, salaries, fees, or benefits of **Insured Persons**) incurred in investigating, defending, opposing or appealing a notice of circumstance if such circumstance has been reported under Subsection (E) of Section V, Reporting, and a **Matter** subsequently arises out of such circumstance.

Pre-Tender Expense means reasonable costs, charges, fees (including attorneys' fees and experts' fees) and expenses (other than regular or overtime wages, salaries, fees or benefits of **Insured Persons**) incurred in investigating, defending, opposing or appealing any **Matter** before such **Matter** has been reported under Subsections (A), (B) or (C) of Section V, Reporting.

Self-Administered Plan means a **Plan** administered by an **Insured** and in which the employer or plan sponsor (as defined in the Employee Retirement Income Security Act of 1974) retains the right to make the final benefit determination.

Sponsored Plan means any employee benefit plan or program which is operated solely by an **Organization** or jointly by an **Organization** and a labor organization solely for the benefit of the **Employees** or **Executives** of an **Organization**, located anywhere in the world while such plan or program is being actively developed, formed or proposed by the **Organization** prior to the formal creation of such plan or program or which existed on or before the inception date of this Coverage Part, or, subject to Subsection XI(A), Acquisition of Another Organization, Sponsored Plan or Employee Benefit Plan, of the General Terms and Conditions, which is created or acquired after such inception date; provided that **Sponsored Plan** shall not include any employee stock ownership plan created or acquired by the **Organization** during the **Policy Period** or during a prior policy period for which this **Policy Period** is a renewal or replacement thereof (except as may be provided pursuant to Section XI(B), Acquisition or Creation of an ESOP, of the General Terms and Conditions).

Voluntary Program means any voluntary compliance resolution program or similar voluntary settlement program administered by the U.S. Internal Revenue Service, U.S. Department of Labor, or the PBGC, including the Delinquent Filer Voluntary Compliance Program, the Voluntary Fiduciary Correction Program, the Employee Plans Compliance Resolution System, and the Premium Compliance Evaluation Program, or any similar program administered by a governmental authority located in a **Foreign Jurisdiction**.

Voluntary Program Loss means filing fees, fines, penalties and sanctions incurred by an **Insured** pursuant to a **Voluntary Program**.

Voluntary Program Notice means prior written notice of the **Insured's** intent to enter into any **Voluntary Program** on account of any actual or alleged non-compliance of a **Plan** with any statute, rule or regulation.

Wrongful Act means any:

(A) actual or alleged breach by an **Insured** of the responsibilities, obligations or duties imposed by **ERISA** upon fiduciaries of the **Sponsored Plan,** including any actual or alleged negligent or improper selection of or monitoring of any third-party service provider to the **Sponsored Plan**, including any provider of **Managed Care Services**;

(B) actual or alleged negligent act, error or omission in the **Administration** of any **Plan** by an **Insured**;

(C) other matter claimed: (1) against an **Insured** solely by reason of the **Insured's** service as a fiduciary of any **Sponsored Plan**; or (2) against any **Insured Person** solely by reason of such **Insured Person's** role in any negligent act, error or omission in the **Administration** of any **Sponsored Plan**;

(D) actual or alleged act, error or omission by an **Insured** solely in such **Insured's** settlor capacity with respect to any **Sponsored Plan**; or

(E) actual or alleged breach of fiduciary duty by an **Insured** with respect to a **Health Care Exchange**.

IV. EXCLUSIONS

The Company shall not be liable for any **Loss** on account of any **Matter**:

(A) Prior Notice

based upon, arising from or in consequence of any **Wrongful Act**, fact, circumstance or **Matter** that was the subject of any notice accepted under any prior fiduciary or employee benefit liability coverage;

(B) Pending or Prior Proceedings

based upon, arising from or in consequence of any written demand first received by, or action, proceeding, **Matter**, or **Matter** that is **Related**, commenced against any **Insured** on or prior to the Pending or Prior Proceedings Date set forth in Item (D) of the FL portion of the Declarations;

(C) Bodily Injury/Property Damage

for bodily injury, violation of any right of privacy (other than a violation of **ERISA** or the Health Insurance Portability and Accountability Act of 1996), mental anguish, humiliation, emotional distress, sickness, disease or death of any person or damage to or destruction of any tangible property, including loss of use thereof, whether or not it is damaged or destroyed; provided that this Exclusion (C) shall not apply to any bodily injury to, mental anguish, emotional distress, sickness, disease, exacerbation of existing illness or wrongful death of any person resulting from: (1) selection of any **Managed Care Services** provider; or (2) denial or delay of any benefit under a health care plan, other than a **Self-Administered Plan**;

(D) Workers Compensation; Unemployment; Social Security; Disability Benefits

for any failure of any **Insured** to comply with any **Global Law** related to workers' compensation, unemployment insurance, social security or disability benefits; provided that this Exclusion (D) shall not apply to any **Matter** for a **Wrongful Act** in connection with the Consolidated Omnibus Budget Reconciliation Act of 1985 or the Health Insurance Portability and Accountability Act of 1996, all as amended, provided such **Matter** is otherwise covered hereunder; or

(E) Conduct

based upon, arising from or in consequence of:

(1) any deliberate fraud, any deliberate criminal act, or any knowing and willful violation of any **Global Law** by an **Insured**; provided that, for acts or omissions which are treated as a criminal violation in a **Foreign Jurisdiction** and that are not treated as a criminal violation in the United States, the imposition of a criminal fine or other criminal sanction in such **Foreign Jurisdiction** will not, by itself, be conclusive proof that a deliberate fraud, deliberate criminal act, or knowing and willful violation has occurred;

(2) an **Insured Person** having gained any personal profit, remuneration or other financial advantage to which such **Insured Person** was not legally entitled; or

(3) an **Organization** or **Plan** having gained any profit, remuneration or other financial advantage to which such **Organization** or **Plan** was not legally entitled,

established by a final, non-appealable adjudication in any underlying action or proceeding.

For the purpose of determining the applicability of this Exclusion (E): (i) the **Wrongful Acts**, conduct, or actual knowledge of, or facts pertaining to, one **Insured** shall not be imputed to any **Insured Person**; and (ii) only the **Wrongful Acts**, conduct, or actual knowledge of, or facts pertaining to the **Control Group** of an **Organization** shall be imputed to such **Organization** and its **Subsidiaries** or **Plan**; provided that, the foregoing Subparagraph (ii) shall not preclude application of Exclusion (E) if the **Organization** or **Plan** is adjudicated in its own right.

V. REPORTING

(A) An **Insured** shall give to the Company written notice of any **Claim** as soon as practicable after the **Control Group** of an **Organization** becomes aware of such **Claim**, but in no event later than:

(1) if this Coverage Part expires (or is otherwise terminated) without being renewed with the Company, ninety (90) days after the effective date of such expiration or termination; or

(2) the expiration of the Extended Reporting Period, if applicable;

provided that if the Company sends written notice to the **Parent Organization** stating that this Coverage Part is being terminated for nonpayment of premium, an **Insured** shall give to the Company written notice of such **Claim** prior to the effective date of such termination.

(B) The **Insureds**, at their discretion, may give to the Company written notice of any **Elective Matter** no later than ninety (90) days after the **Control Group** first becomes aware of such

Elective Matter. No coverage shall be available under this Coverage Part for **Loss** on account of any unreported **Elective Matter**. However, if an **Insured** elects not to report an **Elective Matter**, coverage for any subsequent **Matter** that is **Related** to such **Elective Matter** shall not be denied based on a failure to report such **Elective Matter** and shall be deemed first made in the **Policy Period** in which such subsequent **Matter** was first made against such **Insured** and reported to the Company.

(C) The **Insureds**, at their discretion, may give to the Company a **Voluntary Program Notice**. A **Voluntary Program Notice** shall be deemed to have been first made when such **Voluntary Program Notice** was first given to the Company. The Company may, in its sole discretion, waive such prior notice requirement and accept a **Voluntary Program Notice** that is given to the Company within thirty (30) days of the **Insured's** entry into such **Voluntary Program**, in which case the **Voluntary Program Notice** shall be deemed to have been first made on the initial date of the **Insured's** entry into such **Voluntary Program**. No coverage shall be available under this Coverage Part for **Loss** on account of any unreported **Voluntary Program Notice**.

(D) With respect to Subsections (A), (B) and (C) above, such written notice to the Company shall be a condition precedent to coverage for any **Matter**. However, if the **Parent Organization** can prove to the Company's satisfaction that it was not reasonably possible for the **Insureds** to give such notice within the time periods set forth in Subsections (A), (B) or (C) above and that subsequent notice was given as soon as reasonably possible thereafter, the Company shall waive the foregoing time period.

(E) If, during the **Policy Period**, an **Insured** gives written notice to the Company of any circumstance which could give rise to a subsequent **Matter**, then such **Matter** subsequently arising from such circumstance shall be deemed to have been first made during the **Policy Period** in which such written notice was first given by an **Insured** to the Company; provided such subsequent **Matter** is reported to the Company as soon as practicable after the **Control Group** first becomes aware of such **Matter**.

(F) The **Insureds** shall give to the Company in any written notice described in Subsections (A), (B), (C) or (E) a description of the **Matter** or circumstance, the nature of any alleged **Wrongful Acts**, the nature of the alleged or potential damage, and the names of all actual or potential defendants.

VI. DEFENSE AND SETTLEMENT

(A) With respect to any **Claim** or **Pre-Claim Investigation** covered by this Coverage Part:

(1) the Company shall have the right and duty to defend such **Claim** or **Pre-Claim Investigation**, including the sole right to select defense counsel from the current list of approved defense firms for the jurisdiction in which such **Matter** is pending;

(2) coverage shall apply even if any of the allegations are groundless, false or fraudulent; and

(3) the Company's obligation to pay **Loss**, including **Defense Costs**, or to defend or continue to defend any **Claim** or **Pre-Claim Investigation** shall cease upon exhaustion of the applicable Limit of Liability or Sublimit.

(B) With respect to any **Elective Matter** (other than a **Pre-Claim Investigation**) or **Voluntary Program Notice** covered by this Coverage Part:

(1) the **Insured** shall have the duty to defend such **Elective Matter** or **Voluntary Program Notice**, including the right to select defense counsel, subject to the Company's approval which shall not be unreasonably withheld;

(2) the **Insured** agrees that: (a) defense counsel shall adhere in all respects to the Company's Litigation Management Guidelines; and (b) **Defense Costs** shall not include any costs, charges, fees or expenses: (i) that are not billed in accordance with the hourly rates agreed to between the **Insured** and the Company, (ii) that do not adhere in all respects to the Company's Litigation Management Guidelines, (iii) related to travel

incurred by any firm while traveling to, from or within any state in which such firm does not maintain an office; and (iv) incurred by or through the use of local counsel. The Company shall not be liable for any such **Defense Costs** unless incurred with the Company's written consent, which shall not be unreasonably withheld; and

(3) the Company shall advance covered **Defense Costs** on account of a **Matter** reported pursuant to Section V, Reporting, on a current basis, but no later than sixty (60) days after receipt by the Company of bills or invoices detailing such **Defense Costs** and all other information reasonably requested by the Company with respect to such bills or invoices, until such time the Limit of Liability set forth in Item 4(A) of the FL portion of the Declarations or any applicable Sublimit has been exhausted, whichever first occurs. Any advancement of **Defense Costs** shall reduce the Limit of Liability set forth in Item 4(A) of the FL portion of the Declarations or any applicable Sublimit.

(C) With respect to Subsections (A) and (B) above:

(1) the **Insured** agrees not to settle or offer to settle any **Claim**, incur any **Defense Costs,** or otherwise assume any contractual obligation or admit any liability with respect to any **Matter** without the Company's written consent, which shall not be unreasonably withheld. The Company shall not be liable for any settlement, **Defense Costs**, assumed obligation or admission to which it has not consented;

(2) the **Insured** agrees, with respect to a **Matter**, to provide the Company with all information, assistance and cooperation which the Company may reasonably require and agrees that the **Insured** shall not do anything that could prejudice the Company's position or its potential or actual rights of recovery; provided that the failure of any **Insured** to give the Company such information, assistance or cooperation shall not impair the rights of any other **Insured Person** under this Coverage Part; and

(3) any payment or advancement of **Defense Costs** shall be repaid to the Company by the **Insureds**, severally according to their respective interests, if and to the extent it is determined that such **Defense Costs** are not insured under this Coverage Part; provided the Company shall not seek repayment from an **Insured** of any **Defense Costs** paid by the Company that are deemed uninsured pursuant to Exclusion (E), Conduct, unless a final, non-appealable adjudication has occurred.

VII. ALLOCATION

(A) Except as provided in (B) below, if an **Insured** who is afforded coverage for a **Matter** incurs an amount consisting of both **Loss** that is covered by this Coverage Part and any amount that is not covered by this Coverage Part, then:

(1) one hundred percent (100%) of **Defense Costs** incurred by such **Insured** on account of such **Matter** shall be covered **Loss**; and

(2) with respect to loss other than **Defense Costs**, the **Insureds** and the Company shall use their best efforts to determine an allocation between **Loss** that is covered and any amount that is not covered based on the relative legal and financial exposures of the covered parties to the covered matters.

(B) Notwithstanding anything in (A) above, the **Insureds** and the Company shall use their best efforts to determine an allocation between **Loss** that is covered and any amount that is not covered based on the relative legal and financial exposures of the covered parties to the covered matters, if:

(1) the **Insured** has the duty to defend or otherwise has the right to appoint counsel for the defense of a **Matter** covered by this Coverage Part; or

(2) coverage with respect to any **Insured** is excluded, in whole or in part, pursuant to Exclusion (E), Conduct, or Subsection XII(C), Representations and Severability, of the General Terms and Conditions.

VIII. OTHER INSURANCE

(A) If any **Loss** covered under this Coverage Part is insured under any other valid and collectible insurance policy (other than an insurance policy that is issued specifically as excess over the Limit of Liability provided by this Coverage Part or a personal umbrella policy or personal directorship liability policy purchased by an **Insured Person**), then this Coverage Part shall be excess of and shall not contribute with such other insurance, regardless of whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise.

(B) This Coverage Part shall be specifically excess of, and shall not contribute with, any valid and collectible insurance for professional liability, employee benefit liability or privacy, network security or cyber liability, regardless of whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise.

Any payment by an **Insured** of a retention or deductible under any other insurance policy described in Subsection (A) or (B) above shall reduce the applicable Retention under this Coverage Part by the amount of such payment which would otherwise have been covered **Loss** under this Coverage Part.

Manuscript Placeholder – to be drafted by Chubb Legal

Fiduciary Liability Coverage Part

Draft Title: Controlled Substance Opioid Exclusion

Description: Controlled Substance Opioid Exclusion

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PENDING OR PRIOR PROCEEDING EXCLUSION FOR INCREASED LIMITS ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			21
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Fiduciary Liability Coverage Part

It is agreed that:

(1) No coverage will be available under the Fiduciary Liability Coverage Part for **Loss** on account of any **Matter** based upon, arising from, or in consequence of any written demand first received by, or action, proceeding, **Matter** or **Matter** that is **Related** commenced against any **Insured** on or prior to December 9, 2024.

(2) This endorsement shall only apply to the limit of liability of $1,000,000 in excess of $2,000,000.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB®

MULTI-EMPLOYER PLAN ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			22
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Fiduciary Liability Coverage Part

In consideration of the premium charged, it is agreed that Section III, Definitions, of the Fiduciary Liability Coverage Part is amended as follows:

(1) The following definition is added:

Multi-employer Plan means any multi-employer plan, as defined by **ERISA**, which is operated jointly by the **Organization** and one or more other employers or labor organizations for the benefit of the **Employees** of the **Organization**, among others.

(2) Solely with respect to any **Matter** against a **Multi-employer Plan** or its **Insureds**, the definition of **Wrongful Act** is deleted and replaced with the following:

Wrongful Act means any negligent act, error or omission by the **Organization** or its past, present or future directors, officers or **Employees** in the **Administration** of the **Multi-employer Plan** for the benefit of the **Employees** of the **Organization**. Such coverage shall not extend to any **Multi-employer Plan** or any **Insured** in the capacity as a fiduciary of any **Multi-employer Plan**.

(3) The definition of **Plan** is amended to add the following:

Plan also means any **Multi-employer Plan**, but solely with respect to the following:

(1) **Administration**;

(2) **Loss**;

(3) Section IV, Exclusions, of this Coverage Part;

(4) Section XII, Representations and Severability, of the General Terms and Conditions; and

(5) Section XIX, Termination of Policy, of the General Terms and Conditions.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB

PENSION CRISIS MANAGEMENT COVERAGE ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			23
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
FIDUCIARY LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that the Fiduciary Liability Coverage Part is amended as follows:

(1) The Company shall pay, on behalf of an **Organization**, **Pension Crisis Management Expenses** which the **Organization** becomes legally obligated to pay on account of a **Pension Crisis Management Event** occurring during the **Policy Period** in an aggregate amount not to exceed $5,000 per **Policy Period** (hereinafter "Pension Crisis Management Sublimit"), which amount is part of, and not in addition to, the Company's maximum aggregate liability set forth in Item 4(A) of the Fiduciary portion of the Declarations and no Retention shall apply to such amount.

(2) Section III, Definitions, is amended to add the following:

Crisis Services means those services performed by a marketing firm, public relations firm or crisis management firm retained on behalf of an **Organization** in advising the **Organization** on minimizing potential harm to a **Plan** from a **Pension Crisis Management Event** (including, but not limited to, maintaining and restoring investor confidence in an **Organization**).

Pension Crisis Management Event means any one of the following events first occurring during the **Policy Period**:

(A) Investment Loss in a **Plan**

A loss in the total assets of a **Plan** of twenty-five percent (25%) or more in a thirty (30) day period caused by an investment loss or a loss in a specific **Plan** investment of seventy-five percent (75%) or more in a thirty (30) day period, which may be alleged to have a material effect on a **Plan**.

(B) Third Party Service Provider Issues

The public announcement of: (i) a **Plan's** Third-Party Service Provider's fraud, arrest, indictment, bankruptcy, layoff of employees; or (ii) a governmental or regulatory agency's investigation into or litigation against a **Plan's** Third-Party Service Provider.

Provided, however, **Pension Crisis Management Event** shall not include any event relating to any **Matter** which has been reported, or any circumstance of which notice has been given, under any policy of which this Coverage Part is a renewal or replacement or which it may succeed in time.

Pension Crisis Management Expenses means the following expenses incurred by the **Organization**, with the Company's prior written consent:

(1) reasonable and necessary expenses incurred by a marketing firm, public relations firm or crisis management firm retained on behalf of **Organization** in the performance of **Crisis Services** in connection with a **Pension Crisis Management Event**;

(2) reasonable and necessary expenses incurred by the **Organization** for publication and circulation of materials in connection with a **Pension Crisis Management Event**; or

(3) reasonable and necessary travel expenses incurred by any **Insured Person** in connection with a **Pension Crisis Management Event**.

(3) Section V, Reporting, is amended to add the following:

A **Pension Crisis Management Event** shall be deemed to have first commenced when an **Insured** becomes aware of a **Pension Crisis Management Event**, and gives written notice thereof to the Company, and shall conclude at the earliest point in time when a marketing firm, public relations firm or crisis management firm retained on behalf of **Organization** advises the **Organization** that such **Pension Crisis Management Event** no longer exists or when the Pension Crisis Management Sublimit has been exhausted.

If, during the **Policy Period**, an **Insured** becomes aware of a **Pension Crisis Management Event**, and gives written notice thereof to the Company, then any **Matter** subsequently arising from such **Pension Crisis Management Event** shall be deemed to have been first made against the **Insured** during the **Policy Period** in which such written notice was first given by the **Insured** to the Company, provided any such subsequent **Matter** is reported to the Company as soon as practicable, but in no event later than ninety (90) days after the **Control Group** of an **Organization** becomes aware of such **Matter**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB®

EXCESS LIMIT PRIOR KNOWLEDGE ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			24
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Fiduciary Liability Coverage Part

In consideration of the premium charged, it is agreed that the Fiduciary Liability Coverage Part is amended as follows:

1. The Control Group of the **Parent Organization** represent that no **Insured** has knowledge or information, as of December 9, 2024, of any **Wrongful Act**, fact, circumstance or situation that could reasonably be expected to give rise to a **Matter** to which the Excess Limit (as defined in Paragraph 2 below) would apply. Accordingly, subject to the applicable provision of Section XII., Representations and Severability, of the General Terms and Conditions, if any such **Wrongful Act**, fact, circumstance or situation exists, the Company shall not be liable under the Excess Limit for **Loss** on account of any **Matter** based upon, arising from or in consequence of any such **Wrongful Act**, fact, circumstance or situation.
2. This Endorsement shall apply solely with respect to the Limit of Liability of $1,000,000 excess of $2,000,000 (the "Excess Limit").
3. For purposes of this Endorsement, the representations set forth in 1 above shall be deemed part of the **Application** and subject to the applicable provision of Section XII., Representations and Severability, of the General Terms and Conditions.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

Authorized Representative

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HEALTHCARE ORGANIZATION AMEND EXECUTIVE ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			25
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Fiduciary Liability Coverage Part

In consideration of the premium charged, it is agreed that the definition of **Executive** in Section III, Definitions, of the Fiduciary Liability Coverage Part is amended to add the following:

> **Executive** also means any natural person who was, now is or shall become a duly elected or appointed trustee emeritus, department head, chief compliance officer, executive director or member of the staff or faculty of any **Organization** incorporated, formed, or organized in the United States of America.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB

FIDUCIARY ENHANCEMENT ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			26
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
FIDUCIARY LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that solely with respect to this Fiduciary Liability Coverage Part, the following shall apply:

(1) **AMEND COVERAGE EXTENSIONS**

Paragraph (F) of Section II, Coverage Extensions, is deleted and replaced with the following:

(F) **Early Engagement Expense Coverage**

In the event of any **Pre-Matter Expense**, **Pre-Tender Expense** or **Early Settlement Opportunity**, an aggregate amount not to exceed the lesser of: (1) $100,000; or (2) one hundred percent (100%) of the applicable Retention, shall qualify as **Loss** solely for the purpose of exhaustion of the applicable Retention. Once the applicable Retention has been exhausted, any **Pre-Matter Expense** or **Pre-Tender Expense** shall no longer qualify as covered **Loss** under this Coverage Part.

Coverage provided herein shall not be deemed to waive the Company's rights hereunder or limit the **Insured's** right to receive coverage for **Loss** incurred following the reporting of a **Matter**.

(2) **AMEND DEFINITIONS**

Section III, Definitions, of this Coverage Part, is amended as follows:

(A) The definition of **Administration** is deleted and replaced with the following:

Administration means: (A) advising, counseling, failing to provide, distribute or file proper or timely notice, providing interpretations to, or calculating benefits of, **Employees**, **Executives**, participants or beneficiaries with respect to any **Plan**; or (B) handling of records or effecting enrollment, termination or cancellation of **Employees**, **Executives**, participants or beneficiaries under any **Plan**.

(B) Paragraph (B)(1) of the definition of **Civil Penalties** is deleted and replaced with the following:

(1) the Pension Ombudsman appointed by the United Kingdom Secretary of State for Work and Pensions or any successor thereto, by the United Kingdom Occupational Pensions Regulatory Authority, or the Pensions Regulator or any successor thereto, pursuant to the Pension Scheme Act 1993, the Pensions Act 1995, the Pensions Act 2004, the Pension Schemes Act 2021, or rules or regulations thereunder, as amended;

(C) Paragraph (B)(3) of the definition of **Claim** is deleted and replaced with the following:

(3) an arrest, the return of an indictment, information or similar document or any foreign equivalent thereof, or the receipt of an official request for **Extradition**; or

(D) The definition of **Corporate Trustee Company** is deleted and replaced with the following:

Corporate Trustee Company means any entity formed and operating in a **Foreign Jurisdiction** established by the **Organization** and duly appointed to act as a trustee of a **Sponsored Plan**.

(E) The definition of **Loss** is amended as follows:

(i) Paragraph (A) is deleted and replaced with the following:

(A) **Defense Costs**, compensatory damages, judgments, including pre-judgment interest, post-judgment interest and any portion thereof deemed to be allocated to claimant's attorney's fees.

(ii) Paragraph (1) is deleted and replaced with the following:

(1) cost incurred by the **Organization**, **Plan** or any indemnifiable **Insured** (in their capacity as such) to comply with any order for non-monetary (including injunctive) relief or to comply with an agreement to provide such relief;

(F) The definition of **Managed Care Services** is deleted and replaced with the following:

Managed Care Services means the administration or management of a health care plan utilizing cost control mechanisms, including but not limited to utilization review, case management, disease management or the use of a preferred provider network. **Managed Care Services** does not include any **Self-Administered Plan**.

(3) **AMEND EXCLUSIONS**

Section IV, Exclusions, of this Coverage Part, is amended as follows:

(A) The preamble to Section IV, Exclusions, is deleted and replaced with the following:

The Company shall not be liable for any **Loss** on account of that portion of any **Matter**:

(B) Exclusion IV(A) is deleted and replaced with the following:

(A) Prior Notice

based upon, arising from or in consequence of any **Wrongful Act**, fact, circumstance or **Matter** that was the subject of any notice accepted under any prior fiduciary or employee benefit liability coverage of which this Coverage Part is a direct or indirect renewal or replacement;

(C) Exclusion IV(C) is deleted and replaced with the following:

(C) Bodily Injury/Property Damage/Violation of Right of Privacy

for bodily injury, violation of any right of privacy (other than violations of ERISA), mental anguish, humiliation, emotional distress, sickness, disease or death of any person or damage to or destruction of any tangible property, including loss of use thereof, whether or not it is damaged or destroyed; provided that this Exclusion (C) shall not apply to any bodily injury to, mental anguish, emotional distress, sickness, disease, exacerbation of existing illness, or wrongful death of any person resulting from: (1) selection of any **Managed Care Services** provider; or (2) denial or delay of any benefit under a health care plan, other than a **Self-Administered Plan**; and provided further that this Exclusion (C) shall not apply to **Defense Costs** on account of any **Claim** for a violation of ERISA, by an **Insured**.

(D) The last sentence of Exclusion IV(E) is amended to add "(other than a declaratory proceeding or action brought by or against the Company)."

(E) The last paragraph (addressing the severability of the exclusions) is deleted and replaced with the following:

For the purpose of determining the applicability of this Exclusion (E): (i) the **Wrongful Acts**, conduct, or actual knowledge of, or facts pertaining to, one **Insured** shall not be imputed to any other **Insured Person** or **Plan**; and (ii) only the **Wrongful Acts**, conduct, or knowledge of, or facts pertaining to the **Control Group** of an **Organization** shall be imputed to such **Organization** and its **Subsidiaries**; provided that, the foregoing subparagraph (ii) shall not preclude application of Exclusion (E) if the **Organization** is adjudicated in its own right.

(4) **AMEND REPORTING**

Section V, Reporting, of this Coverage Part, is amended as follows:

(A) The first sentence of Paragraph (B) is deleted and replaced with the following sentence:

(B) The **Insureds**, at their discretion, may give to the Company written notice of any **Elective Matter** no later than one hundred twenty (120) days after the **Control Group** first becomes aware of such **Elective Matter**.

(B) Paragraph (C) is deleted and replaced with the following:

(C) The **Insureds**, at their discretion, may give to the Company a **Voluntary Program Notice**. A **Voluntary Program Notice** shall be deemed to have been first made when such **Voluntary Program Notice** was first given to the Company. The Company may, in its sole discretion, waive such prior notice requirement and accept a **Voluntary Program Notice** that is given to the Company within ninety (90) days of the **Insured's** entry into such **Voluntary Program**, in which case the **Voluntary Program Notice** shall be deemed to have been first made on the initial date of the **Insured's** entry into such **Voluntary Program**. No coverage shall be available under this Policy for **Loss** on account of any unreported **Voluntary Program Notice**. However, if an **Insured** elects not to report a **Voluntary Program Notice**, coverage for any subsequent **Claim** or **Elective Matter** that is **Related** to such **Voluntary Program Notice** shall not be denied based on a failure to report such **Voluntary Program Notice** and shall be deemed first made in the **Policy Period** in which such subsequent **Claim** or **Elective Matter** was first made against such **Insured** and reported to the Company.

(C) The following Paragraph is added:

Notwithstanding the foregoing, the Company shall not assert failure to provide notice of a **Claim** in a timely manner unless the Company is materially prejudiced by such untimely notice. In no event, however, shall notice of a **Claim** be given later than the expiration date of the Extended Reporting Period, if applicable.

(5) **AMEND DEFENSE AND SETTLEMENT**

Section VI, Defense and Settlement, is amended as follows:

(i) Paragraph (C)(1) is amended to add the following:

However, if the **Insured** has the duty to defend or exercises any legal right to appoint counsel for the defense of a **Matter** covered by this Coverage Part, then the **Insureds** may incur **Defense Costs** or settle any **Matter**, without the Company's prior written consent, if the amount of such **Defense Costs** or settlement does not exceed the applicable Retention. The Company shall not be liable for any settlement or **Defense Costs** in excess of the amount of the applicable Retention to which it has not consented to in writing. The **Insureds** shall submit to the Company all requested information with respect to any incurred **Defense Costs** or settlement.

(ii) Paragraph (C)(3) is deleted and replaced with the following:

(3) any payment or advancement of **Defense Costs** shall be repaid to the Company by the **Insureds**, severally according to their respective interests, if and to the extent it is determined that such **Defense Costs** are not insured under this Coverage Part; provided the Company shall not seek repayment from an **Insured** of any **Defense Costs** paid or advanced by the Company that are deemed uninsured pursuant to Exclusion (E), Conduct, unless a final, non-appealable adjudication has occurred with respect to such **Insured**.

(iii) The following is added to paragraph (C):

(4) and, in the event an **Organization** refuses in writing, or fails within sixty (60) days of an **Insured Person's** written request for indemnification, to advance, pay or indemnify an **Insured Person** for **Defense Costs** on account of a **Matter** reported pursuant to Section V, Reporting. the Company shall pay or advance covered **Defense Costs** on a current basis until such time that the **Organization** accepts an **Insured Person's** request for indemnification or the Aggregate Limit of Liability set forth in Item 4(A) of the Fiduciary portion of the Declarations or any applicable Sublimit has been exhausted, whichever first occurs.

(6) **AMEND OTHER INSURANCE**

Paragraph (B) of Section VIII, Other Insurance, is deleted and replaced with the following:

(B) This Coverage Part shall be specifically excess of, and shall not contribute with, any valid and collectible insurance for professional liability, employee benefit liability or privacy, network security or cyber liability, pollution liability or environmental liability, including any general liability policy, regardless of whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise.

(7) **ADD ANTI-CLAWBACK PROTECTION**

Notwithstanding any other provision of this Coverage Part, the following Section is added as follows:

The Company shall not seek repayment from an **Insured** of amounts previously paid to or on behalf of such **Insured** prior to a determination that:

(A) any natural person who is insured under this Coverage Part who was alleged to be a fiduciary of a **Sponsored Plan** was not in fact a fiduciary of a **Sponsored Plan**;

(B) an alleged **Sponsored Plan** was not a plan or not a covered **Sponsored Plan**;

(C) an **Organization** alleged to be the sponsor of a **Sponsored Plan** was not in fact the sponsor of such plan; or

(D) any other allegation subsequently demonstrated to be incorrect places the **Claim** outside the grant of coverage under this Coverage Part.

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this policy shall remain unchanged.



Authorized Representative

In consideration of payment of the premium and subject to the Declarations, General Terms and Conditions, and the limitations, conditions, provisions and other terms of this Coverage Part, the Company agrees to pay for loss any Insured shall sustain at any time prior to the termination of this Coverage Part which is Discovered during the Policy Period in the manner set forth below:

I. INSURING CLAUSES

Insuring Clause (A): Employees and Plan Officials

(1) **Employee Theft**

The Company shall pay for loss sustained by an **Insured**, other than an **ERISA Plan**, resulting directly from **Theft** committed by an **Employee**, whether identified or not, acting alone or in collusion with others.

(2) **Client Theft**

The Company shall pay for loss sustained by a **Client** resulting directly from **Theft** committed by an identified **Employee**, acting alone or in collusion with others.

(3) **ERISA Fraud or Dishonesty**

The Company shall pay for loss sustained by an **ERISA Plan** resulting directly from **Fraud or Dishonesty** committed by a **Plan Official**, whether identified or not, acting alone or in collusion with others.

Insuring Clause (B): Premises

The Company shall pay for loss sustained by an **Insured** resulting directly from:

(1) **Theft** within or from the **Premises** or **Banking Premises** by a person physically present in such **Premises** or **Banking Premises** at the time of the loss;

(2) **Robbery**;

(3) **Safe Burglary**; or

(4) the actual destruction or disappearance of **Money** or **Securities** within or from the **Premises** or **Banking Premises**;

committed by a **Third Party**.

In the event of loss covered under Subsections (1) through (3) above, this Insuring Clause shall also cover damage to the **Premises** or its exterior, or to a locked safe, vault, cash drawer or cash box within the **Premises** which results directly from actual or attempted **Theft**, **Robbery** or **Safe Burglary**.

Insuring Clause (C): In Transit

The Company shall pay for loss sustained by an **Insured** resulting directly from:

(1) **Theft** while **In Transit**; or

(2) the actual destruction or disappearance of **Money** or **Securities** while **In Transit**,

committed by a **Third Party**.

In the event of loss covered under Subsections (1) and (2) above, this Insuring Clause shall also cover damage to or destruction of **Property** or damage to the home of an **Employee** occurring during actual or attempted **Theft** while **In Transit**.

Insuring Clause (D): Forgery

The Company shall pay for loss sustained by an **Insured** resulting directly from **Forgery** or alteration of a **Financial Instrument** committed by a **Third Party**.

Insuring Clause (E): Computer System Fraud

The Company shall pay for loss sustained by an **Insured** resulting directly from the unauthorized:

(1) transfer, payment, or delivery of **Money** or **Securities**; or

(2) transfer or delivery of **Property**,

committed by a **Third Party**, after such **Third Party** commits a **Network Intrusion**.

Insuring Clause (F): Funds Transfer Fraud

The Company shall pay for loss sustained by an **Insured** resulting directly from a **Funds Transfer Fraud** committed by a **Third Party**.

Insuring Clause (G): Social Engineering Fraud

The Company shall pay for loss sustained by an **Insured** resulting directly from a **Social Engineering Fraud** committed by a **Third Party**.

Insuring Clause (H): Money Orders and Counterfeit Currency Fraud

The Company shall pay for loss sustained by an **Insured** resulting directly from **Money Orders and Counterfeit Currency Fraud** committed by a **Third Party**.

II. EXPENSES

(A) **Claim and Computer Investigation Expense**

The Company shall pay for:

(1) **Claim Expenses** resulting directly from a loss covered under any Insuring Clause, but solely in the event such covered loss is in excess of the Retention applicable to such covered loss; and

(2) **Computer Investigation Expenses** resulting directly from a loss covered solely under Insuring Clauses (E), (F), or (G), but solely in the event such covered loss is in excess of the Retention applicable to such covered loss.

The Company's maximum liability for Paragraphs (A)(1) and (A)(2) above shall be the Limit of Liability applicable to Claim and Computer Investigation Expense set forth in Item 4 of the Crime portion of the Declarations, which amount is part of and not in addition to the Limit of Liability for any applicable Insuring Clause related to such **Claim Expenses** or **Computer Investigation Expenses**.

(B) **Legal Expense**

In addition to the Limits of Liability set forth in Item 4 of the Crime portion of the Declarations, the Company shall reimburse the **Parent Organization** for reasonable court costs and attorneys' fees incurred and paid, with the Company's prior written consent, in defending an **Insured** in any legal proceeding brought against it to enforce payment of a **Financial Instrument** as a result of loss otherwise covered under Insuring Clause (D).

III. DEFINITIONS

For purposes of this Coverage Part:

Banking Premises means the interior portion of a building occupied by, or the night depository chute or safe maintained by, any bank, trust company or similar financial institution.

Certificated Security means a share, participation or other interest in property of the issuer, an enterprise of the issuer, or an obligation of the issuer, which is:

(A) represented by an instrument issued in bearer or registered form;

(B) of a type commonly dealt in on securities exchanges or markets or commonly recognized in any area in which it is issued or dealt in as a medium for investment; and

(C) either one of a class or series or by its terms divisible into a class or series of shares, participations, interests or obligations.

Claims Expenses means reasonable expenses incurred by an **Insured** with the Company's prior written consent, solely for an independent accounting firm or other natural persons retained to determine the amount of a covered loss. **Claims Expenses** shall not include an **Insured's** internal corporate costs (such as salaries), attorneys' fees, or expenses incurred by any **Client**.

Client means a customer of an **Insured** to whom an **Insured** provides goods or services under written contract or for a fee.

Computer Investigation Expenses means reasonable expenses incurred by an **Insured** with the Company's prior written consent, for computer forensic services to investigate a covered loss. **Computer Investigation Expenses** shall not include an **Insured's** internal corporate costs (such as salaries), attorneys' fees, or expenses incurred by any **Client**.

Computer System means a device or group of devices and all input, output, processing, storage, off-line media libraries (including third-party hosted computing services accessed across the internet and their associated infrastructure, platform, and software services), and communication facilities, including related communications networks, which are connected directly or indirectly to such device or group of devices and which are leased, owned or operated by an **Insured** or operated for the benefit of an **Insured** by another entity under written agreement with such **Insured**.

Contractual Independent Contractor means any natural person while in the service of an **Insured** and in the ordinary course of such **Insured's** business, whom an **Insured** directly compensates pursuant to a written contract between such **Insured** and such natural person.

Cryptocurrency means a digital or electronic medium of exchange, operating independently of a central bank, in which encryption techniques are used to regulate the generation of units and to verify the transfer of such units.

Customer Communication System means an online portal or mobile application provided by an **Insured** for purposes of accessing a **Client** or customer account maintained by the **Insured**.

Discovery or **Discovered** means knowledge acquired by an **Executive** or **Insurance Representative** of any **Insured** which would cause a reasonable person to believe a covered loss has occurred or an occurrence has arisen that may subsequently result in a covered loss. This includes loss:

(A) sustained prior to the inception date of any coverage under this Coverage Part;

(B) which does not exceed the Retention; or

(C) the exact amount or details of which are unknown.

However, this shall not include knowledge acquired by an **Executive** or **Insurance Representative** of any **Insured** acting alone or in collusion with an **Employee** who is a participant in any **Theft**, **Forgery**, or **Fraud or Dishonesty**.

Employee means any:

(A) natural person, other than an **Executive** or **Plan Official**, while in the regular service of an **Insured** in the ordinary course of such **Insured's** business, whom such **Insured** compensates by salary or wages and has the right to govern and direct in the performance of such service, including any part-time, seasonal, leased or temporary worker, volunteer, intern, or any person formerly meeting this definition while retained by the **Insured** as a consultant pursuant to a written contract;

(B) **Executive** while performing acts within the scope of the usual duties of an **Employee**;

(C) **Contractual Independent Contractor**;

(D) **Plan Official**;

(E) natural person, as defined in Subsections (A) and (B) of this definition, while on leave for military services, or medical or family reasons, with the consent of the **Insured**; or

(F) natural person, as defined in Subsections (A) and (B) of this definition, during a period not exceeding sixty (60) days following the termination of such natural person's service with the **Insured**.

Employee Benefit Plan means any pension or welfare benefit plan sponsored by the **Parent Organization** or any **Subsidiary** for the benefit of its **Employees** or former **Employees**, or jointly by such **Parent Organization** or **Subsidiary** and a labor union for the benefit of **Employees** and which existed on or before the inception of this Coverage Part, or which is created or acquired after the inception of this Coverage Part in accordance with Section XI(A), Acquisition of Another Organization, Sponsored Plan, or Employee Benefit Plan, of the General Terms and Conditions.

ERISA means the Employee Retirement Income Security Act of 1974, as amended.

ERISA Plan means any **Employee Benefit Plan** that is subject to **ERISA**.

Executive means any natural person specified below:

(A) a duly elected or appointed director, officer, trustee, member of the Board of Managers, management committee member or in-house general counsel of an **Insured** incorporated, formed or organized in the United States of America;

(B) a holder of an equivalent position to those described in Subsection (A) above of an **Insured** incorporated, formed or organized in a **Foreign Jurisdiction**; or

(C) a natural person partner of an **Insured** while engaged in the regular service of such **Insured**.

Financial Instrument means a check, draft or similar written promise, order or direction to pay a sum certain in **Money** that is made, drawn by or drawn upon an **Insured**, or made or drawn by anyone acting as an **Insured's** agent, or that is purported to have been so made or drawn. For purposes of Insuring Clause (D), Forgery, a substitute check, as defined in the Check Clearing for the 21st Century Act, shall be treated the same as the original check it replaced.

Forgery means:

(A) affixing the handwritten signature, or a reproduction of the handwritten signature, of another natural person without authorization and with the intent to deceive; or

(B) affixing the name of an **Insured** as an endorsement to a **Financial Instrument** without authorization and with the intent to deceive,

provided that a signature which consists, in whole or in part, of one's own name signed with or without authority, in any capacity, for any purpose is not a **Forgery**. An electronic or digital signature is not a reproduction of a handwritten signature. **Forgery** does not include a typed name in any form, including but not limited to an email, letterhead or pre-printed material.

Fraud or Dishonesty means any intentional act of larceny, theft, embezzlement, forgery, misappropriation, wrongful abstraction, wrongful conversion or willful misapplication, or any other intentional fraudulent or dishonest act. **Fraud or Dishonesty** shall also include any intentional act prohibited by Title 18, Section 1954 of the U.S. Code.

Funds Transfer Fraud means fraudulent electronic, telegraphic, cable, teletype, facsimile, telephone or written instructions (other than **Forgery**), purportedly issued by an **Insured** to a financial institution by a **Third Party** which directs such institution to transfer, pay or deliver **Money** or **Securities** from any account maintained by such **Insured** at such institution, without such **Insured's** knowledge or consent.

Insurance Representative means any member of an **Insured's** Risk Management Department (or functional equivalent) including a risk manager, designated to represent an **Insured** for the purpose of effecting and maintaining insurance.

Insured means:

(A) the **Parent Organization**;

(B) any **Subsidiary**;

(C) any **Employee Benefit Plan**; or

(D) any **ERISA Plan**.

Insured's Network means:

(A) a **Computer System**; or

(B) a **Customer Communication System**.

In Transit means being conveyed outside the **Premises**, from one person or place to another, by an **Insured** within the custody of:

(A) an **Employee**; or

(B) an armored vehicle company duly authorized by such **Insured** to have custody of **Money** or **Securities**.

Such conveyance begins immediately upon receipt of **Money** or **Securities** by any natural person or entity described in Subsection (A) or (B) above from such **Insured** and ceases immediately upon delivery to the designated recipient or its agent, provided that such conveyance shall not cease while temporarily in the home of an **Employee** while **In Transit**.

Money means a medium of exchange in current use authorized or adopted by a domestic or foreign government as part of its currency, including coin, bank notes and precious metals in bullion form. **Money** shall not include **Securities** or **Cryptocurrency**.

Money Orders and Counterfeit Currency Fraud means the good faith acceptance by an **Insured**:

(A) in exchange for merchandise, **Money** or services, of any post office or express company or bank money order, issued or purporting to have been issued by any post office, express company, or bank, if such money order is not paid upon presentation; or

(B) in the regular course of business, of counterfeit paper currency.

Network Intrusion means:

(A) unauthorized access; or

(B) the entry of an unauthorized application or software program,

into the **Network** of an **Insured** by any entity or natural person, except an **Employee** or any authorized representative of the **Insured**.

Plan Official means any natural person while in the service of any **Insured** who is required to be bonded by Title 1 of **ERISA**, including:

(A) a fiduciary;

(B) a trustee;

(C) an administrator;

(D) an officer;

(E) any other natural person who handles **ERISA Plan** assets; or

(F) any natural person described in Subsections (A) through (E) above during a period not exceeding sixty (60) days following the termination of such natural person's service with the **Insured**,

provided that **Plan Official** shall not include any independent contractor, **Contractual Independent Contractor**, or any agent, broker, factor, commission merchant, consignee, or representative of the same general character or employee thereof.

Premises means the interior portion of a building, facility or property occupied by an **Insured** in conducting its business.

Property means tangible property other than **Money** or **Securities**. **Property** shall not include a **Computer System**, computer programs, electronic data or any property specifically excluded under this Coverage Part.

Robbery means the unlawful taking of **Money**, **Securities** or **Property** from the custody of an **Employee**, or other person (except a person acting as a watchman, porter or janitor) duly authorized by an **Insured** to have custody of such **Money**, **Securities** or **Property**, by violence or threat of violence, committed in the presence and cognizance of such **Employee** or other person.

Safe Burglary means the unlawful taking of **Money**, **Securities** or **Property**, by forcible or violent entry evidenced by visible marks, from a locked vault or safe located within the **Premises**.

Securities means any tangible:

(A) revenue and other stamps in current use;

(B) gift certificates, gift cards or similar instruments issued by an **Insured**; or

(C) tokens, chips, tickets in current use,

which represent either **Money** or **Property**.

Securities also includes any **Certificated Security** or **Uncertificated Security** but does not include **Money** or **Cryptocurrency**.

Social Engineering Fraud means the intentional misleading of an **Employee** through misrepresentation of a material fact which is relied upon by such **Employee** believing it to be genuinely committed by a natural person purporting to be:

(A) a **Vendor**;

(B) a **Client**; or

(C) an **Employee** authorized by the **Insured** to instruct other **Employees** to transfer **Money** or **Securities**,

which results in the transfer, payment, or delivery of **Money** or **Securities**.

Theft means the unlawful taking of **Money** or **Securities** to the deprivation of an **Insured** or a **Client**. Solely for the purposes of Insuring Clauses (A)(1) and (A)(2), **Theft** also includes the unlawful taking of **Property**.

Third Party means any natural person or organization other than an **Employee**, **Client**, or any agent, factor, commission merchant, independent contractor, or other authorized representative of an **Insured** or of a **Client**.

Uncertificated Security means a share, participation or other interest in property of the issuer, an enterprise of the issuer, or an obligation of the issuer, which is:

(A) not represented by an instrument and the transfer of which is registered on books maintained for that purpose by or on behalf of the issuer;

(B) of a type commonly dealt in on securities exchanges or markets; and

(C) either one of a class or series or by its terms divisible into a class or series of shares, participations, interests or obligations.

Vendor means any **Third Party** that has provided goods or services to an **Insured** under a legitimate pre-existing arrangement or written agreement. However, **Vendor** does not include any asset manager, broker-dealer, counter party, custodian, or any similar entity.

IV. ERISA PLANS

In compliance with certain provisions of **ERISA**, the following provisions apply:

(A) Discovery Period

Solely with respect to loss covered under Insuring Clause (A)(3), this Coverage Part applies only to loss first **Discovered** by an **Insured**:

(1) during the **Policy Period**; or

(2) within one (1) year following the termination of this Coverage Part in its entirety (the "Extended Discovery Period"), provided that:

(a) such loss is sustained prior to such termination; and

(b) the Extended Discovery Period shall terminate immediately upon the effective date of any other insurance obtained for an **ERISA Plan** which replaces the coverage provided by this Coverage Part for such **ERISA Plan** in an amount no less than the minimum amount required under **ERISA** and provides coverage for loss sustained prior to the effective date of the other insurance.

(B) Limits of Liability

The Company's maximum liability for all loss sustained by each **ERISA Plan** shall not exceed the Limit of Liability applicable to Insuring Clause (A)(3) set forth in Item 4(A)(3) of the Crime portion of the Declarations, unless such Limit of Liability is less than the minimum limit of insurance required by **ERISA**. In such event, the Limit of Liability shall be amended in accordance with **ERISA** as follows:

(1) if the **ERISA Plan** does not hold employer securities within the meaning of **ERISA**, the Limit of Liability applicable to such covered loss shall be ten percent (10%) of the funds handled by such **ERISA Plan** in the preceding reporting year, up to a maximum limit of liability of $500,000; or

(2) if the **ERISA Plan** does hold employer securities within the meaning of **ERISA**, the Limit of Liability applicable to such covered loss shall be ten percent (10%) of the funds

handled by such **ERISA Plan** in the preceding reporting year, up to a maximum limit of liability of $1,000,000,

provided that, in all events, the Limit of Liability applicable to Insuring Clause (A)(3) set forth in Item 4(A)(3) of the Crime portion of the Declarations shall be never be less than $1,000.

The payment of any such loss under this Coverage Part shall not reduce the liability of the Company for other losses whenever sustained; except that the total liability of the Company for all loss resulting from any act or any series of acts committed by the same **Plan Official** in which the same **Plan Official** is concerned or implicated, regardless of whether such act or series of acts was committed before or during the **Policy Period**, shall be treated as a single loss and the Limit of Liability applicable to Insuring Clause (A)(3) set forth in Item 4(A)(3) of the Crime portion of the Declarations (or as amended by (B)(1) and (B)(2) above) will apply.

(C) Payover

In compliance with Title 1 of **ERISA** and solely with respect to loss covered under Insuring Clause (A)(3), payment by the Company shall be held by an **Insured** for the benefit of any **ERISA Plan** sustaining a loss. If such payment is in excess of the amount of coverage required by **ERISA** for such **ERISA Plan**, such excess amount shall be held by the **Insured** for the use and benefit of any other named **ERISA Plan** should such **ERISA Plan** also **Discover** loss recoverable hereunder. If **Money**, **Securities**, and **Property** of two or more **ERISA Plans** is commingled, recovery hereunder for loss of such **Money**, **Securities**, and **Property** shall be shared by such **ERISA Plans** on a pro rata basis in accordance with the amount of coverage each such **ERISA Plan** is required to carry pursuant to **ERISA**.

V. EXCLUSIONS

(A) This Coverage Part does not cover:

(1) Disclosure of Confidential Information

loss resulting directly or indirectly from the disclosure of confidential or personal information while in the care, custody or control of an **Insured**, including but not limited to patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, retirement or health savings account information or any similar type of non-public information, except loss that is otherwise covered under this Coverage Part through the use of confidential or personal information to facilitate such loss;

(2) Data Breach Expenses

fees, costs, fines, penalties or any other expenses or liabilities incurred by an **Insured** resulting directly or indirectly from the access to or disclosure of an **Insured's** or another entity's or natural person's confidential or personal information, including but not limited to patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, retirement or health savings account information or any similar type of non-public information;

(3) War

loss resulting directly or indirectly from declared or undeclared war, civil war, insurrection, rebellion, revolution, military, naval or usurped power, governmental intervention, expropriation or nationalization, or any act or condition incident to any of the foregoing;

(4) Nuclear

loss resulting directly or indirectly from nuclear reaction, nuclear radiation or radioactive contamination, or any act or condition incident to any of the foregoing;

(5) Unrealized Income

loss of income not realized, whether or not as the result of a covered loss;

(6) Indirect or Consequential Loss

indirect or consequential loss or damage of any kind;

(7) Expenses

fees, costs or expenses incurred or paid in defending or prosecuting any legal proceeding or claim, except those expenses otherwise covered under Section II(B), Legal Expense;

(8) Authorized Representative

loss resulting directly or indirectly from any fraudulent, dishonest or criminal act (other than **Robbery** or **Safe Burglary**) committed by any authorized representative of an **Insured**, whether acting alone or in collusion with others, unless committed in collusion with an **Employee**;

(9) Fraudulent Instructions

loss resulting directly or indirectly from any transfer, payment or delivery of **Money**, **Securities**, or **Property**:

(a) approved by an **Employee**; or

(b) arising out of any misrepresentation received by an **Employee**, agent, independent contractor or other representative of an **Insured**,

whether such transfer, payment or delivery was made in good faith or as a result of trick, artifice, fraud or false pretenses, except when covered under Insuring Clause (A), (G), or (H);

(10) Cryptocurrency

loss of **Cryptocurrency**;

(11) Advantage

loss sustained by one **Insured** to the advantage of any other **Insured**, except when covered under Insuring Clause (A)(3); or

(12) Kidnap, Ransom and Extortion

loss resulting directly or indirectly from any kidnap, ransom or other extortion payment (other than **Robbery**) surrendered to any person as a result of a threat to do bodily harm to any natural person or a threat to do damage to any **Property**, or disclose confidential or personal information of any natural person or **Insured,** except when covered under Insuring Clause (A).

(B) In addition to the Exclusions in Subsection (A) above, with respect to Insuring Clause (A), this Coverage Part does not cover:

(1) Trading

loss resulting directly or indirectly from any authorized or unauthorized trading of **Money**, **Securities** or **Property**, whether or not in the name of an **Insured** and whether or not in a genuine or fictitious account, except: (a) when covered under Insuring Clause (A)(3); or (b) with respect to otherwise covered loss which results in improper financial gain to an **Employee** (other than salary, commissions, fees or other compensation, including but not limited to promotions and raises associated with employment, paid by the **Insured** to such **Employee**);

(2) Independent Contractor

loss resulting directly or indirectly from the acts of any agent, broker, factor, commission merchant, consignee, contractor, independent contractor, subcontractor or other similar representative, except the acts of any **Contractual Independent Contractor**; or

(3) Inventory Shortage

any loss, or that part of any loss, for which the proof as to its existence or amount is dependent solely upon:

(a) an inventory computation or physical count; or

(b) a profit or loss computation;

provided that where an **Insured** establishes wholly apart from such computation or physical count that it sustained a loss covered under Insuring Clause (A), then the **Insured** may offer its own inventory records or the inventory records of a **Client**, and an actual physical count of inventory in support of the amount of loss claimed.

(C) In addition to the Exclusions in Subsection (A) above, with respect to Insuring Clauses (B) and (C), this Coverage Part does not cover:

(1) Mail/Carrier for Hire

loss resulting directly or indirectly from the damage, disappearance, or destruction of **Money**, **Securities** or **Property** while in the mail or in the custody of a carrier for hire other than an armored motor vehicle company;

(2) Fire

loss resulting directly or indirectly from fire, except:

(a) loss of **Money** or **Certificated Securities**; or

(b) damage to any safe or vault caused by the application of fire thereto for the purposes of **Safe Burglary**; or

(3) Voluntary Parting

loss resulting directly or indirectly from an **Insured** having given or surrendered **Money**, **Securities** or **Property** in any exchange or purchase with a **Third Party**.

(D) In addition to the Exclusions in Subsection (A) above, with respect to Insuring Clauses (E), (F), or (G), this Coverage Part does not cover:

(1) Credit Card Transactions

loss resulting directly or indirectly from the use of credit, debit, charge, access, convenience, identification, cash management or other cards whether such cards were issued, or purport to have been issued, by an **Insured** or by any entity other than the **Insured**;

(2) Product or Service Failure

loss resulting directly or indirectly from the failure, malfunction, inadequacy or illegitimacy of any product or service;

(3) Breach of Contract

loss resulting directly or indirectly from the failure of any party to perform in whole or in part under any contract;

(4) Extension of Credit

loss resulting directly or indirectly from the extension of any loan, credit or similar promise to pay; or

(5) Gambling

loss resulting directly or indirectly from any gambling, game of chance, lottery or similar game.

VI. LIMIT OF LIABILITY

(A) The Company's maximum liability for each loss shall not exceed the Limit of Liability applicable to such loss set forth in Item 4 of the Crime portion of the Declarations, regardless of the number of **Insureds** sustaining the loss, provided that with respect to loss covered under Insuring Clause (A)(3), the Company's maximum liability for each loss shall apply in accordance with the terms of Section IV, ERISA Plans.

(B) If a loss is covered under more than one Insuring Clause, the maximum amount payable under this Coverage Part shall not exceed the largest applicable Limit of Liability of any such Insuring Clauses.

(C) All loss resulting from a single act or any number of acts of the same **Employee** or **Third Party**, regardless of whether or not such loss was sustained by one or more **Insureds**, and regardless of whether such act or acts occurred before or during the **Policy Period**, will be treated as a single loss and the applicable Limit of Liability set forth in Item 4 of the Crime portion of the Declarations will apply.

(D) With respect to loss sustained by more than one **Insured**, the maximum liability of the Company for all loss sustained by any or all **Insureds** combined shall not exceed the amount for which the Company would be liable if all loss was sustained by any one **Insured**.

(E) Regardless of the number of years this coverage remains in effect and the total premium amounts due or paid, whether under this Coverage Part, any prior bond or coverage part, or any renewal or replacement of this Coverage Part, the liability of the Company with respect to any loss shall not be cumulative from year to year or from **Policy Period** to **Policy Period**.

VII. OWNERSHIP

This Coverage Part shall only apply to loss of **Money**, **Securities**, or **Property**:

(A) owned by an **Insured**;

(B) held by an **Insured** in any capacity; or

(C) for which an **Insured** is legally liable,

except, solely with respect to loss covered under Insuring Clause (A)(2), this Coverage Part shall apply to loss of **Money**, **Securities**, or **Property** owned or held by a **Client** in any capacity and for which the **Client** is legally liable.

VIII. OTHER INSURANCE AND INDEMNITY

With respect to any loss covered by this Coverage Part, if any **Insured** or any other party in interest has any bond, indemnity, or insurance which would cover such loss in whole or in part in the absence of this Coverage Part, then this Coverage Part shall be null and void to the extent of the amount recoverable or received under such bond, indemnity or insurance; provided that this Coverage Part shall cover such loss, subject to its limitations, conditions, provisions and other terms, to the extent of the amount of such loss in excess of the amount recoverable or received under such bond, indemnity, or insurance.

Solely with respect to loss of or damage to **Money**, **Securities** or **Property** while in the custody of any bank, trust company, similar recognized place of safe deposit, or armored motor vehicle company, this Coverage Part shall cover such loss in excess of the amount recoverable or the amount received by an **Insured** under: (A) such **Insured's** contract, if any, with, or insurance carried by, any of the foregoing; or (B) any other valid and collectible bond, insurance, or indemnity in force which would cover such loss in whole or in part.

IX. RECOVERIES

(A) In the event of any payment under this Coverage Part, the Company shall be subrogated to the extent of such payment to all of the **Insured's** rights of recovery, and such **Insured** shall execute all papers required and shall do everything necessary to secure and preserve such rights, including the execution of such documents necessary to enable the Company effectively to bring suit or otherwise pursue subrogation rights in the name of the **Insured**.

(B) Recoveries for any loss covered under this Coverage Part, whether effected by the Company or by an **Insured**, less the unreimbursed cost of recovery incurred by the Company, shall be distributed as follows:

(1) first, to an **Insured** for the amount of such loss, otherwise covered, in excess of the applicable Limit of Liability, except such loss otherwise covered under Section II, Expenses;

(2) second, to the Company for the amount of such loss paid to an **Insured** as covered loss;

(3) third, to an **Insured** for the Retention applicable to such loss;

(4) fourth, to an **Insured** for the amount of such loss, otherwise covered, in excess of the applicable Limit of Liability for loss covered under Section II, Expenses; and

(5) fifth, to an **Insured** for the amount of such loss not covered under this Coverage Part.

(C) Recovery from reinsurance or indemnity of the Company shall not be deemed a recovery hereunder.

X. TERMINATION AS TO ANY EMPLOYEE

This Coverage Part terminates as to any **Employee**:

(A) immediately upon any **Executive** or **Insurance Representative** (other than those acting in collusion with such **Employee**) becoming aware of a **Theft**, **Forgery** or other act involving fraud or dishonesty committed by such **Employee** while employed with or in the service of an **Insured**; or

(B) immediately upon any **Executive** or **Insurance Representative** becoming aware of any act involving fraud or dishonesty which involves **Money**, **Securities** or **Property** of a value greater than or equal to twenty-five thousand dollars ($25,000) committed by such **Employee** prior to employment or service with an **Insured**.

Coverage for an **Employee** described above may be reinstated by the Company if the general counsel and director of human resources of an **Insured** (or any functional equivalents thereof) jointly agree in writing to continue with the employment of such **Employee**, and contemporaneously document in writing additional internal control procedures implemented with the specific purpose to reduce the risk of loss associated with such continued employment. Such reinstatement must be made by written endorsement to this Coverage Part by the Company and shall be subject to additional or different terms, conditions and limitations of coverage and payment of additional premium as the Company in its sole and absolute discretion may require.

No coverage will be available for loss caused by any **Employee** for whom similar prior insurance has been terminated or cancelled and not reinstated in writing since such termination or cancellation.

XI. TERMINATION OF PRIOR POLICY

Any prior fidelity bonds or crime policies issued by the Company or any subsidiary or affiliate of the Company to the **Parent Organization** shall terminate, if not already terminated, as of the inception of this Coverage Part.

XII. DISCOVERY PERIOD

Except as set forth in Section IV, ERISA Plans, this Coverage Part applies only to loss first **Discovered** by the **Insured**:

(A) during the **Policy Period**; or

(B) solely in the event of complete liquidation or dissolution of the **Parent Organization**, within ninety (90) days following the termination of this Coverage Part in its entirety (the "Extended Discovery Period"), provided that:

(1) such loss is sustained prior to such termination; and

(2) the Extended Discovery Period shall terminate immediately upon the effective date of any other insurance obtained for any **Insured**, which replaces in whole or in part the coverage afforded under this Coverage Part, whether or not such other insurance provides coverage for loss sustained prior to its effective date.

XIII. PROOF OF LOSS AND LEGAL PROCEEDINGS

(A) As a condition precedent to coverage hereunder, the **Parent Organization** shall, upon **Discovery**:

(1) give written notice and furnish affirmative proof of loss with full particulars to the Company at the earliest practicable moment, but in no event later than one (1) year after such **Discovery**;

(2) submit to examination under oath at the Company's request;

(3) produce all pertinent records at such reasonable times and places as the Company shall designate; and

(4) provide full cooperation with the Company in all matters pertaining to a loss under this Coverage Part.

(B) No **Insured** shall institute legal proceedings against the Company:

(1) after two (2) years immediately following any **Discovery**; or

(2) after two (2) years immediately following the date upon which a judgment shall become final or settlement entered to recover a judgment or settlement against an **Insured** resulting from **Forgery** or related legal expenses as set forth in Subsection II(B), Legal Expense.

XIV. JOINT INSURED

(A) By acceptance of this Coverage Part, the **Parent Organization** agrees that it shall be considered the sole agent of, and shall act on behalf of, each **Insured** with respect to:

(1) the payment of premiums and the receiving of return premiums that may become due under this Coverage Part;

(2) the negotiation, agreement to and acceptance of endorsements for this Coverage Part; and

(3) the giving or receiving of any notice provided for in this Coverage Part

Each **Insured** agrees that the **Parent Organization** shall act on its behalf with respect to the foregoing.

(B) Each and every other **Insured** shall be conclusively deemed to have consented to and agreed that none of them shall have any direct beneficiary interest in or any right of action under this Coverage Part and neither this Coverage Part nor any right of action shall be assignable.

(C) Knowledge possessed by any **Insured** or **Discovery** by any **Insured** shall be deemed knowledge possessed by or **Discovery** by all **Insureds**.

(D) All loss and other payments, if any, payable by the Company, shall be payable to the **Parent Organization** without regard to such **Parent Organization's** obligations to others, and the Company shall not be responsible for the application by the **Parent Organization** of any payment made by the Company, except for loss and other payments, if any, payable by the Company to any **ERISA Plan**, which shall be made directly to the **ERISA Plan** sustaining such loss. If the Company agrees to and makes payment to any **Insured**, other than the **Parent Organization**, such payment shall be treated as though made to the **Parent Organization**.

XV. JOINT LOSS PAYEE

Any loss covered under this Coverage Part involving **Money**, **Securities** or **Property** in which a **Client** has an interest, may be payable by the Company to the **Parent Organization** and such **Client** as joint payees, at the direction of the **Parent Organization**; provided that the coverage afforded pursuant to this Coverage Part is for the sole use and benefit of the **Parent Organization**. Any **Client** shall not be considered an **Insured** under this Coverage Part nor shall any **Client** otherwise have any rights or benefits hereunder.

XVI. CONCEALMENT, MISREPRESENTATION AND FRAUD

This Coverage Part is void in any case of fraud by an **Insured** as it relates to this Coverage Part at any time. It is also void if any **Insured**, at any time, conceals or misrepresents a material fact concerning:

(A) this Coverage Part, and any application made in connection therewith;

(B) **Money**, **Securities**, or **Property** covered under this Coverage Part;

(C) an **Insured**'s interest in **Money**, **Securities**, or **Property** covered under this Coverage Part; or

(D) a claim under this Coverage Part.

GEORGIA AMENDATORY ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			27
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Crime Coverage Part

In consideration of the premium charged, it is agreed that this Coverage Part is amended as follows:

1. The first full paragraph of Section VIII, Other Insurance and Indemnity, is deleted and replaced with the following:

   With respect to any loss covered by this Coverage Part, if any **Insured** has any bond, insurance or indemnity which would cover such loss in whole or in part, whether or not such bond, insurance or indemnity is subject to the same terms and conditions as this Coverage Part, then this Coverage Part shall cover its share of such loss**,** subject to its limitations, conditions, provisions and other terms, in an amount equal to the proportion that the then-available limit of liability under this Coverage Part bears to the aggregate of all limits of liability of all bonds, insurance or indemnity covering such loss, whether such other bond, insurance or indemnity is stated to be primary, contributory, excess, contingent, or otherwise, unless such other bond, insurance or indemnity is written only as specific excess insurance of this Coverage Part.

2. The lead-in sentence to Section XVI, Concealment, Misrepresentation & Fraud is deleted and replaced with the following:

   Coverage under this Coverage Part will be denied in any case of fraud by the **Insured** as it relates to this Coverage Part at any time. Coverage will also be denied if any **Insured**, at any time, conceals or misrepresents a material fact concerning:

The Policy will be deemed to have been amended to the extent necessary to effect the purposes of this Amendatory Endorsement.

The regulatory requirements set forth in this Amendatory Endorsement shall supersede and take precedence over any provisions of the Policy or any endorsement to the Policy, whenever added, that are inconsistent with or contrary to the provisions of this Amendatory Endorsement, unless such Policy or endorsement provisions comply with the applicable insurance laws of the state of Georgia.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB®

AMEND DEFINITION OF EXECUTIVE FOR HEALTHCARE ORGANIZATIONS ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			28
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Crime Coverage Part

In consideration of the premium charged, it is agreed that the term **Executive,** as defined in Section III, Definitions, of the Crime Coverage Part is amended to include any trustee emeritus, department head, executive director, chief compliance officer, or member of the staff or faculty of the **Insured**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB®

TELEPHONE TOLL FRAUD ENDORSEMENT

Named Insured				Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC				29
Policy Number	Policy Period			Effective Date of Endorsement
J06814347	12-09-2025	to	12-09-2026	December 9, 2025
Issued By				
Federal Insurance Company				

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Crime Coverage Part

In consideration of the premium charged, it is agreed that the Crime Coverage Part is amended as follows:

(1) The following Insuring Clause is added:

Telephone Toll Fraud

The Company shall pay for loss sustained by an **Insured** resulting directly from **Telephone Toll Fraud** committed by a **Third Party**.

(2) Item 4 of the Crime portion of the Declarations is amended to include the following:

Item 4.

Insuring Clause	**Limit of Liability**	**Retention**
Telephone Toll Fraud:	$1,000,000	$25,000

(3) Section III, Definitions, of the Crime Coverage Part, is amended to include the following terms:

(a) **Calling Card** means a calling card access number or telephone credit card access number issued by a telecommunications company which gives the **Calling Card** customer access to and use of telecommunications services.

(b) **Telephone Toll Fraud** means toll and line charges the **Insured** is responsible for solely as a result of the fraudulent infiltration and manipulation of a **Telephone System** from a remote location to gain access to outbound long-distance telephone service.

(c) **Telephone System** means PBX, CBX, Merlin, VoIP, remote access (including DISA), and all related peripheral equipment or similar systems owned or leased by the **Insured** for purposes of voice-based telecommunications.

(4) No coverage will be available under the **Telephone Toll Fraud** Insuring Clause for loss caused by any use of a **Calling Card**.

(5) Section XIII, Proof of Loss and Legal Proceedings, of the Crime Coverage Part is amended to include the following:

With respect to the **Telephone Toll Fraud** Insuring Clause, it is a condition precedent to coverage hereunder that upon **Discovery**, the **Parent Organization** will give written notice to the Company at the earliest practicable moment, and in no event later than sixty (60) days after the billing cut-off date shown in the first telephone service charge bill from the telephone carrier in which **Telephone Toll Fraud** is documented. However, coverage shall not apply to that portion of loss sustained beginning thirty (30) days from the billing cut-off date shown in the first telephone service charge bill from the telephone carrier in which **Telephone Toll Fraud** is documented. Upon actual knowledge of **Telephone Toll Fraud** the **Insured** shall take all reasonable steps to curtail the unauthorized use of any **Telephone System** and otherwise mitigate the loss by notifying any installer of any **Telephone System** and the affected telephone carriers.

Within four (4) months after such **Discovery** the **Parent Organization** shall furnish to the Company affirmative proof of loss with full particulars. Legal proceedings for recovery of any loss hereunder shall not be brought after the expiration of two (2) years from the discovery of such loss.

At the Company's request, the **Insured** shall submit to examination by the Company, subscribe the same under oath if required, and produce for the Company's examination all pertinent records at such reasonable times and places as the Company shall designate, and shall cooperate with the Company in all matters pertaining to any loss or claim.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB®

CORPORATE CARD COVERAGE ENDORSEMENT

Named Insured			Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC			30
Policy Number	Policy Period		Effective Date of Endorsement
J06814347	12-09-2025 to	12-09-2026	December 9, 2025
Issued By			
Federal Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Crime Coverage Part

In consideration of the premium charged, it is agreed that the Crime Coverage Part is amended as follows:

(1) The following Insuring Clause is added:

Corporate Credit Card Fraud

The Company shall pay the **Parent Organization** for loss sustained by an **Insured** resulting directly from **Corporate Credit Card Fraud** committed by a **Third Party**.

(2) Item 4 of the Crime portion of the Declarations is amended to include the following:

Item 4.

Insuring Clause	**Limit of Liability**	**Retention**
Corporate Credit Card Fraud:	$1,000,000	$25,000

(3) Section II, Expenses, of the Crime Coverage Part, is amended to include the following:

Corporate Credit Card Fraud Legal Expenses

In addition to the Limits of Liability set forth in the Crime portion of the Declarations for this Policy, the Company shall reimburse the **Parent Organization** for reasonable court costs and attorneys' fees incurred and paid, with the Company's prior written consent, in defending an **Insured** in any legal proceeding brought against it to enforce payment of a written instrument, required in connection with any credit card issued to an **Insured**, or to an **Employee** at the request of an **Insured**, as a result of loss otherwise covered under the Corporate Credit Card Fraud Insuring Clause.

(4) Section V, Exclusions, of the Crime Coverage Part, is amended to include the following:

Solely with respect to the Corporate Credit Card Fraud Insuring Clause, this Coverage Part does not cover loss resulting directly or indirectly from any forgery or alteration of, on, or in any written instrument; unless:

(a) the provisions, conditions and other terms under which the involved credit card was issued were fully complied with; and

(b) an **Insured** is legally liable to the issuer of such credit card for such loss.

(5) Section III, Definitions, of the Crime Coverage Part, is amended to include the following terms:

Corporate Credit Card Fraud means the **Forgery** or alteration of, on, or in any written instrument required in connection with any credit card, debit card, or charge card issued to an **Insured**, or to an **Employee** at the request of an **Insured**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB®

SOCIAL ENGINEERING FRAUD – WITH AND WITHOUT OFFICIAL AUTHORIZATION ENDORSEMENT

Named Insured				Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC				31
Policy Number	Policy Period			Effective Date of Endorsement
J06814347	12-09-2025	to	12-09-2026	December 9, 2025
Issued By				
Federal Insurance Company				

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
Crime Coverage Part

In consideration of the premium charged, it is agreed that, solely with respect to Insuring Clause (G): Social Engineering Fraud, the Crime Coverage Part is amended as follows:

(1) Item 4. of the Crime portion of the Declarations is deleted and replaced with the following:

Item 4.

Insuring Clause	Limit of Liability	Retention
(G)(1) Social Engineering Fraud with Official Authorization	$250,000	$25,000
(G)(2) Social Engineering Fraud without Official Authorization	$100,000	$25,000

(2) Section I, Insuring Clauses, is amended by deleting Insuring Clause (G), Social Engineering Fraud, and replacing it with the following:

Social Engineering Fraud with Official Authorization

(G)(1) The Company shall pay for loss sustained by an **Insured** resulting directly from a **Social Engineering Fraud** committed by a **Third Party** where an **Official Authorization** has been performed.

Social Engineering Fraud without Official Authorization

(G)(2) The Company shall pay for loss sustained by an **Insured** resulting directly from a **Social Engineering Fraud** committed by a **Third Party** where an **Official Authorization** has not been performed.

(3) Solely with respect to the coverage provided by this Endorsement, Subsection (B) of Section IV, Retention, of the General Terms and Conditions, is deleted and replaced with the following:

The Company's liability under the Crime Coverage Part shall apply only to that part of each covered loss which is in excess of the applicable Retention set forth in Item 4 of the Crime portion of the Declarations. If a loss is covered under both Insuring Clause (G)(1) and Insuring Clause (G)(2), the applicable Retention shall not exceed the larger of the two.

(4) Section III, Definitions, of the Crime Coverage Part, is amended to add the following:

Bank Account Request means a request to change, modify or update a bank account or wire transfer instructions.

Counterparty means a **Vendor**, **Client** or **Employee** or natural person purporting to be a **Vendor**, **Client** or **Employee**.

Impersonated Employee means a natural person purporting to be an **Employee** authorized to instruct other **Employees** to transfer **Money** or **Securities**.

Official Authorization means, with respect to any:

(A) transfer of **Money** or **Securities** made in reliance upon any misrepresentation of a material fact committed by an **Impersonated Employee**, approval of such transfer by at least two **Employees**, one of whom is an **Executive**;

(B) loss as a result of a **Bank Account Request**, an **Employee** attempted to verify the authenticity of such request by communicating with **Counterparty** via any communication method, other than e-mail, prior transferring **Money** or **Securities** and contemporaneously documented the communication method utilized and result of such attempt in writing; and

(C) transfer of **Money** or **Securities**, other than that described in paragraphs (A) and (B) above, an **Employee** attempted to verify any statement upon which he/she relied by communicating with **Counterparty** via any communication method, other than e-mail, prior to transferring **Money** or **Securities**, and contemporaneously documented the communication method utilized and result of such attempt in writing.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

CHUBB

CRIME ENHANCEMENT ENDORSEMENT

Named Insured				Endorsement Number
ATLANTA WOMEN'S HEALTH GROUP, PC				32
Policy Number	Policy Period			Effective Date of Endorsement
J06814347	12-09-2025	to	12-09-2026	December 9, 2025
Issued By				
Federal Insurance Company				

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

The ForeFront Portfolio
CRIME COVERAGE PART

In consideration of the premium charged, it is agreed that solely with respect to this Crime Coverage Part, the following shall apply:

(1) **AMEND INSURING CLAUSES**

Section I, Insuring Clauses, is amended by deleting Insuring Clause (B): Premises, and Insuring Clause (C): In Transit, and replacing them with the following, respectively:

Insuring Clause (B): Premises

The Company shall pay for loss sustained by an **Insured** resulting directly from:

(1) **Theft** within or from the **Premises** or **Banking Premises** committed by a **Third Party** physically present in such **Premises** or **Banking Premises** at the time of the loss;

(2) **Robbery** or **Safe Burglary** committed by a **Third Party**;

(3) the actual destruction or disappearance of **Money** or **Securities** within or from the **Premises** or **Banking Premises**,

In the event of loss covered under Paragraphs (1) through (2) above, this Insuring Clause shall also cover damage to the **Premises** or its exterior, or to a locked safe, vault, cash drawer or cash box within the **Premises** which results directly from actual or attempted **Theft**, **Robbery** or **Safe Burglary**.

Insuring Clause (C): In Transit

The Company shall pay for loss sustained by an **Insured** resulting directly from:

(1) **Theft** committed by a **Third Party** while **In Transit**; or

(2) the actual destruction or disappearance of **Money** or **Securities** while **In Transit**,

In the event of loss covered under Paragraphs (1) and (2) above, this Insuring Clause shall also cover damage to or destruction of **Property** or damage to the home of an **Employee** occurring during **Theft** or attempted **Theft** while **In Transit**.

(2) **AMEND DEFINITIONS**

Section III, Definitions, of this Coverage Part, is amended as follows:

(A) The definition of **Banking Premises** is deleted and replaced with the following:

Banking Premises means the interior portion of a building occupied by, or the night depository chute or safe maintained by, any bank, trust company or similar financial institution, including a stockbroker, mutual fund or similar financial institution in which the **Organization** maintains a transfer account.

(B) The definition of **Credit Card Fraud** (as defined in PF-54737) is amended to add the following:

Credit Card Fraud also means the **Forgery** or alteration of, on or in, any written instrument required in connection with other evidence of debt issued to an **Organization** or at the request of an **Organization**, to any partner, officer or **Employee** of an **Organization.**

(C) The first paragraph of the definition of **Discovery** or **Discovered** is deleted and replaced with the following:

Discovery or **Discovered** means knowledge acquired by an **Insured's** (i) Risk Management Department (or functional equivalent) including a risk manager, (ii) Human Resources Department (or functional equivalent), or Office of the General Counsel (or functional equivalent) which would cause a reasonable person to believe a covered loss has occurred or an occurrence has arisen that may subsequently result in a covered loss. This includes loss:

(D) The definition of **Employee** is amended as follows:

(i) Paragraph (A) of the definition of **Employee** is deleted and replaced with the following:

(A) natural person, other than an **Executive** or **Plan Official**, while in the regular service of an **Insured** in the ordinary course of such **Insured's** business, whom such **Insured** compensates by salary or wages and has the right to govern and direct in the performance of such service, including any part-time, seasonal, leased or temporary worker, volunteer, intern, or student (in their capacity as a part-time, seasonal, leased or temporary worker, volunteer, or intern), or any person formerly meeting this definition while retained by the **Insured** as a consultant;

(ii) Paragraph (B) of the definition of **Employee** is amended by deleting the phrase "while performing acts within the scope of the usual duties of an **Employee**" after **Executive**.

(iii) The definition of **Employee** is amended to add the following:

Employee also means any **Agent**, but only while the **Agent**: (i) is duly appointed by an **Organization** to act in the capacity of managing agent of such **Organization** and is acting on behalf of such **Organization** in such capacity; and (ii) is in possession of **Money** or **Securities** owned by such **Organization**. The **Agent** and any partner, director, officer or employee thereof shall be deemed to constitute a single **Employee** for the purpose of any loss.

(E) Paragraph (A) of the definition of **Executive** is deleted and replaced with the following:

(A) a duly elected or appointed director, officer, trustee, manager, or member of the Board of Managers, or any duly constituted committee, or the in-house general counsel of an **Insured** incorporated, formed or organized in the United States of America;

(F) The definition of **Forgery** is deleted in its entirety and replaced with the following:

Forgery means:

(A) affixing the handwritten signature, or a reproduction of the handwritten signature, of another natural person without authorization and with the intent to deceive; or

(B) affixing the name of an **Insured** as an endorsement to a **Financial Instrument** without authority and with the intent to deceive;

provided that a signature which consists in whole or in part of one's own name signed with or without authority, in any capacity, for any purpose is not a **Forgery**. Mechanically or electronically produced or reproduced signatures shall be treated the same as handwritten signatures.

(G) The definition of **Plan Official** is deleted and replaced with the following:

Plan Official means any natural person while in the service of any **Insured** who is required to be bonded by Title 1 of **ERISA**, including:

(A) a fiduciary;

(B) a trustee;

(C) an administrator;

(D) an officer;

(E) any other natural person who handles **ERISA Plan** assets;

(F) an agent duly appointed to act in the capacity of managing agent of the **ERISA Plan** while in possession of **Money** or **Securities** owned by such **ERISA Plan**; or

(G) any natural person described in Subsections (A) through (F) above during a period not exceeding ninety (90) days following the termination of such natural person's service with the **Insured**,

provided that **Plan Official** shall not include any independent contractor, **Contractual Independent Contractor**, or any broker, factor, commission merchant, consignee, or representative of the same general character or employee thereof.

(H) The definition of **Robbery** is deleted and replaced with the following:

Robbery means the unlawful taking of **Money**, **Securities** or **Property** from the custody of an **Employee**, or other person (except a person acting as a watchman, porter or janitor), by violence or threat of violence, committed in the presence and cognizance of such **Employee** or other person.

(I) Paragraph (C) of the definition of **Securities** is deleted and replaced with the following:

(C) tokens, chips, tickets, registered checks, travelers checks in current use,

(J) The definition of **Third Party** is deleted in its entirety and replaced with the following:

Third Party means any natural person or organization other than an **Employee**, **Client**, or any agent, factor, commission merchant, independent contractor, or other authorized representative of: (A) an **Insured**; or (B) a **Client,** while serving in such capacity of such **Client**.

(K) The following definitions are added as follows:

Agent means a natural person, entity, firm, company, organization or association duly authorized by written contract to hold **Money** or **Securities** on behalf of an **Organization**.

Final Payment means the amount paid after the tax adjustment described in this endorsement.

Loss payment means the amount to be paid prior to the tax adjustment described in this endorsement.

Marginal Foreign Tax Rate means the marginal rate of income taxation of the insured entity which sustained the loss for the tax year in which such loss is written off.

Marginal United States and State Tax Rates means the marginal rates of Federal and State income taxation of the **Insured** which pays the loss in the United States for the tax year in which such loss is written off and shall include, if any, foreign tax credits accruing as a result of such loss.

(3) **AMEND EXCLUSIONS**

Section V, Exclusions, of this Coverage Part, is amended as follows:

(A) Exclusion (A)(6), Indirect or Consequential Loss, is amended to add the following:

Provided that this Exclusion (A)(6) shall not apply to the cost of reproducing information contained in any lost or damaged_manuscripts, records, accounts, microfilms, tapes, or other records resulting directly from a covered loss, provided that the Company's maximum liability for the cost of reproducing information contained in any lost or damaged manuscripts, records, accounts, microfilms, tapes, or other records resulting directly from a covered loss sustained shall

be $250,000, which amount is part of and not in addition to the applicable Limit of Liability set forth in Item 4 of the Crime portion of the Declarations.

(B) Exclusion (A)(12), Kidnap, Ransom and Extortion, shall not apply to otherwise covered loss under Insuring Clause (C), In Transit Coverage, if the **Insured**: (i) had no knowledge of any threat at the time the conveyance began; or (ii) had knowledge of a threat at the time the conveyance began, but the loss was not related to such threat.

(4) **DELETE EXCLUSION**

Exclusion (A)(11) of Section V, Exclusions, of this Coverage Part, is deleted in its entirety.

(5) **AMEND OWNERSHIP**

Section VII, Ownership, of this Coverage Part, is deleted and replaced with the following:

This Coverage Part shall only apply to loss of **Money**, **Securities**, or **Property**:

(A) owned by an **Insured**;

(B) leased by an **Insured**;

(C) held by an **Insured** in any capacity; or

(D) for which an **Insured** is legally liable,

except, solely with respect to loss covered under Insuring Clause (A)(2), this Coverage Part shall apply to loss of **Money**, **Securities**, or **Property** owned, leased or held by a **Client** in any capacity and for which the **Client** is legally liable.

(6) **AMEND PROOF OF LOSS AND LEGAL PROCEEDINGS**

Paragraph (A) of Section XIII, Proof of Loss and Legal Proceedings, of this Coverage Part, is deleted and replaced with the following:

(A) As a condition precedent to coverage hereunder, the **Parent Organization** shall, upon **Discovery** of a loss in excess of fifty percent (50%) of the applicable Retention:

(1) give written notice and furnish affirmative proof of loss with full particulars to the Company at the earliest practicable moment, but in no event later than one (1) year after such **Discovery**;

(2) submit to examination under oath at the Company's request;

(3) produce all pertinent records at such reasonable times and places as the Company shall designate; and

(4) provide full cooperation with the Company in all matters pertaining to a loss under this Coverage Part.

(7) **DELETE CONCEALMENT, MISREPRESENTATION AND FRAUD**

Section XVI, Concealment, Misrepresentation and Fraud, of this Coverage Part, is deleted in its entirety.

(8) **AMEND TERMINATION AS TO ANY EMPLOYEE**

Paragraphs (A) and (B) of Section X, Termination As To Any Employee, are deleted and replaced with the following:

(A) immediately upon any member of the Risk Management Department (or functional equivalent), Human Resources Department (or functional equivalent), or the Office of the General Counsel (or functional equivalent), other than those acting in collusion with such **Employee**, becoming aware of a **Theft**, **Forgery** or other act involving fraud or dishonesty which involves **Money**, **Securities**, or **Property** with a value greater than or equal to one thousand dollars ($1,000) committed by such **Employee** while employed with or in the service of an **Insured**; or

(B) immediately upon any member of the Risk Management Department (or functional equivalent), Human Resources Department (or functional equivalent), or the Office of the General Counsel (or functional equivalent), becoming aware of any act involving fraud or dishonesty which involves **Money**, **Securities** or **Property** of a value greater than or equal to twenty-five thousand dollars ($25,000) committed by such **Employee** prior to employment or service with an **Insured**.

(9) **AMEND SUBSIDIARY / JOINT VENTURE**

Solely with respect to the Crime Coverage Part, Subsection (B) of the term **Subsidiary**, as set forth in Section II, Definitions, of the General Terms and Conditions, is deleted in its entirety and replaced with the following:

(B) any entity while the **Parent Organization**, directly or indirectly through one or more **Subsidiaries:**

(1) owns or controls fifty percent (50%) or less of the outstanding securities or voting rights representing the present right to elect, appoint or exercise a majority control over such entity's directors, trustees, manager, member of the Board of Managers, or the functional or foreign equivalent positions of such entity; and

(2) has the right, pursuant to either written contract or the by-laws, charter, operating agreement or similar documents of an **Organization** to solely control the management and operation of such entity.

For the purposes of coverage under this Endorsement, coverage available to such **Subsidiary** as set forth in Subsection (B) above shall apply pro rata based on the proportion of the **Parent Organization's** equity interest in such **Subsidiary.**

(10) **ADD TAX COMPENSATION COVERAGE**

The following Section is added:

TAX COMPENSATION COVERAGE

The Company shall adjust the amount of any loss paid in the United States to compensate for additional federal or state tax liability incurred by the **Insured** as a result of the payment of such loss in the United States rather than in the country in which such loss was sustained, provided that:

(a) the loss was sustained by an entity not subject to United States or state tax provisions; and

(b) the payment for such loss is reportable income under the Internal Revenue Code and regulations or the tax laws of any state or commonwealth of the United States; and

(c) the loss payment shall be adjusted using the following formula:

Final Payment =

Loss Payment x $\dfrac{\text{(one minus - the } \textbf{Marginal Foreign Tax Rate}\text{)}}{\text{(one minus the sum of the } \textbf{Marginal United States and State Tax Rates)}}$

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative